RESIDENTIAL DEVELOPMENT CONTROL PLAN



Operational as of 17 August 2020 (Amendment 4 – Section 12.4)

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1.0 INTRODUCTION

1.1 NAME OF THIS PLAN

This is called the Griffith Residential Development Control Plan 2020. The Plan has been prepared in accordance with section 3.42 of the *Environmental Planning and Assessment Act 1979* (the EP&A Act).

1.2 DATE OF COMMENCEMENT

The Plan was adopted by Griffith City Council on 11 August 2020 and came into operation on 17 August 2020. The following amendments to the DCP have been endorsed:

- Amendment 1 – Lake Wyangan Controls – 12.2 – Endorsed by Council on 15 November 2023
- Amendment 2 – Housekeeping update Endorsed by Council on 26 November 2024
- Amendment 3 – Section 12.3 endorsed by Council on 9 June 2025.
- Amendment 4 – Section 12.4 endorsed by Council on 12 August 2025

1.3 LAND TO WHICH THIS PLAN APPLIES

This plan applies to all lands zoned R1 – General Residential, R3 – Medium Density Residential, R5 – Large Lot Residential and RU5 – Village

1.4 RELATIONSHIP TO OTHER PLANS

This plan must be read in conjunction with the *Griffith Local Environmental Plan 2014* (GLEP 2014), other environmental planning instruments, Griffith City Council policies and Council's *Engineering Standards: Subdivision and Development* (as amended).

1.5 VARIATION TO CONTROLS

There will be instances in which strict adherence to the controls in this Plan cannot be achieved. Should an aspect of a development not comply with a standard, the non-compliance must be justified in a "Request for Variation to a Development Control" attached to the Statement of Environmental Effects addressing:

a) The control being varied.
b) The extent of the proposed variation and the unique circumstances as to why the variation is requested.
c) Why compliance with the control/standard is unreasonable or unnecessary in this particular case.
d) How the objectives of the control are met and an acceptable solution achieved with the proposed variations.
e) That the development will not have additional adverse impacts as a result of the variation.

The fact that an existing development may not comply with one or more of the development controls, does not necessarily mean that the development control is unreasonable or unnecessary, when applied to future development.

Note: A template Variation Statement is provided at Appendix 3.

1.6 SAVINGS AND TRANSITIONAL PROVISIONS

This Plan applies to any development application lodged with Council after the commencement of the Plan. Any development application lodged before the commencement of this plan will be assessed in accordance with any previous

development control plan or other Council policy in force at the time of lodgement.

1.7 REVIEW OF DCP

The DCP should be reviewed by Council every five years.

2.0 AIMS AND OBJECTIVES

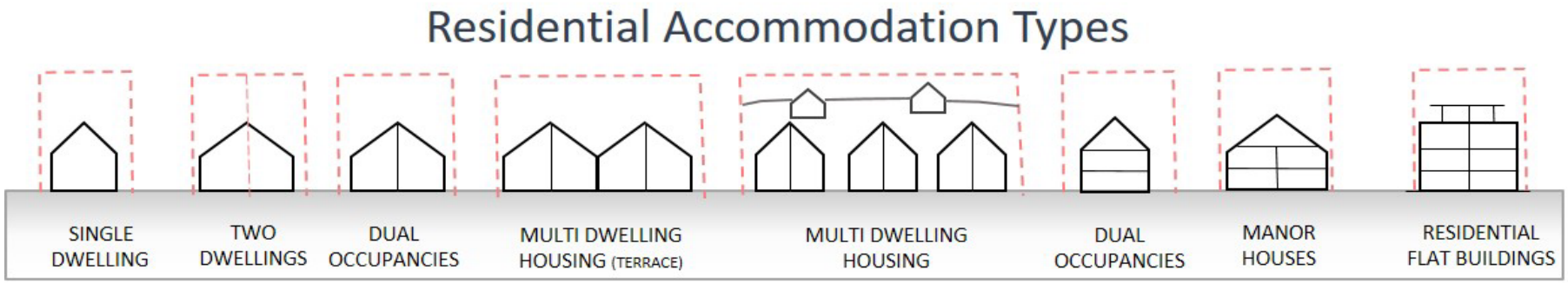
2.1 PURPOSE OF THE PLAN

The principle purpose of this Plan is to provide guidance on the following matters:

a) Giving effect to and guiding development permissible within the R1-General Residential, R5-Large Lot Residential and RU5-Village zones in the GLEP 2014.
b) Achieving the objectives of the land use zones to which the Plan applies.
c) Implementing the recommendations of Griffith's Housing Strategy 2019.
d) Provide for a diversity of housing opportunities and residential lifestyle choices.
e) Optimise residential development opportunities which fulfil the housing supply of Griffith.

2.2 AIMS AND OBJECTIVES

a) To provide appropriate development control principles for the development of Griffith.
b) To encourage, facilitate and promote affordable housing in accordance with the Griffith Housing Strategy 2019.
c) Ensure high standards of residential development within Griffith.
d) Provide for a diversity of housing opportunities and residential lifestyle choices.
e) Encourage new residential development that is sympathetic to the existing streetscape and neighbourhood character of a particular locality.



3.0 RESIDENTIAL PRECINCT STATEMENTS AND CONTROLS

Griffith has several unique residential precincts with varying streetscapes, densities and housing types. Infill development and increased densities to support affordable housing and a mixture of housing options are to be promoted in accordance with the Griffith Housing Strategy 2019.

The Precinct Statements in this Section will set the vision for how each precinct should be developed, redeveloped, or how infill development should occur. The table within each Precinct Statements (sub-section) will provide the maximum Floor Space Ratio (FSR) for the area (for all development) (if applicable) a height restriction (for all development) (if applicable) and parking ratios for residential development. To calculate FSR for a development, refer to Section 3.17. Specific development controls for each type of residential accommodation are provided in Sections 4 - 8. Controls for other types of development are provided in Section 10.

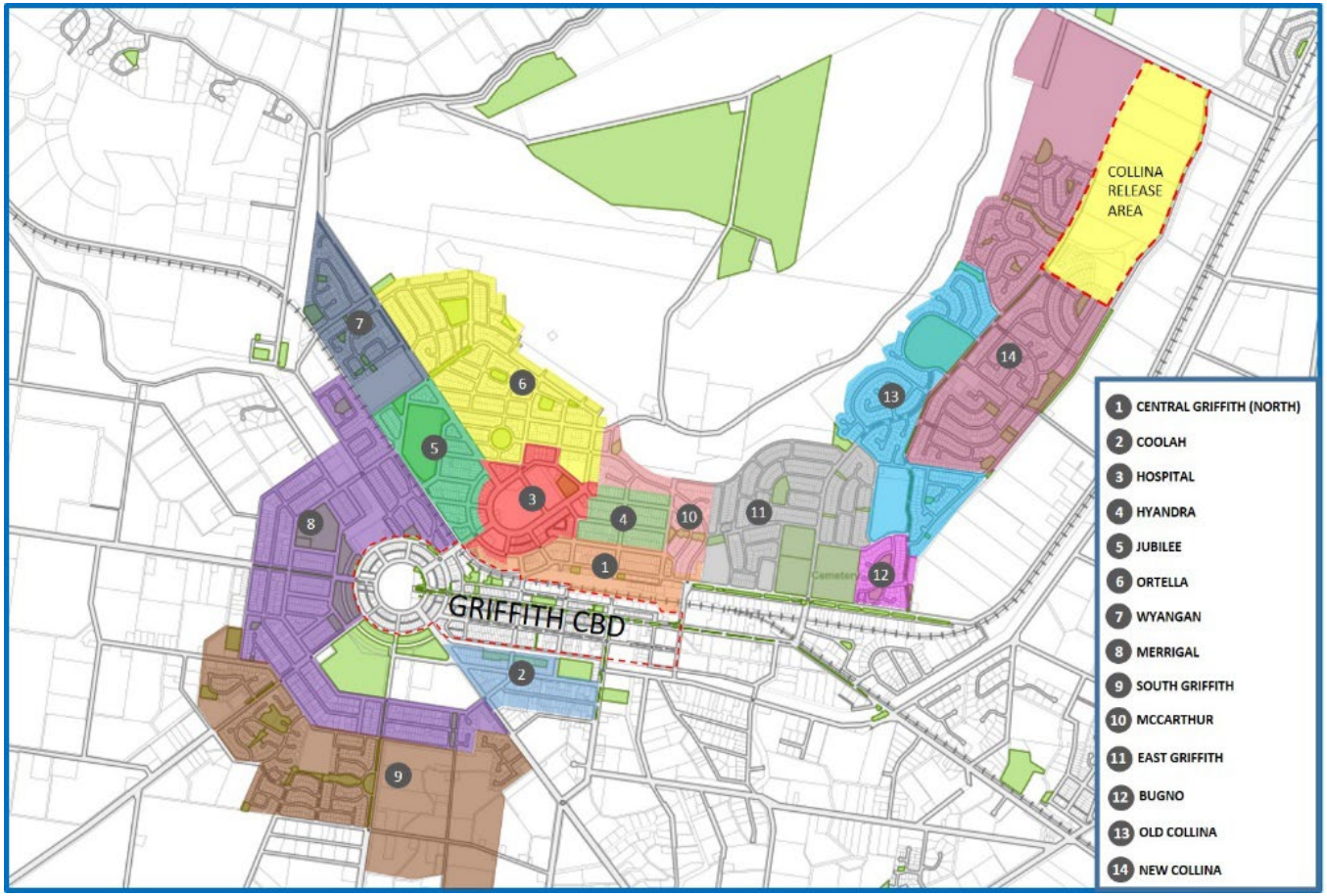
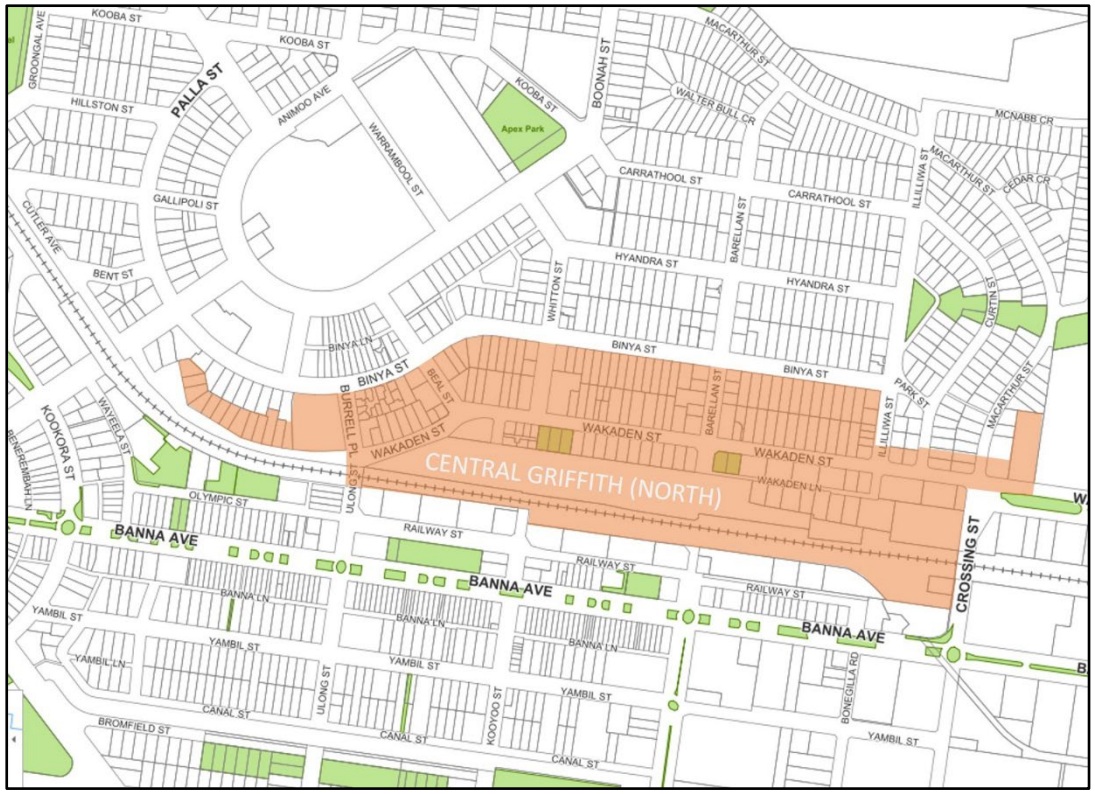


FIGURE 1: RESIDENTIAL PRECINCTS

3.1 CENTRAL GRIFFITH (NORTH)



Existing Character

The Central Griffith (North) precinct is located to the north of the Griffith CBD. The Precinct contains a mixture of residential accommodation including single dwellings, dual-occupancies and multiple dwelling housing on lot sizes averaging around 1100 m^2 with 20 m frontages. The railway and terminal are located on large tracts of land at the southern end of the precinct. Some commercial uses including a supermarket and registered club are located in the Precinct as well as an ambulance station and RFS Administrative building. Several under-developed or underutilised lots are scattered throughout the Precinct. Wakaden Street is the main collector road in the Precinct and is a key east-west corridor for residents accessing the CBD.

Future Character

The projected future character of the Precinct is to be redeveloped with medium density units with an emphasis on affordable housing. A higher FSR has been allocated to the Precinct to promote higher densities. Underutilised lots with frontage to Wakaden Street should be a preferred location for multi-storey residential flat buildings, boarding houses and co-living housing. Binya Street should be preferred locations for multiple dwelling housing, dual occupancies and single storey boarding houses. The existing rail terminal lands should be redeveloped for medium density housing once the freight terminal is relocated.

Precinct Specific Controls

Max. FSR	Max. Height	Parking	
1.5:1 & 2.5:1 on lands south of Wakaden	N/A	1 Bedroom Unit 2 Bedroom Unit 3+ Bedroom Unit Visitors	0.5 spaces 1 space 2 spaces 1 space per 6 units

3.2 COOLAH



Existing Character

The Coolah Precinct is located to the South of the Griffith CBD and the main canal. The Precinct contains residential flat buildings and dwellings built between 1960 and 1990 with newer construction consisting of single storey multiple dwelling housing. Lot sizes average around 1000 m^2 with 20m frontages. Several under-utilised lots are scattered throughout the Precinct. The Precinct is in close proximity to schools and services in the CBD. The road network has moderate traffic with good connection to Willandra Avenue and Kidman Way.

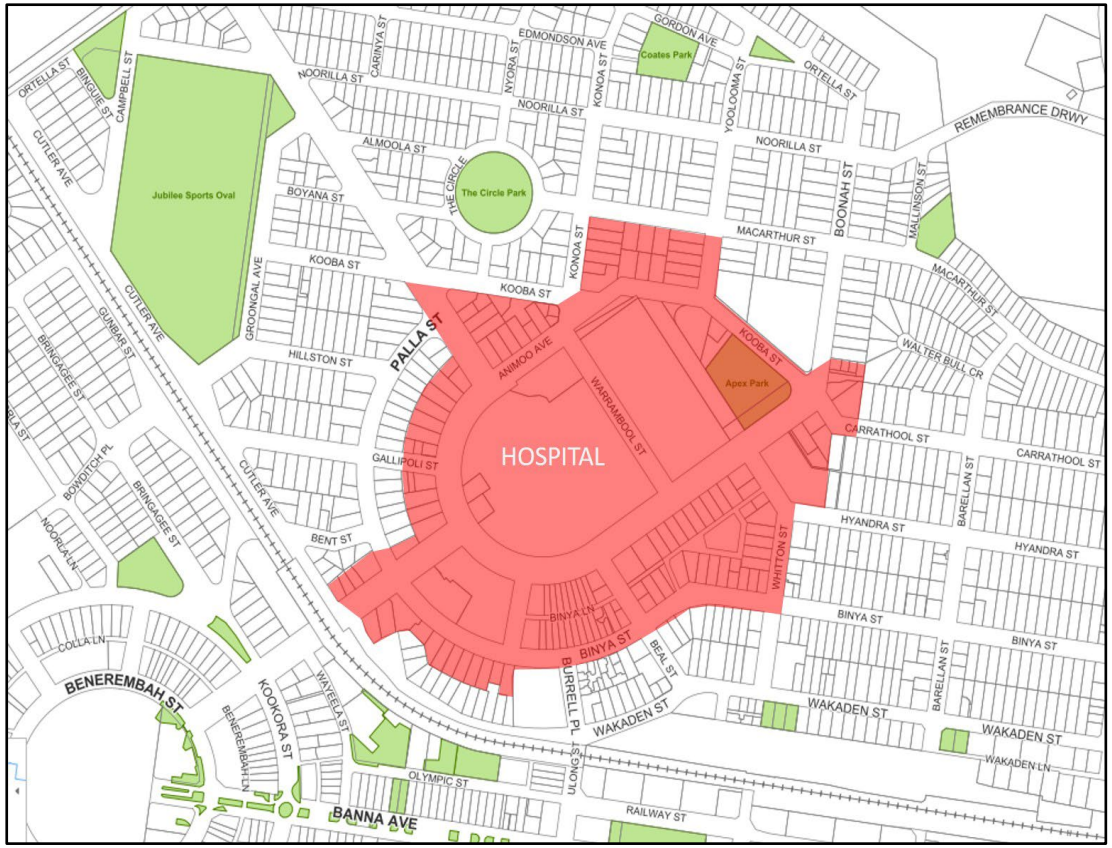
Future Character

The projected future character of the Precinct is to be redeveloped with medium density units with an emphasis on affordable housing. A higher FSR has been allocated to the Precinct to promote higher densities. Underutilised lots should be developed for residential flat buildings and multi dwelling housing. Lots with single dwellings on them should be redeveloped for higher density development. Boarding houses, co-living housing and seniors housing should be promoted to locate in the Precinct. Neighbourhood shops should also be promoted in strategic locations in the precinct.

Precinct Specific Controls

Max. FSR	Max. Height	Parking	
1.5:1	N/A	1 Bedroom Unit 2 Bedroom Unit 3+ Bedroom Unit Visitors	0.5 spaces 1 space 2 spaces 1 space per 6 units

3.3 HOSPITAL



Existing Character

The Hospital Precinct contains the Griffith Base Hospital, the St. Vincent's Private Community Hospital and a number of medical centres and facilities. Residential accommodation in the Precinct is mainly single dwellings with some dual occupancies and multi dwelling housing. Lot sizes average 900m^2 with 20m frontages. Only a few blocks in the Precinct are undeveloped. The road network has moderate to heavy traffic due to residents accessing the hospitals, schools and church.

Future Character

Several employment generating uses are located in the precinct which would benefit from an increase in housing density. A higher FSR has been allocated to the Precinct to promote higher densities. Existing lots with single dwellings should be promoted to be used for higher density residential development and medical and associated uses. Adequate parking needs to be accommodated in medical services, while parking reductions are appropriate for residential uses. Seniors housing should also be promoted to be located in the Precinct to benefit from the close proximity to the hospitals and CBD. Co-living housing should locate in the Precinct to cater for itinerant medical staff. Consideration should be given to the Griffith Health Precinct Master Plan in the design of development in the Precinct.

Precinct Specific Controls

Max. FSR	Max. Height	Parking	
1.5:1	N/A	1 Bedroom Unit 2 Bedroom Unit 3+ Bedroom Unit Visitors	0.5 spaces 1 space 2 spaces 1 space per 6 units

3.4 HYANDRA



Existing Character

The Hyandra Precinct is located in close proximity to the CBD and adjacent to the Hospital Precinct. The Precinct is dominated by single dwellings on large lots; however, some dual occupancies exist on predominantly corner allotments. A typical lot is around 1150 m^2 with 18 metre frontages. The Precinct contains several large, established street trees. Several post war dwellings have been demolished and redeveloped for large single-family dwellings in the Precinct.

Future Character

The projected future character of the area is to increase residential density while maintaining the Precinct's character through retaining existing setbacks, street trees and promoting secondary dwellings and dual occupancies in the rear yards of existing dwellings. The appearance of the single dwelling when viewed from the street should be retained through redevelopment. Corner allotments should be promoted for multi-dwelling housing, terraces or manor houses. Boarding houses should be located strategically within the precinct to ensure compatibility with the existing character.

Precinct Specific Controls

Max. FSR	Max. Height	Parking	
0.5:1 Corner Lot – 0.7:1	9 m	1 Bedroom Unit 2 Bedroom Unit 3+ Bedroom Unit Visitors	1 space 1.5 space 2 spaces 1 space per 4 units

3.5 JUBILEE



1000 m² with 18 metre frontages. The Precinct is dominated by single family dwellings with some multi-dwelling housing scattered throughout. Several post war dwellings have been demolished and redeveloped for large single family dwellings.

Future Character

The projected future character of the area is to increase residential density through secondary dwellings and dual occupancies in rear yards and strategically placed multi-dwelling housing. A low-medium density FSR has been chosen to promote increased densities while retaining landscaped areas on lots. Corner allotments should be promoted for multi-dwelling housing, terraces or manor houses. Boarding houses and co-living housing should be located at the southern extent of the precinct closer to the CBD.

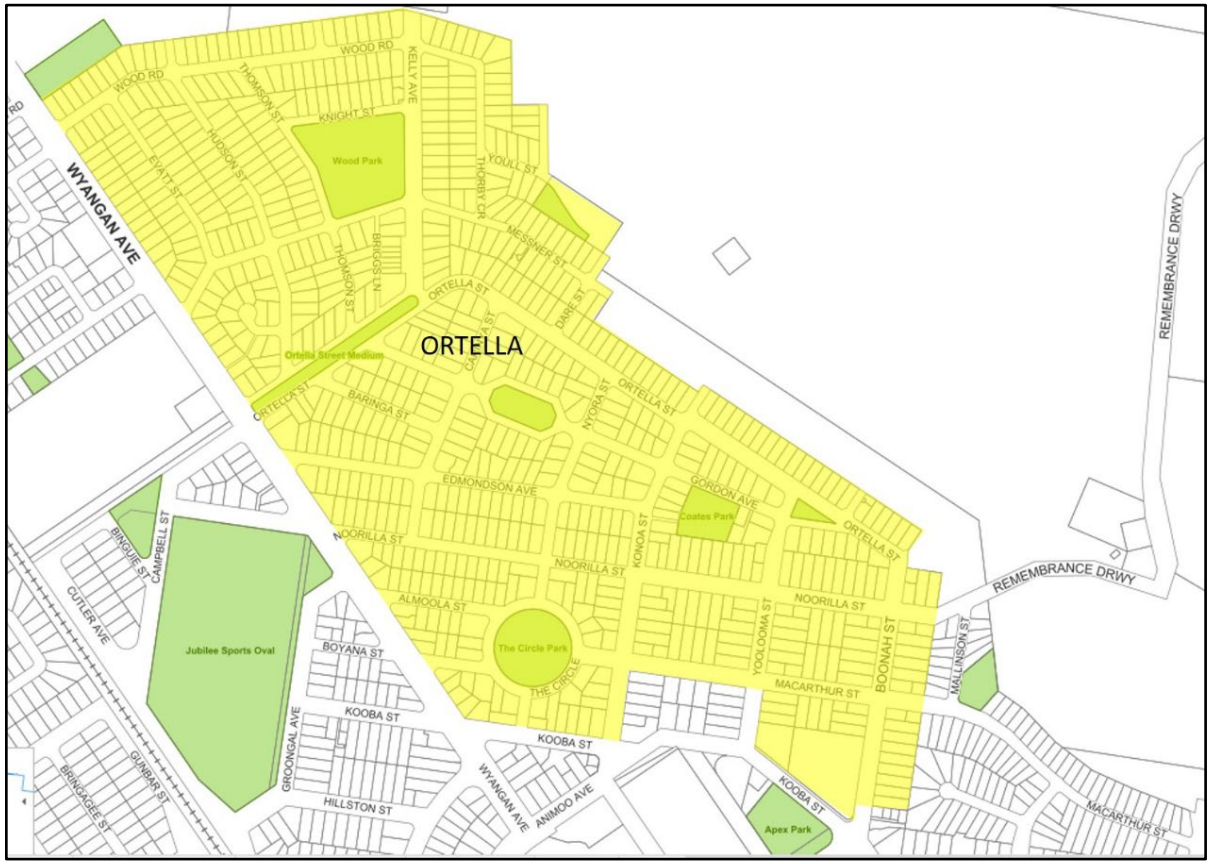
Existing Character

The Jubilee Precinct is located to the west of the Hospital Precinct with good access to the CBD. The Precinct is centred on the Jubilee oval which is a community park used for rugby, basketball, cricket, tennis and netball. A typical lot is around

Precinct Specific Controls

Max. FSR	Max. Height	Parking	
0.5:1 Corner Lot – 0.7:1	9 m	1 Bedroom Unit 2 Bedroom Unit 3+ Bedroom Unit Visitors	1 space 1.5 space 2 spaces 1 space per 4 units

3.6 ORTELLA



trees in the road reserves and front yards. A typical lot is around 850 m^2 with 18 m frontages. The precinct almost exclusively contains single dwellings, however, some dual occupancies and secondary dwellings have been developed. The dwelling styles are a mixture of post-war, California bungalow and other modern project home varieties with more contemporary designs where lots have been redeveloped. The local road network is reliant on connections to Wyangan Avenue and MacArthur Street for access to the CBD and Hospital Precinct.

Future Character

The projected future character of the Precinct is to remain predominantly low-density single dwelling housing in the northern areas while promoting dual occupancies and secondary dwellings on lots in close proximity to the Hospital Precinct.

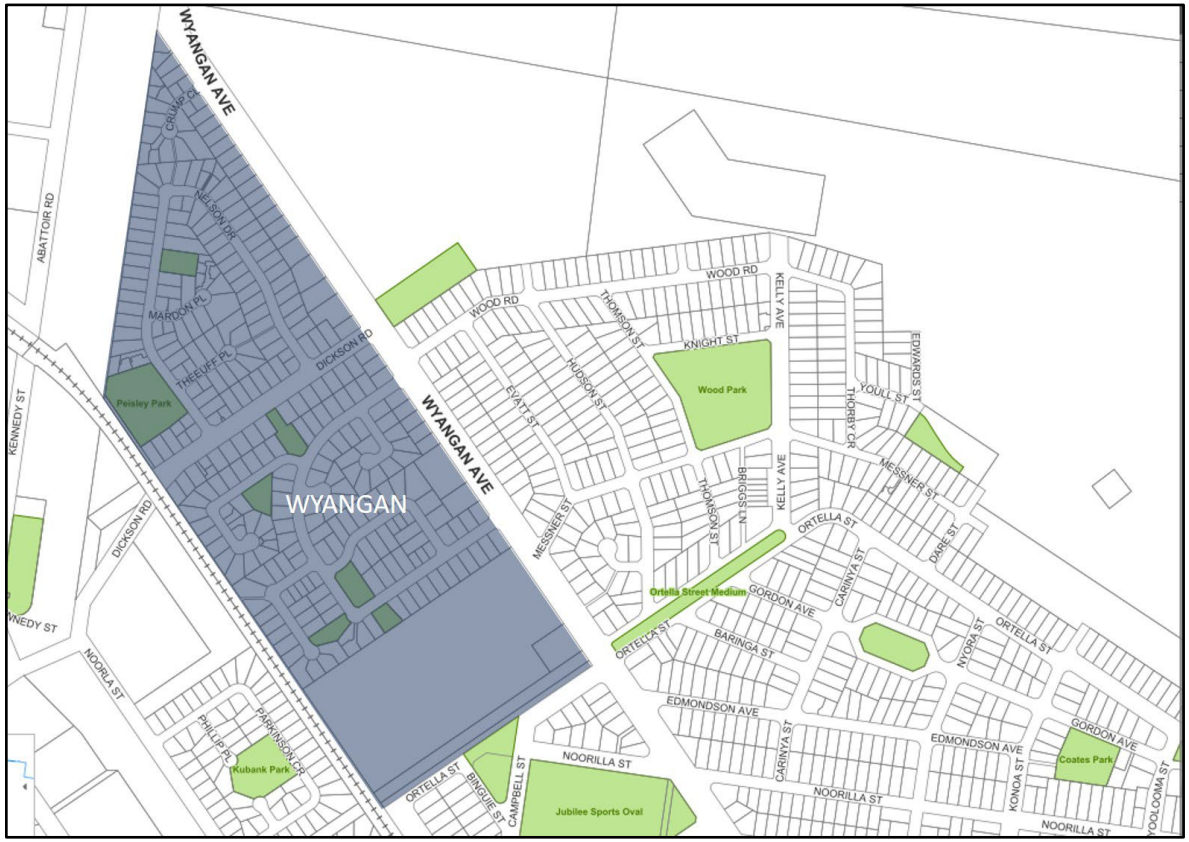
Existing Character

The Ortella Precinct is located north of Wyangan Avenue and the Hospital and south of Scenic Hill which several lots back onto. There are several established parks within the Precinct including The Circle Park and Wood Park. There are established

Precinct Specific Controls

Max. FSR	Max. Height	Parking	
0.5:1 Corner Lot – 0.7:1	9 m	1 Bedroom Unit 2 Bedroom Unit 3+ Bedroom Unit Visitors	1 space 1.5 space 2 spaces 1 space per 4 units

3.7 WYANGAN



Dual occupancies have been developed on selected blocks. A typical lot is 700 m^2 with 20 metre frontages. Service roads are located adjacent to Wyangan Avenue to reduce vehicular conflict with traffic on the sub-arterial road.

Future Character

The projected future character of the Precinct is to remain predominantly low density. Any development of the undeveloped citrus farm should include a road connection to the developed areas of the Precinct to allow connectivity. Some larger lots have suitable area for secondary dwellings.

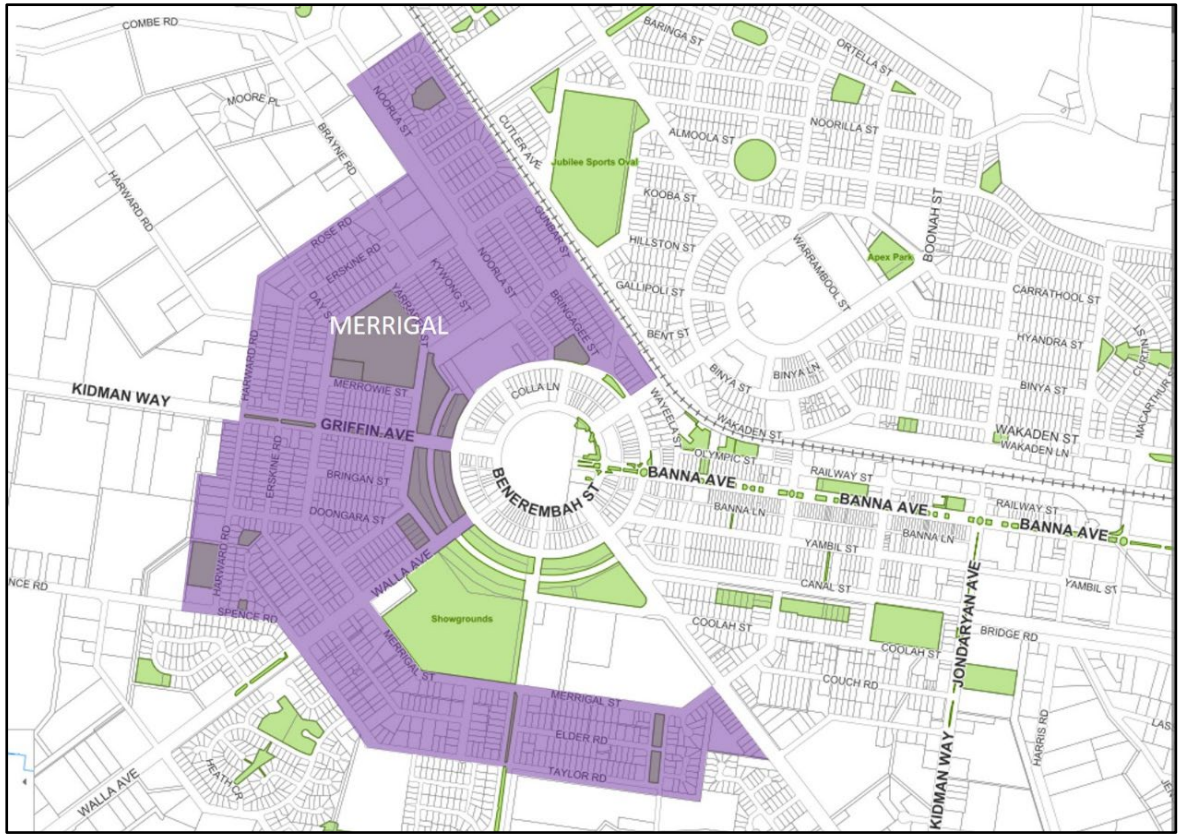
Existing Character

The Wyangan Precinct is located in the north-west extent of Griffith's urban area, above the railway line but below Wyangan Avenue. The Precinct was development in the 90's and 00's for predominantly single dwellings at low densities.

Precinct Specific Controls

Max. FSR	Max. Height	Parking	
0.5:1	9 m	1 Bedroom Unit 2 Bedroom Unit 3+ Bedroom Unit Visitors	1 space 1.5 space 2 spaces 1 space per 4 units

3.8 MERRIGAL



centred around West End Sports Stadium in the north and the showgrounds and Griffith High School in the south. Several large lots within the Precinct have been redeveloped for dual occupancies or multi-dwelling housing.

Future Character

The projected future character of the area is to increase residential density through secondary dwellings and dual occupancies in rear yards and strategically placed multi-dwelling housing. A low-medium density FSR has been chosen to promote increased densities while retaining landscaped areas on lots. Corner allotments should be promoted for dual-occupancies and multi-dwelling housing. Boarding houses and co-living housing should be located at the southern extent of the precinct closer to the CBD.

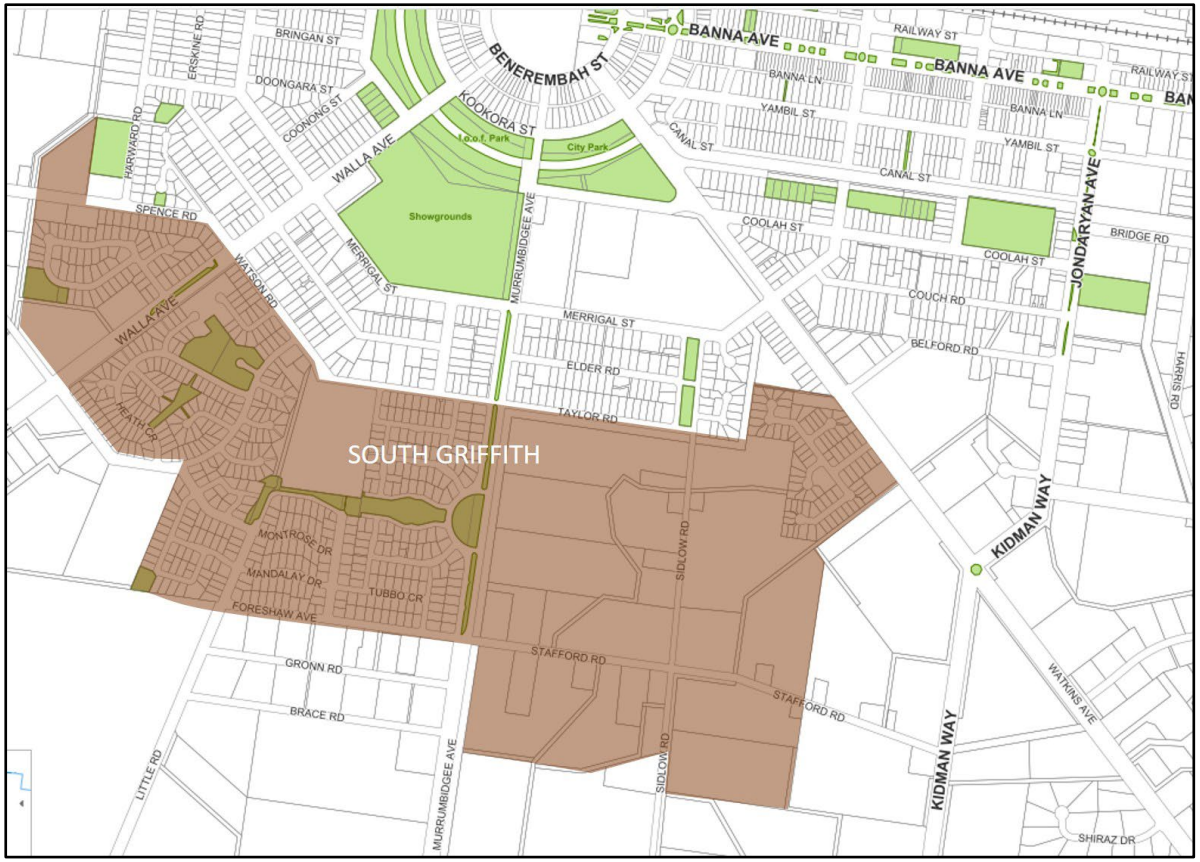
Existing Character

The Merrigal Precinct is a hub around Kookora Street. The area is part of the original Burley Griffin layout. The area has a mixture of dwelling types on a variety of lot sizes. Several large undeveloped lots exist within the Precinct. The Precinct is

Precinct Specific Controls

Max. FSR	Max. Height	Parking	
0.5:1 Corner Lot – 0.7:1	9 m	1 Bedroom Unit 2 Bedroom Unit 3+ Bedroom Unit Visitors	1 space 1.5 space 2 spaces 1 space per 5 units

3.9 SOUTH GRIFFITH



Murrumbidgee Estate having a series of traffic-controlled loop roads. A large portion of the lots in the Precinct are undeveloped. An average lot in the Precinct is 700 m^2 with 20 metre frontages. The majority of the Precinct has been developed for single dwellings with some dual occupancies and secondary dwellings. The Precinct forms the southern extent of the Griffith urban area.

Future Character

The projected future character of the area is predominantly low-density single dwellings with some dual occupancy and multi dwelling housing within undeveloped lots to promote affordable rental housing. Corner allotments should be promoted for multi-dwelling housing, terraces or manor houses. Boarding houses and co-living housing should be located at the northern extent of the precinct closer to the CBD.

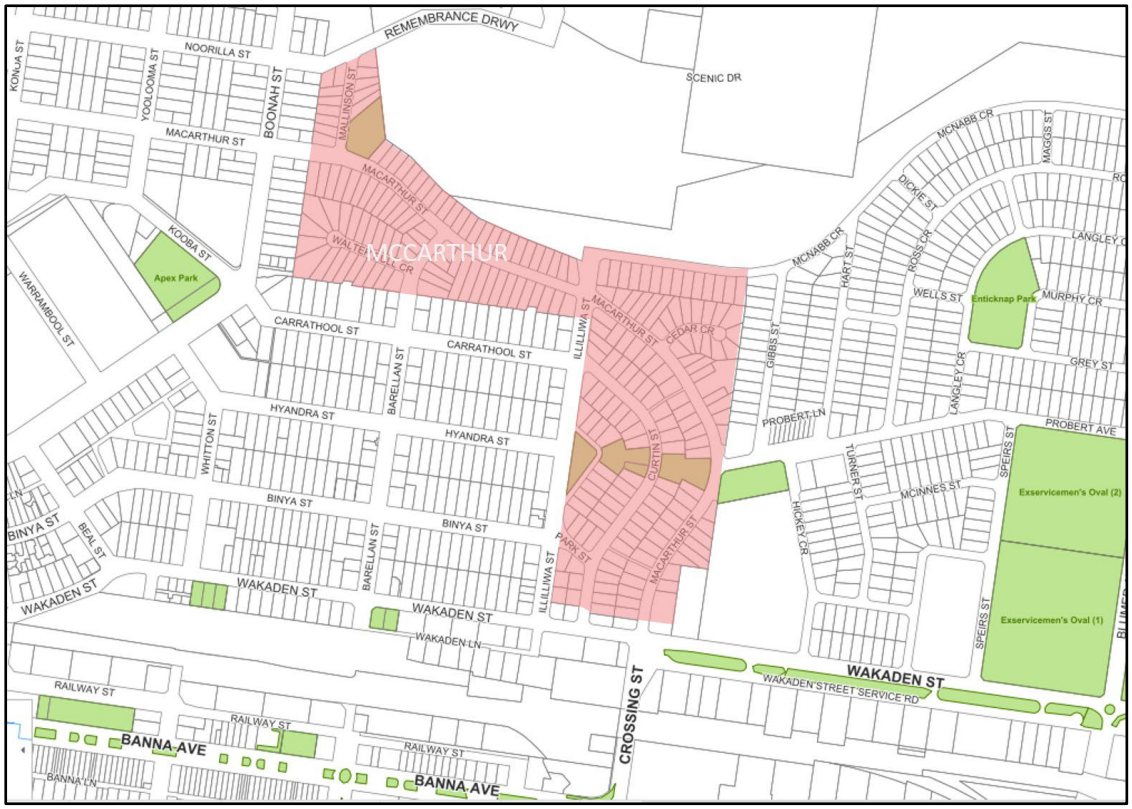
Existing Character

The Precinct is located in the southern most part of Griffith's residential areas, containing the Pioneer subdivision in the west, the Murrumbidgee Estate subdivision in the centre and Willandra Gardens to the east. The planning layouts are informal with

Precinct Specific Controls

Max. FSR	Max. Height	Parking	
0.5:1 Corner Lot – 0.7:1	9 m	1 Bedroom Unit 2 Bedroom Unit 3+ Bedroom Unit Visitors	1 space 1.5 space 2 spaces 1 space per 5 units

3.10 MCARTHUR



creates a pedestrian link from Hyandra Street to Probert Avenue. A typical lot is around 800 m^2 with 18 metre frontages. McCarthur Street is a busy road which connects North Griffith with the CBD.

Future Character

Increased densities of lots with frontage to McCarthur Street should be discouraged due to its narrow carriageway and traffic volumes. Increased densities in other areas of the Precinct should be supported through secondary dwellings and redevelopment for dual occupancies on larger lots. Affordable housing including boarding houses and co-living housing should be promoted in the southern extent of the precinct closer to the CBD.

Existing Character

The Macarthur precinct is wedged between Hyandra precinct to the south-west, East Griffith to the east and Scenic Hill sloping up to the north, with the northern allotments backing onto it. The street layout is informal in style, consisting of long curved streets and differently shaped allotments. A connected park network

Precinct Specific Controls

Max. FSR	Max. Height	Parking	
0.5:1	9 m	1 Bedroom Unit 2 Bedroom Unit 3+ Bedroom Unit Visitors	1 space 1.5 space 2 spaces 1 space per 4 units

3.11 EAST GRIFFITH



Shops are located at the western boundary of the Precinct and provides convenient commercial services. The Precinct is dominated by single dwellings constructed in the 60's and 70's on lots sizes averaging 800 m^2 with 18 m frontages. Local roads in the Precinct are narrow and connect to Blumer Avenue, a wide collector road to the east and McCarthur Street to the west. Views up moderately sloped streets to Scenic Hill give the area strong character as does the long curves and semi-formal planning layout.

Future Character

The projected future character of the Precinct is to remain as low density but encourage secondary dwellings in rear yards on suitable lots and discourage secondary dwellings on Blumer Avenue or Probert Avenue. The expansion of the East Griffith Shops

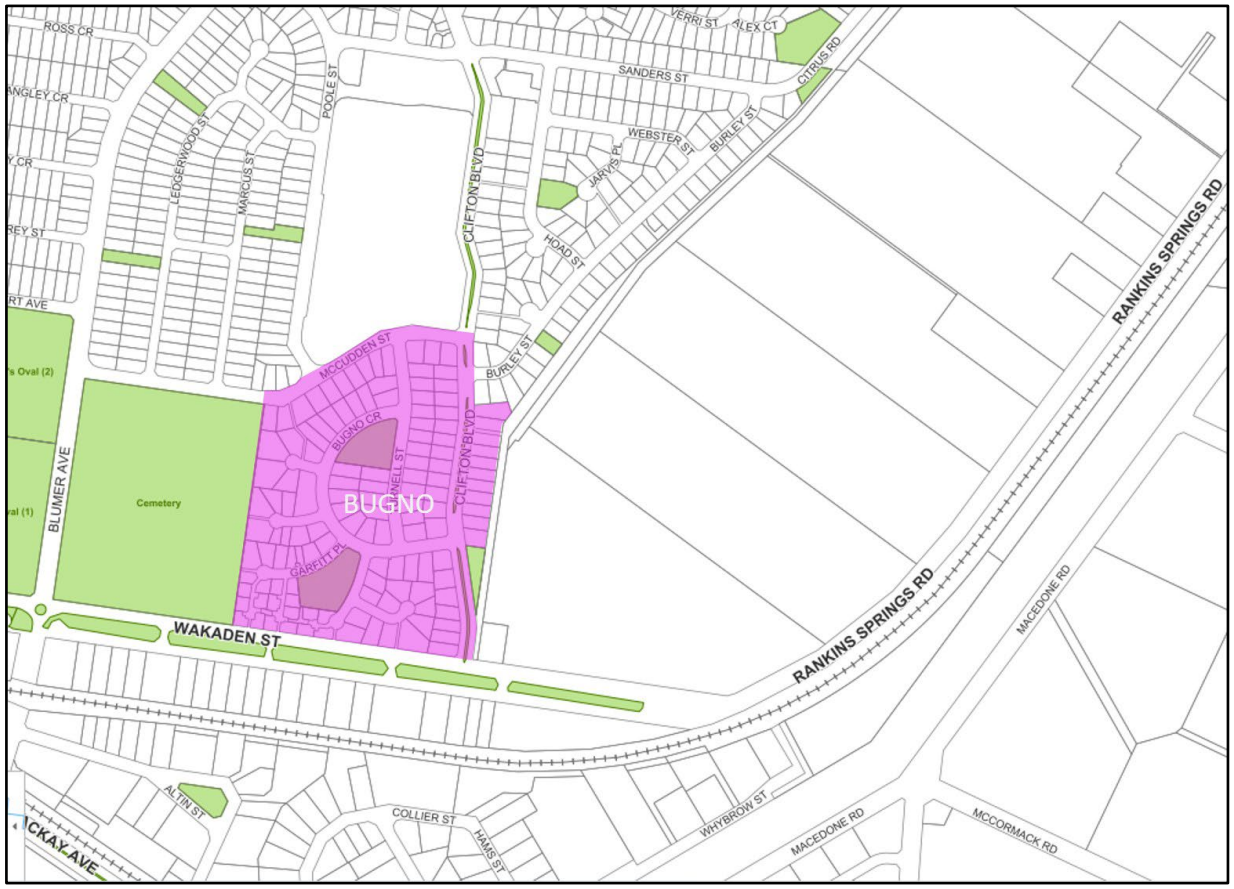
Existing Character

The East Griffith Precinct is located to the south of Scenic Hill and to the north of the Cemetery. The Precinct is centred on Enticknap Park which is a neighbourhood park. East Griffith

Precinct Specific Controls

Max. FSR	Max. Height	Parking	
0.5:1	9 m	1 Bedroom Unit 2 Bedroom Unit 3+ Bedroom Unit Visitors	1 space 1.5 space 2 spaces 1 space per 4 units

3.12 BUGNO



High School. With the exception of a medium density subdivision at the south-western boundary, the Precinct contains single dwellings on 750 m^2 lots with wide 21 m frontages. The housing stock contains several different styles including modern designs with eclectic forms. The planning layout is dominated by cul-de-sacs connecting to Bugno Crescent. Generally, there is no front fencing in the Precinct, but due to the traffic volumes on Clifton Boulevard, houses with frontage to the road could be retrofitted with a front fence.

Future Character

The projected future character of the Precinct is to remain as a low-density neighbourhood. Where appropriate secondary dwellings on lots could be supported.

Existing Character

Bugno Precinct was developed in the late 80's replacing the old sale yards located north of Wakaden Street. The Precinct is located to the east of the Cemetery and to the south of Wade

Precinct Specific Controls

Max. FSR	Max. Height	Parking	
0.5:1	9 m	1 Bedroom Unit 2 Bedroom Unit 3+ Bedroom Unit Visitors	1 space 1.5 space 2 spaces 1 space per 4 units

3.13 OLD COLLINA



roads with a series of cul-de-sacs coming off these. The Precinct is centred around Ted Scobie Oval in the north and Driver Shopping Complex in the south. Scenic Hill forms the Precinct's backdrop with large rocks, remnant Eucalytus, White Cyprus Pine trees and grasses. The local roads are wide mainly feeding into Clifton Boulevard and Blumer Avenue which act as collector roads.

Future Character

The projected future character of the Precinct is to remain as a low-density neighbourhood. Where appropriate secondary dwellings on lots could be supported.

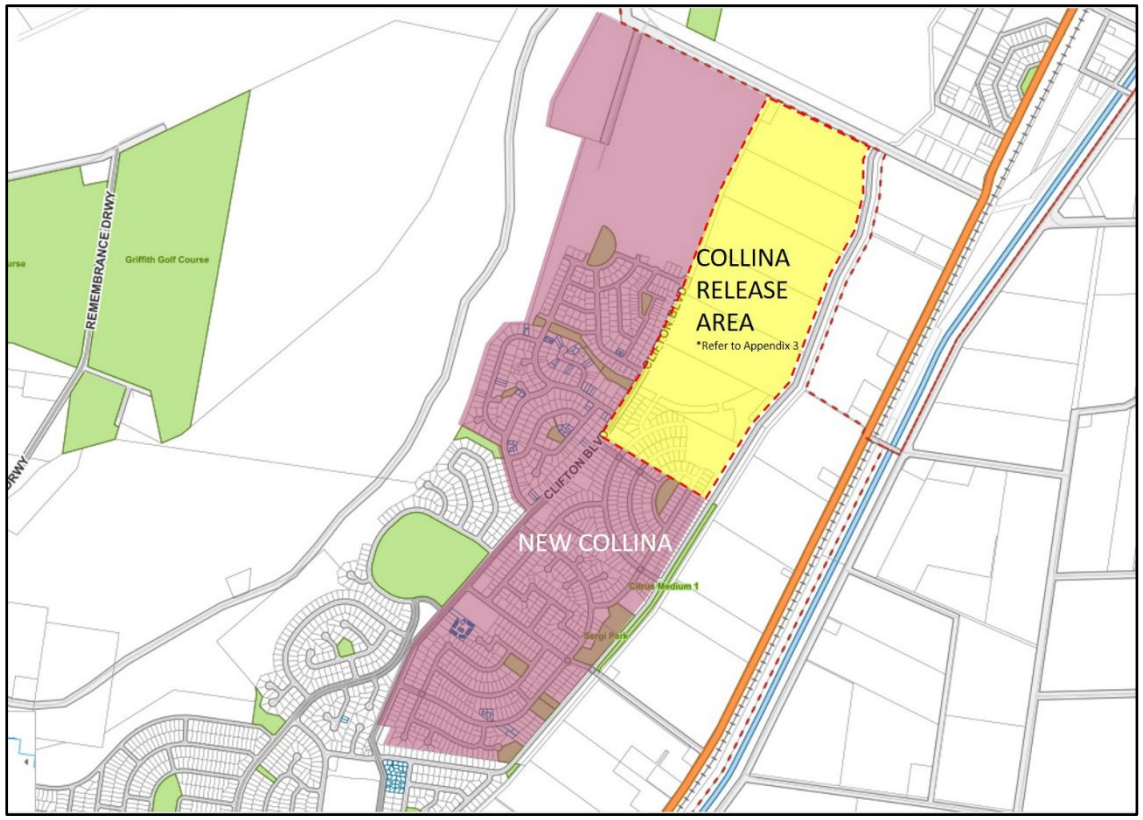
Existing Character

Old Collina is located in the north-east of Griffith's residential area which was developed in the late 70's and early 80's. The planning layout is informal in style consisting of curved loop

Precinct Specific Controls

Max. FSR	Max. Height	Parking	
0.5:1 Corner Lot – 0.7:1	9 m	1 Bedroom Unit 2 Bedroom Unit 3+ Bedroom Unit Visitors	1 space 1.5 space 2 spaces 1 space per 4 units

3.14 NEW COLLINA



the lands to the south and east of Clifton Blvd. Both master plans sought to replicate aspects of the Burley Griffin design for Griffith with curved streets and a spoke and wheel layout. The topography of the Precinct varies from gently sloping to moderately sloping on the edge of Scenic Hill. The average lot area in the Precinct is 900 m^2 with 18 m frontages. Single dwellings dominate the streetscape with approximately 15% of the lots developed for dual occupancies and multi-dwelling housing.

Future Character

The projected future character of the Precinct is to remain as a low-density neighbourhood with strategically located multi-dwelling housing.

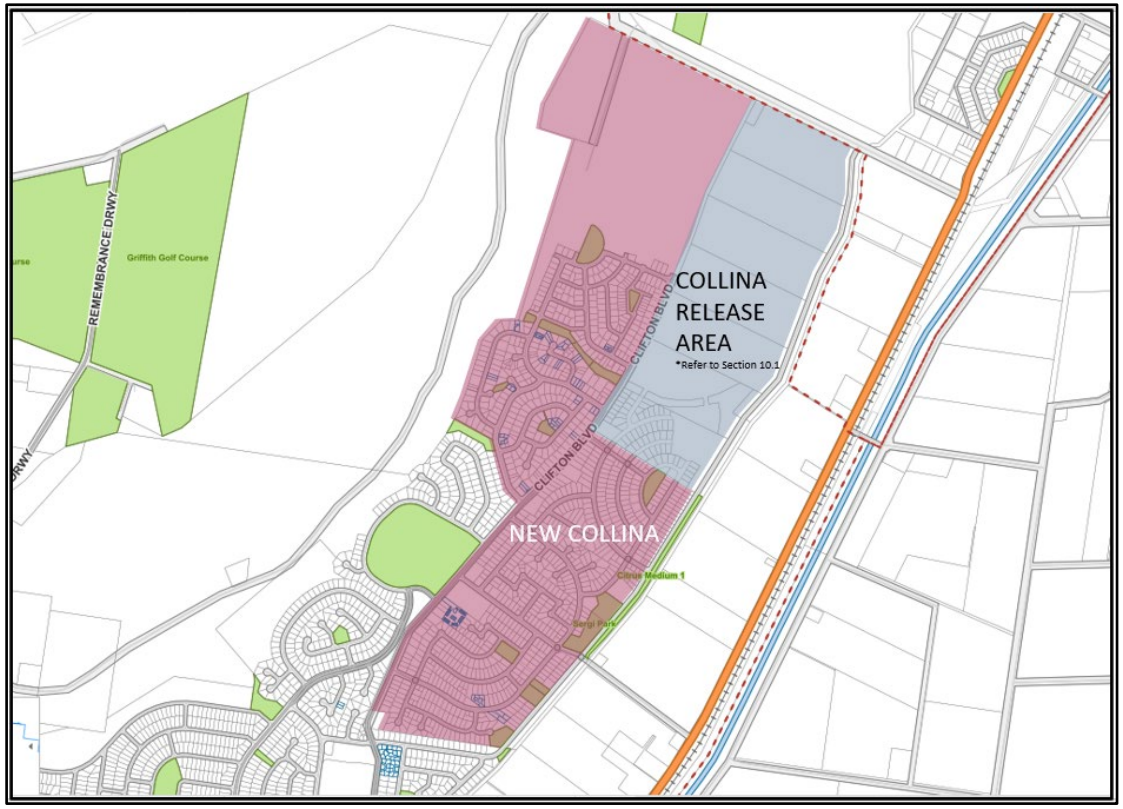
Existing Character

New Collina was developed in the first decade of the 00's. The New Collina area was subject to two master planning exercises. One carried out by the then Department of Housing for lands, to the north and west of Clifton Blvd and another by Council for

Precinct Specific Controls

Max. FSR	Max. Height	Parking	
0.5:1 Corner Lot – 0.7:1	9 m	1 Bedroom Unit 2 Bedroom Unit 3+ Bedroom Unit Visitors	1 space 1.5 space 2 spaces 1 space per 4 units

3.15 COLLINA RELEASE AREA



Existing Character

The Collina Release Area is being developed as the final stage of the Master Plan endorsed by Council in the early 2000's. The first three farms (Stage 1) in the Release Area have been substantially subdivided and dwellings are under construction. Stage 2 of the Release Area has achieved development consent for 282 lots in accordance with the Master Plan and Section 12.1 of this DCP. The Master Plan and approved subdivisions include a series of stormwater detention basins, parks and average lot size of around 700m^2.

Future Character

The projected future character of the Precinct is to remain as a low-density neighbourhood with strategically located multi-dwelling housing. Up to 50% of newly subdivided lots within the Precinct are permitted to be multi-dwelling allotments.

Precinct Specific Controls

Max. FSR	Max. Height	Parking	
0.5:1 Corner Lot – 0.7:1	9 m	1 Bedroom Unit 2 Bedroom Unit 3+ Bedroom Unit Visitors	1 space 1.5 space 2 spaces 1 space per 4 units

3.16 VILLAGES

Griffith has many villages, all with a unique character. Griffith's villages are important residential settings which offer alternative settings to the urban areas. Expansion of Lake Wyangan (refer to Section 12.2), Hanwood, Yenda and Yoogali have been promoted in Griffith's Land Use Strategy: Beyond 2030 and the GLEP 2014. The minimum subdivision lot size for most villages is consistent with other low-density Precinct's in Griffith at 700 m^2.

Infill development in the villages should be supported, including strategically placed multi-dwelling housing. Secondary dwellings should also be supported to increase densities and support population increase in the Villages.

Non-residential uses should also be promoted in the villages, including supermarkets, shops, restaurants and cafes and commercial premises to support the everyday needs of residents.

Yenda, Hanwood and Bilbul are all located in close proximity to employment generating rural industries with large work forces. Locating diverse housing options in these villages to support workers including boarding houses / co-living housing, multi-dwelling housing and secondary dwellings should be promoted.

Village Controls

Max. FSR	Max. Height	Parking	
0.5:1 Corner Lot – 0.7:1	9 m	1 Bedroom Unit 2 Bedroom Unit 3+ Bedroom Unit Visitors	1 space 1.5 space 2 spaces 1 space per 4 units

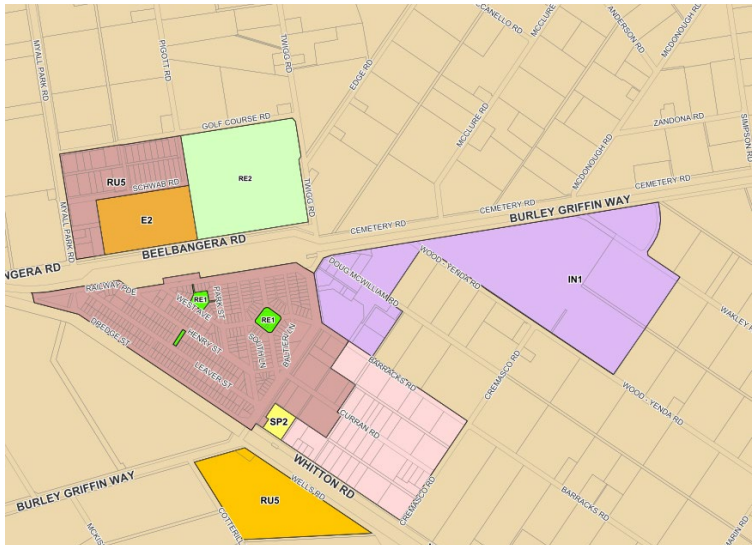


FIGURE 3: YENDA ZONING

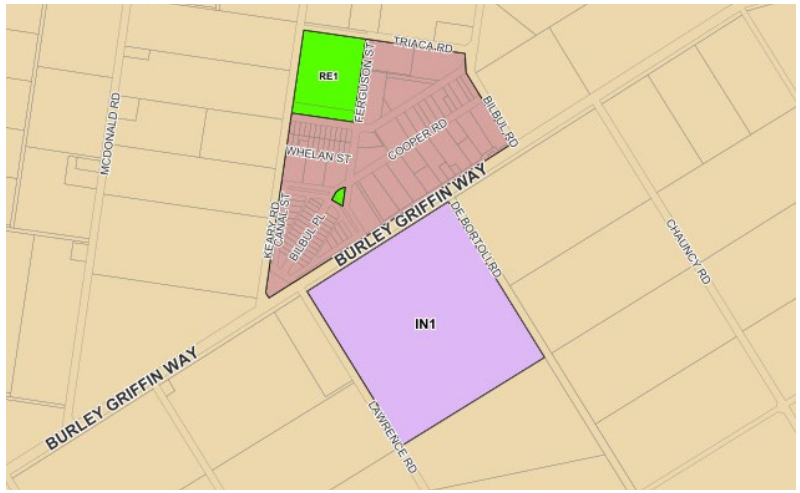


FIGURE 2: BILBUL ZONING

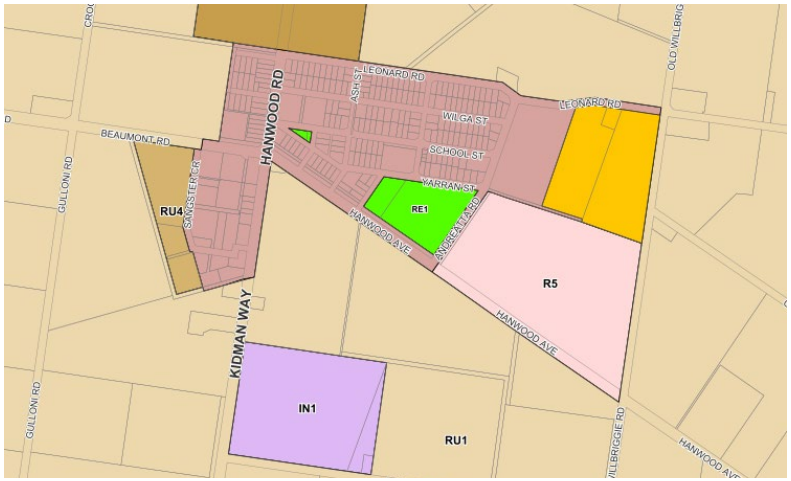


FIGURE 5: HANWOOD ZONING

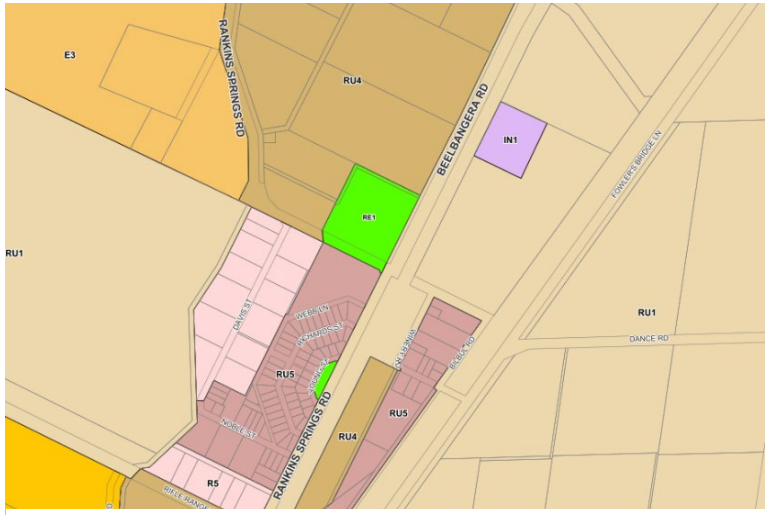


FIGURE 6:BELLBANGERA ZONING

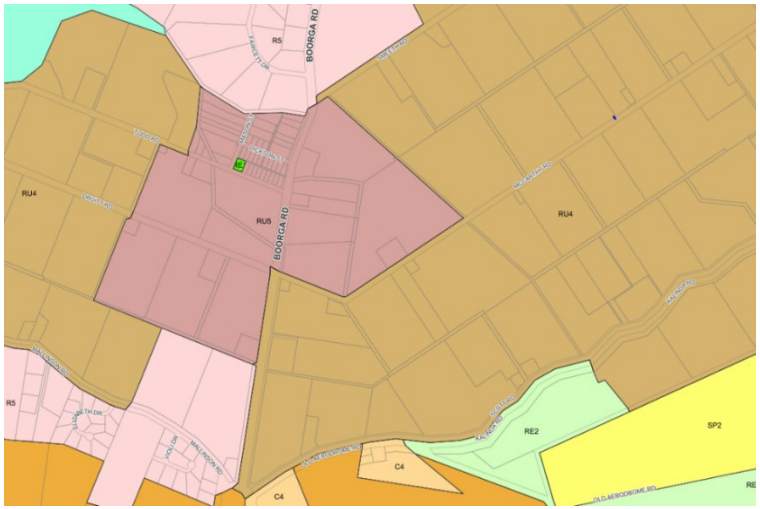


FIGURE 7: LAKE WYANGAN ZONING

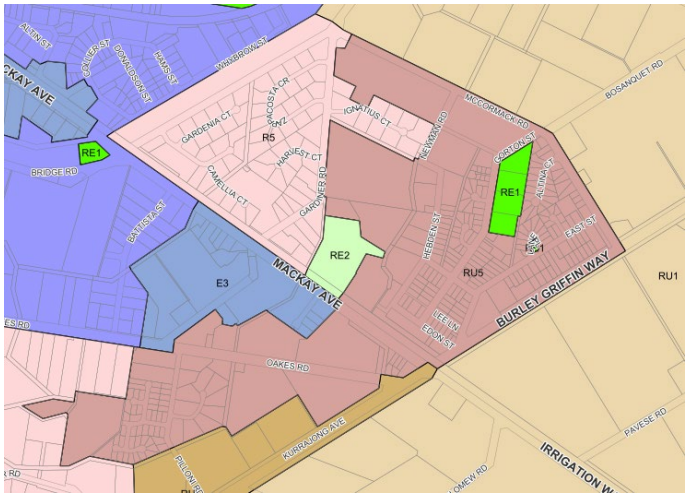


FIGURE 4: YOOGALI ZONING

3.17 FLOOR SPACE RATIO

The floor space ratio (FSR) of building on a site is the ratio of the gross floor area of all buildings within the site to the site area. The FSR for each Precinct is provided in Section 3.

3.17.1 Site Area

In determining the site area of proposed development for the purpose of applying a floor space ratio, the site area is taken to be:

a) If the proposed development is to be carried out on only one lot, the area of that lot, or
b) if the proposed development is to be carried out on two or more lots, the area of any lot on which the development is proposed to be carried out that has at least one common boundary with another lot on which the development is being carried out.

3.17.2 Exclusion from Site Area

The following land must be excluded from site area:

a) Land on which the proposed development is prohibited, whether under this Plan or any other law.
b) Community land or a public place.

3.17.3 Gross Floor Area (GFA)

GFA is the sum of the floor area of each floor of a building measured from the internal face of external walls, or from the internal face of walls separating the building from any other building, measured at a height of 1.4 m above the floor, and includes:

a) The area of a mezzanine, and
b) habitable rooms in a basement or an attic, and
c) any auditorium, cinema, and the like in a basement or attic,

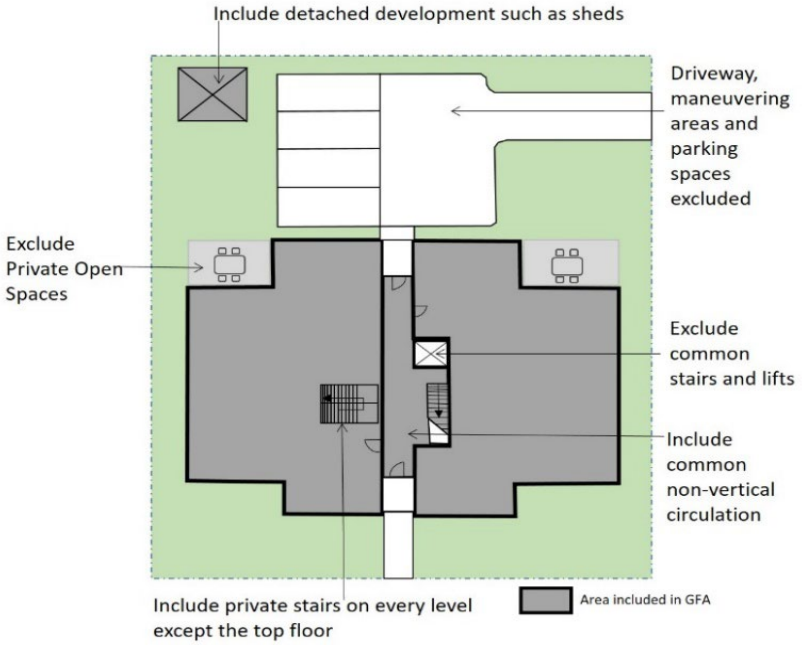


FIGURE 8: HOW TO MEASURE FSR

But Excludes:

d) any area for common vertical circulation, such as lifts and stairs, and
e) any basement -
   i. storage, and
   ii. vehicular access, loading areas, garbage and services, and

f) plant rooms, lift towers and other areas used exclusively for mechanical services or ducting, and
g) car parking to meet any requirements of the consent authority (including access to that car parking), and
h) any space used for the loading or unloading of goods (including access to it), and
i) terraces and balconies with outer walls less than 1.4 m high, and
j) principle private open space areas, and
k) voids above a floor at the level of a storey or storey above.

4.0 DWELLINGS

4.1 APPLICATION OF THIS SECTION

This section applies to new dwellings or alterations or additions to existing dwellings in the following zones:

a) R1 General Residential.
b) R3 Medium Density Residential
c) R5 Large Lot Residential.
d) RU5 Village.

4.2 SITING OF DWELLINGS

An integral component of the planning stage for the construction of a dwelling is the preparation of a Site Analysis Plan which identifies the constraints and opportunities of the site, the immediate locality and the wider environment. The *Environmental Planning and Assessment Act 1979* requires that every development application include a Site Analysis Plan which in general includes:

The Site

a) Site dimensions (length and width).
b) Topography – contours, north point, natural drainage.
c) Services – location of all services and connections to services (water, sewer, gas, telecom and electricity).
d) Existing vegetation – location of significant trees and spread.
e) Location of all structures on site.
f) Location of vehicle and pedestrian access.

The Surrounds

g) Neighbouring buildings – location and number of storeys.
h) Privacy – adjoining private open spaces, windows with potential for overlooking.
i) Significant trees on adjacent properties.
j) Street frontage features.
k) Any public open spaces in the area.
l) Any natural hazard areas – flooding or bushfire.

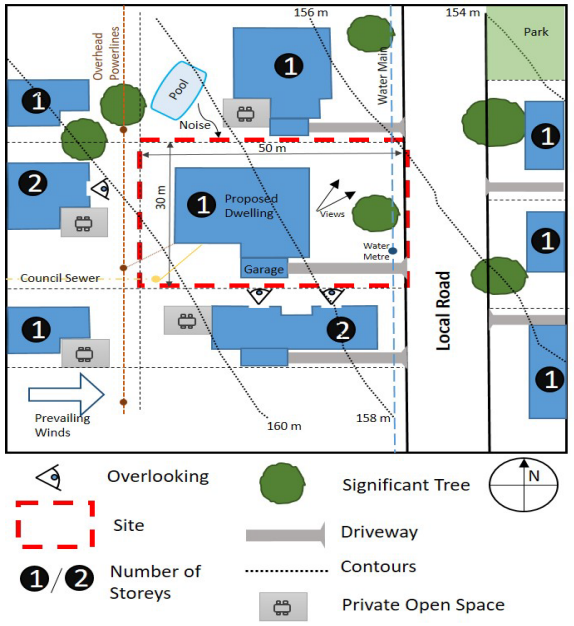


FIGURE 9: SITE ANALYSIS PLAN EXAMPLE

4.3 STREETSCAPE CONTROLS

Streetscapes encompass buildings, street and landscape design and includes all adjacent buildings, landscaping and fencing, traffic treatments, paths, driveways and street surfaces.

Objective: To create streetscapes which are visually appealing and avoid building elements which lack articulation.

Controls

a) Dwellings on corner blocks must be designed to address both street frontages.
b) The primary street façade of a dwelling should address the street and incorporate at least two of the following design features:
   - entry feature or porch;
   - awnings or other features over windows;
   - recessing or projecting architectural elements;
   - open veranda; or
   - bay windows or similar features.
c) Dwellings should be consistent with the scale and character of adjoining dwellings and the locality in general.
d) Garages which exceed 50% of the building's front elevation must be recessed behind the front building line of the dwelling which must include a porch or entrance treatment and windows to add visual interest.
e) Dwellings should be designed to provide a major window to a habitable room facing the street.
f) Landscaping should be used to enhance the appearance of the development and the surrounding area including the road reserve.
g) Driveways must be located to preserve significant street trees.

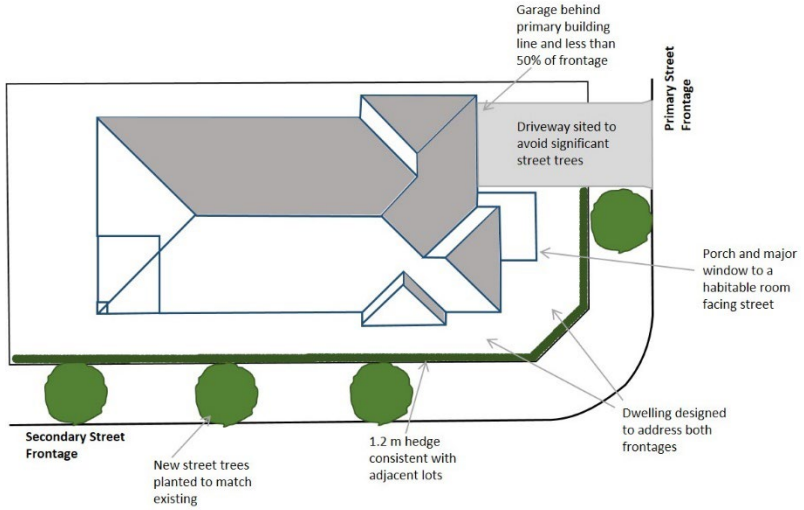


FIGURE 11: STREETSCAPE CONTROLS

4.4 BUILDING DESIGN

Dwelling design in Griffith should respect the dominant design themes of the Precinct and be appropriately scaled to enable differentiation and visual interest between the dwellings when viewed from public streets. Good design achieves a mix of dwelling sizes, providing housing choice for different demographics, lifestyles and household budgets.

Objective: To promote housing design that is consistent with and enhances the character and amenity of the area and has regard for the topography and existing adjoining land uses.

Controls

a) The design of dwellings must have regard to the character statement of the Precinct provided at Section 3.
b) Front walls of any dwelling visible from the street must not exceed 5 m in length without a physical change.
c) The side walls in any one dwelling visible from the street or public place must not exceed 10 m in length without a physical change.
d) Windows and doors in facades facing the street must be provided in a balanced manner and respond to the orientation and internal uses.
e) Materials must be selected to provide consistency within the locality.
f) Buildings must be sited and designed to ensure reasonable daylight to habitable rooms in adjacent dwellings and avoid overshadowing of neighbouring private open spaces (see Section 4.6 and 4.9.

4.5 HEIGHT

To manage the bulk and scale of new dwellings, height should be limited to respond to the character of the precinct and streetscape. Height controls aid in maximising privacy, solar access and views.

Objective: To ensure the height of buildings maintains consistency and continuity of the character of residential areas and precincts and optimises privacy, solar access and views.

Controls

a) The maximum height of new dwellings should not exceed 9.0 m above the natural ground level measured to the ridge of the roof.
b) The height of a dwelling should suit the streetscape, maintain view corridors and not unreasonably restrict sunlight to adjacent properties.
c) Development plans submitted for two storey dwellings must show Reduced Levels (RL) taken from a fixed datum point (AHD) for the maximum ridge height and natural ground levels for two storey development.
d) Proposed tree planting should be consistent with the scale of the dwelling.

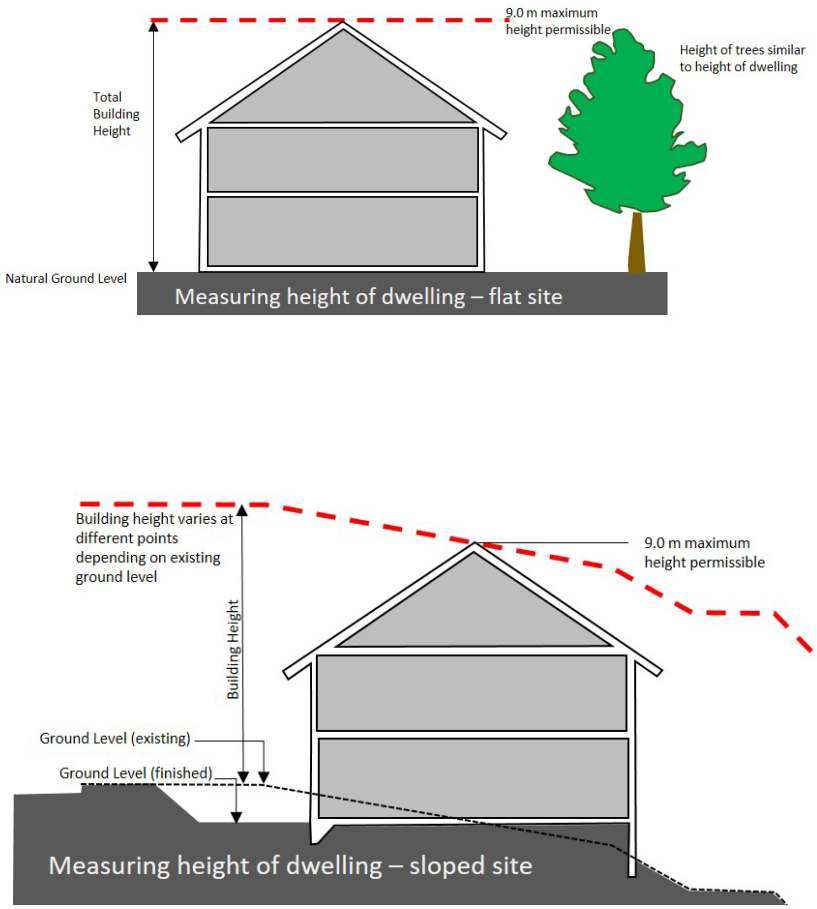


FIGURE 12: HOW TO MEASURE THE HEIGHT OF BUILDINGS

4.6 SOLAR ACCESS AND ENERGY EFFICIENCY

The solar access of a dwelling refers to its potential to receive adequate sunlight to living and recreation areas.

Objective: To provide reasonable access for sunlight to living areas within buildings and to open space around buildings, and to reduce energy consumption.

Controls

a) Solar access must be available between the hours of 9 am and 5 pm for a minimum duration of 3 hours to any living area on the 22nd of June for each respective dwelling.
b) Where possible, buildings should be oriented on a north-south, east-west axis to maximise solar access to living areas (see **Figure 14**).
c) Windows should be located and shaded so as to reduce summer heat load and to permit entry of winter sunlight (see **Figure 13**).
d) Outdoor clothes drying areas with access to sunlight and breezes should be provided.
e) Shadow diagrams or a solar study must be provided by the applicant for two storey buildings and for all other development where there is a reasonable likelihood of the development causing overshadowing impacts on adjoining property. The shadow diagram must include the following:
    - North point (true solar north);
    - scale (show ratio and bar scale);
    - position of existing and proposed buildings and private open space on the site;
    - position of existing buildings and private open space on adjoining land; and
    - shadows cast by existing and proposed buildings at the winter solstice (22 June) for 9.00 am, 12 noon and 3.00 pm.
    - Living spaces of adjoining development must receive at least 3 hours of sunlight on the winter solstice.

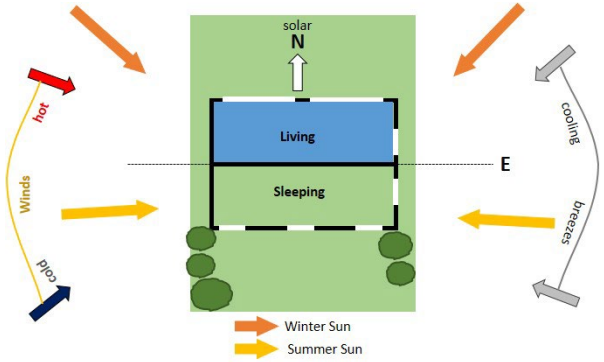


FIGURE 14: ORIENTING A HOUSE FOR CLIMATE

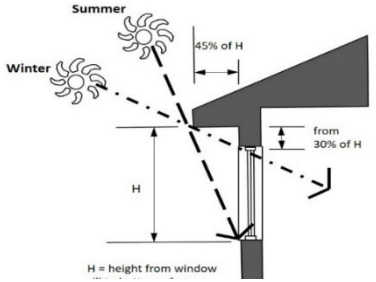


FIGURE 13: DESIGNING EAVES

4.7 SETBACKS

Locating dwellings within a certain building envelope on a site via the use of setbacks is a method of enhancing the streetscape, improving visual amenity and protecting the privacy of and sunlight to adjacent dwellings.

Objectives: To ensure that setbacks reflect the objectives, planned densities, streetscapes, topography and land use structures of different precincts – including the facilitation of affordable housing.

4.7.1 FRONT SETBACKS

The front setback of a dwelling should blend with the streetscape and the setbacks of adjacent dwellings. Some streets contain dwellings with deep setbacks such as Carrathool Street, while other streets contain smaller setbacks such as those located in East Griffith.

Controls

a) Front setbacks must generally be 6 m, however a reduced setback of 4.5 m will be considered provided adequate justification is detailed in a Variation Request as per section 1.5. The Variation Request must consider, among other matters:
   I. Impact on streetscape.
   II. Privacy and amenity impacts caused by reduced setback on neighbours.
   III. Setbacks of other dwellings within 40m of the boundary of the lot.
   IV. Height, scale and bulk of dwelling when viewed from the street.

b) Front setbacks in the Collina Growth Area and the Lake Wyangan Growth Area (refer to **Section 12**) are permitted to be 4.5 m.
c) Garages must be setback a minimum of 5.5 m.

*Note: **Section 4.8** contains Character Conservation Areas in which front setback trends within the streetscape must be maintained.*

Corner Lots

d) 4.0 m for primary road frontage.
   I. 5.5 m garage setback
e) 2.0 m for secondary road frontage.
   I. 3.5 m garage setback

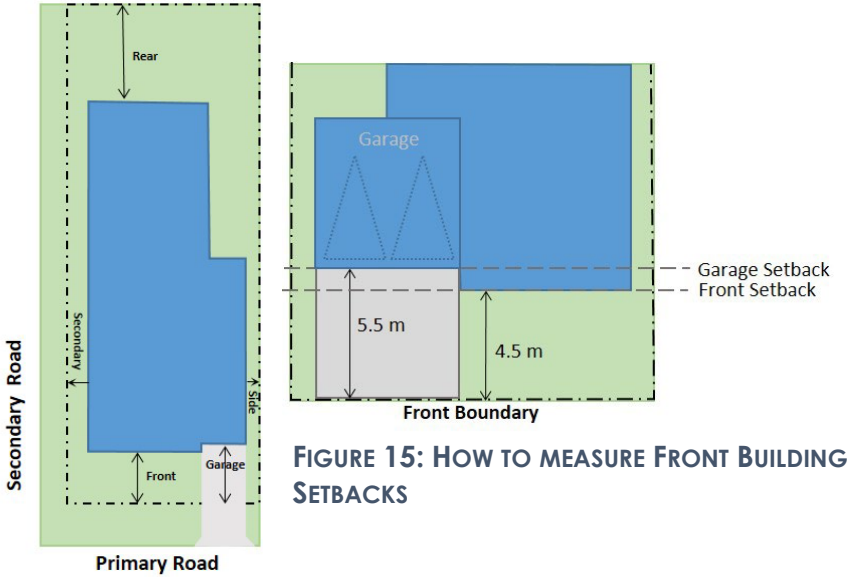


FIGURE 15: HOW TO MEASURE FRONT BUILDING SETBACKS

4.7.2 BUILDING ARTICULATION ZONE

A Building Articulation Zone is an area of a lot in front of the building line setback, within which building elements which add articulation to the development are permitted.

Controls

a) The building articulation zone is 1.5 m for the primary street frontage and 0.75 m for the secondary street frontage.
b) The building element must be external to the primary liveable floor area of the dwelling and not include garages or carports.
c) Articulation elements must be a maximum of 25% of the area of the articulation zone.
d) Articulation elements are permitted to start behind the required building lines.

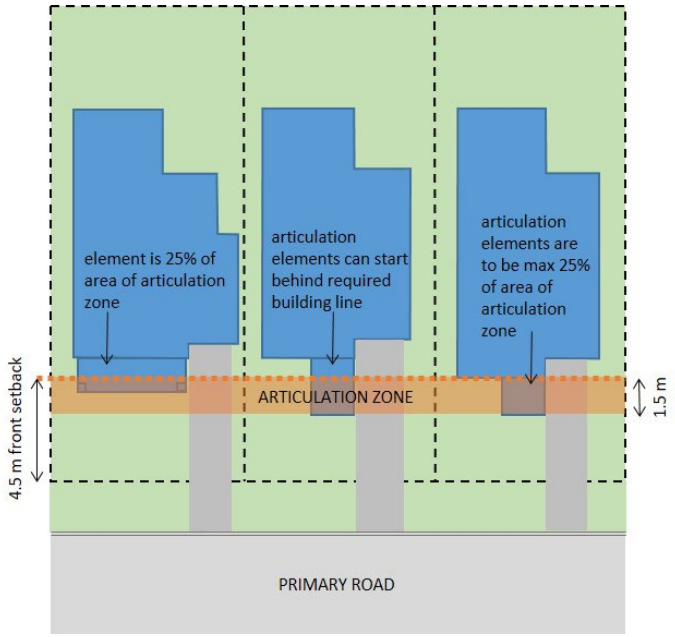


FIGURE 16: BUILDING ARTICULATION ZONE

4.7.3 SIDE SETBACKS

Side setbacks are necessary to provide appropriate separation distances between dwellings while maximising the dwellings street frontage and permitting habitable rooms to be oriented to the front of the lot.

Controls

a) Single storey dwellings: minimum setback is 0.9 m with the eaves (overhang) setback a minimum of 450 mm.
b) Two storey dwellings: minimum setback of the upper storey is 1.5 m with the eaves (overhang) setback a minimum of 900 mm.

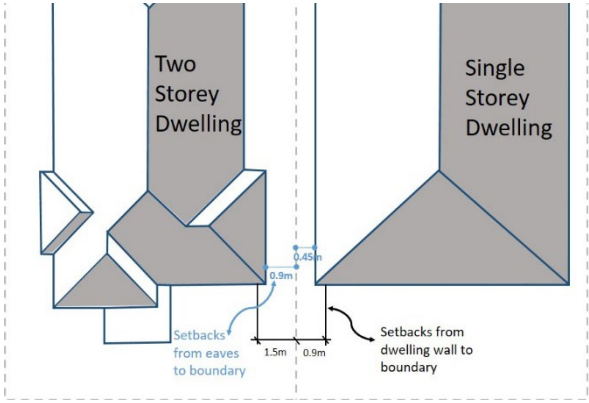


FIGURE 17: HOW TO MEASURE SIDE BUILDING SETBACKS

4.7.4 REAR SETBACKS

Rear setbacks allow for separation distances between neighbouring dwellings to provide visual and acoustic privacy.

Controls

a) Ground level: minimum setback is 2 m
b) Upper storeys: minimum setback is 3 m.
c) If a dual occupancy on a corner lot has a dwelling fronting different roads, the rear of each dwelling is to be treated as a side boundary for the purposes of determining the setbacks (see **Figure 31**).

4.8 CHARACTER CONSERVATION AREAS

This section contains specific areas of Griffith which have been historically developed for single detached dwellings with larger front setbacks and previous development controls required uniformed building lines. These areas contain established front gardens with setbacks of between 8 and 10 m. Some exceptions to these setbacks have been approved over the years, but on balance a uniform building line has been maintained. The purpose of the Character Conservation Area (CCA's) is to preserve historical neighbourhood character. Rear yard dual occupancies and secondary dwellings should be supported subject to adherence to the relevant development controls in this DCP.

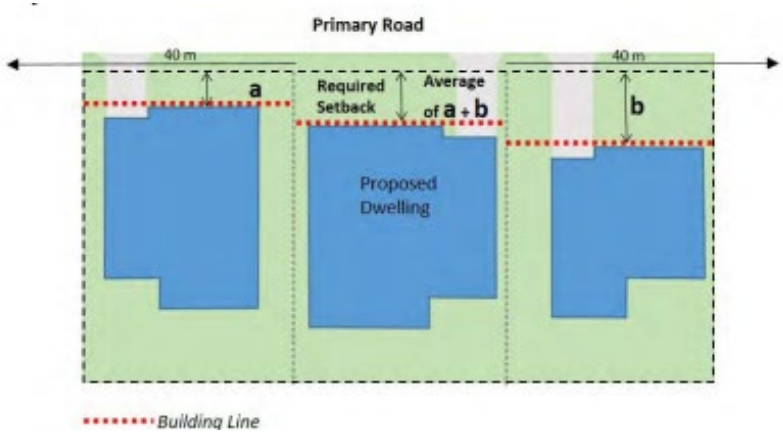
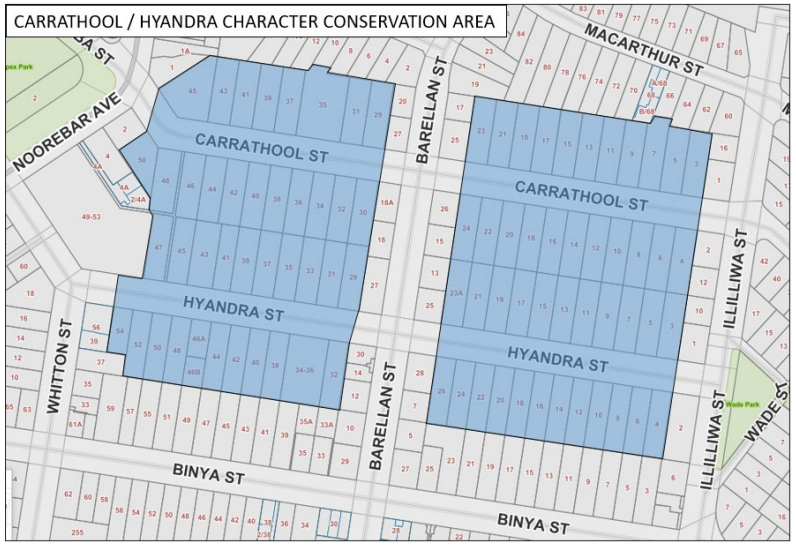


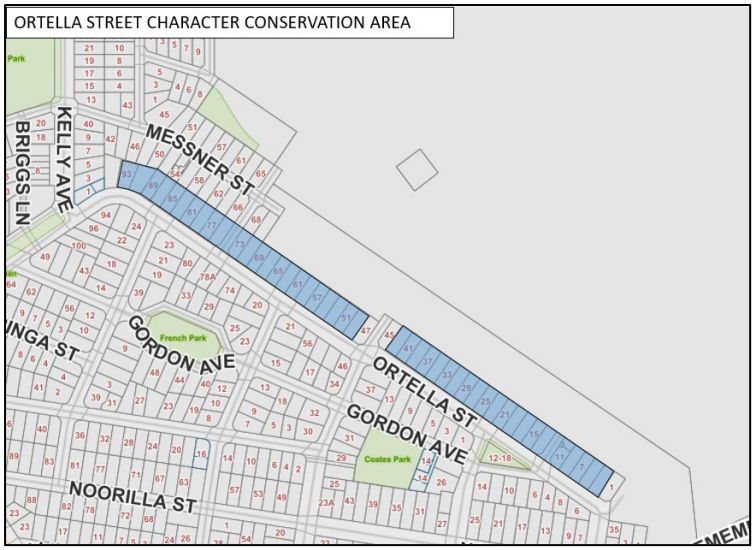
FIGURE 18: HOW TO MEASURE FRONT BUILDING SETBACKS IN CCA'S

Controls

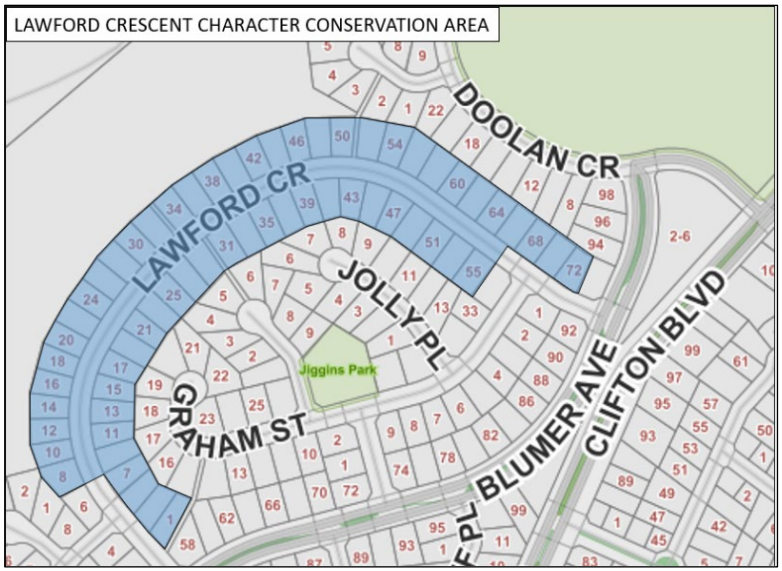
a) Within Character Conservation Areas, front setbacks must be the average of the nearest two dwellings within 40 metres of the boundary of the lot, plus or minus 1 m or 4.5 m, whichever is greater (**See Figure 15**), and
b) Garages must be setback 1 m from the required front building line.
c) Multi-dwelling development, manor houses and residential flat buildings will not be supported by Council in Character Conservation Areas.



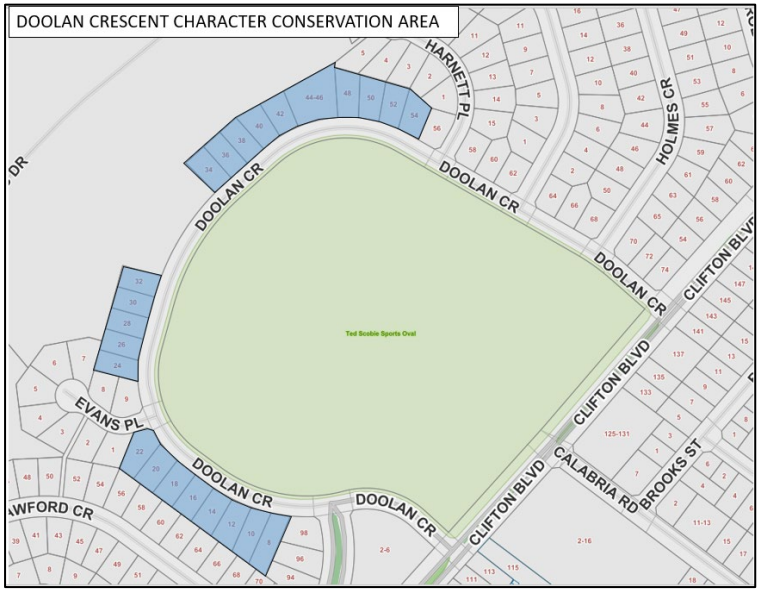
ORTELLA STREET CHARACTER CONSERVATION AREA

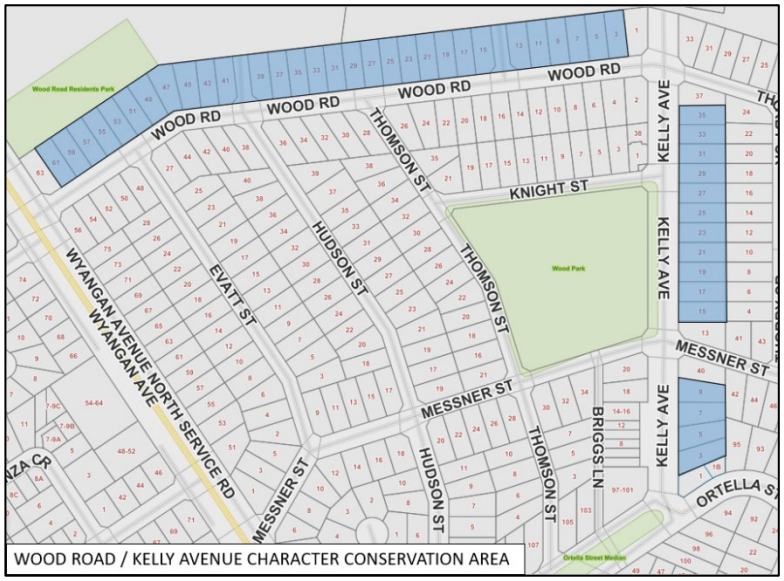


LAWFORD CRESCENT CHARACTER CONSERVATION AREA



DOOLAN CRESCENT CHARACTER CONSERVATION AREA





WOOD ROAD / KELLY AVENUE CHARACTER CONSERVATION AREA

4.9 VISUAL AND ACOUSTIC PRIVACY

Poor design and siting of dwellings can cause visual and acoustic impacts to neighbouring dwellings. Avoiding conflict with existing or future neighbours should be prioritised in the design of a dwelling.

Objective: To site and design dwellings to meet user requirements for visual and acoustic privacy, while minimising the visual and acoustic impacts of development on adjoining properties.

Controls

a) Dwellings or additions should be designed so that windows, balconies and decks are not situated directly opposite windows of primary rooms (living, kitchen, dining) of any adjoining dwellings, unless privacy issues can be addressed.

b) A privacy screen must be provided for any part of a window to a habitable room that is less than 1.5m above the finished floor level of that room if—

   I. the window faces and is less than 3m from a side or rear boundary and the room has a finished floor level of more than 1m above ground level (existing), or

   II. the window faces and is at least 3m, but not more than 6m, from a side or rear boundary and the room has a finished floor level of more than 3m above ground level (existing).

c) A privacy screen which must have:

   I. No individual opening more than 30mm wide, and

   II. A total area of all openings that is not more than 30% of the surface area of the screen or

   III. Consist of a pane of fixed translucent glass (see **Figure 20**).

d) Noise generating areas of development (e.g. air conditioning plant, swimming pool areas and the like) should be adequately screened or located away from the bedroom areas of neighbouring properties to minimise their impact.

e) Balconies on the first floor of the side / or rear portion of the dwelling must be designed to ensure over-looking is minimised, including the use of screens in accordance with the following table:

Setback from boundary with adjacent dwelling	Height of balcony above ground	Privacy screen required?
0 – 3 m	0m – 1m	No
	1m +	Yes
3m – 6m	0m – 1m	No
	1m – 2m	No
	2m +	Yes
6m +	0m – 1m	No
	1m – 2m	No
	2m - 4m	No
	> 4m	Council discretion

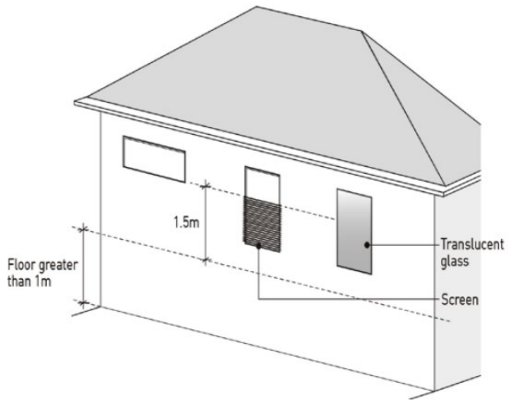


FIGURE 20: PRIVACY SCREEN EXAMPLES

4.10 PRIVATE OPEN SPACE

Dwellings must be designed in a manner which provides opportunities for outdoor recreation and relaxation. Private open spaces should be of a size and shape which promotes usability.

Objective: To provide private open space which meets user requirements for outdoor activities and use and to provide private open space areas that relate well to the living areas of dwellings.

Controls

a) Principal Private Open Space (PPOS) must incorporate an envelope with a width of a minimum of 3 m and a minimum area of 15 m^2 which is directly accessible from a communal living area. 50% of this envelope should receive direct sunlight for three hours between 9am and 5pm on 22nd June.

b) PPOS must not include driveways, turning areas, car spaces, narrow elongated curtilage areas and service areas. Screening must be provided to ensure privacy to users of the PPOS which can include fencing or planted screens.

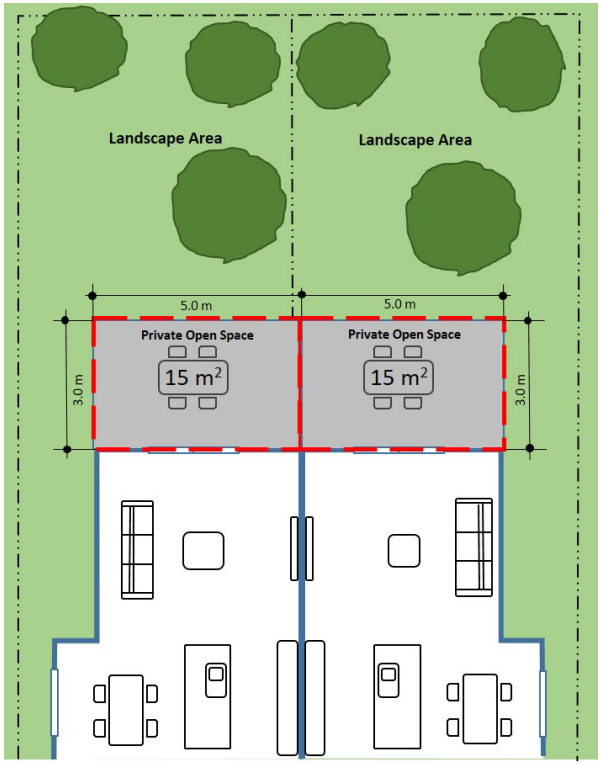


FIGURE 21: PRIVATE OPEN SPACE EXAMPLE

4.11 LANDSCAPED AREA CONTROLS

Landscaped area means all areas on a development site of a permeable nature (e.g. grassed and vegetated areas etc), and impermeable or semi-permeable surfaces including decorative pathways, decks and patio areas.

Objective: To provide attractive landscape areas which reinforce the function of a street and enhance the appearance, amenity and energy efficiency of urban housing through integrated landscape design.

Controls

a) A minimum of 20% of the total site area should be comprised of landscaped area.
   - Development plans submitted to Council for approval must include calculations demonstrating compliance with this control in accordance with **Figure 22**.

b) Landscaping must include a suitable proportion of trees, other than palms, capable of reaching a mature height of 5 m or more in order to:
   - reduce the visual impact of buildings;
   - shade their western elevations from the hot afternoon summer sun;
   - promote privacy between sites; and
   - promote shade for car parking areas, outdoor recreation areas and children's play areas.

c) Planting requirements for new dwellings:
   - Establish plant species that are appropriate for the climate, soil, aspect and drainage of the locality;
   - Incorporate drought-resistant and native plant species wherever possible or appropriate;
   - Ensure trees do not, and will not in the future interfere with underground and overhead utilities; and
   - Landscaped area should establish adequate drainage, including the retention of stormwater on site and prevention of discharge runoff onto adjoining properties.

d) Principle Private Open Space areas in accordance with 4.10 are considered a landscape area.

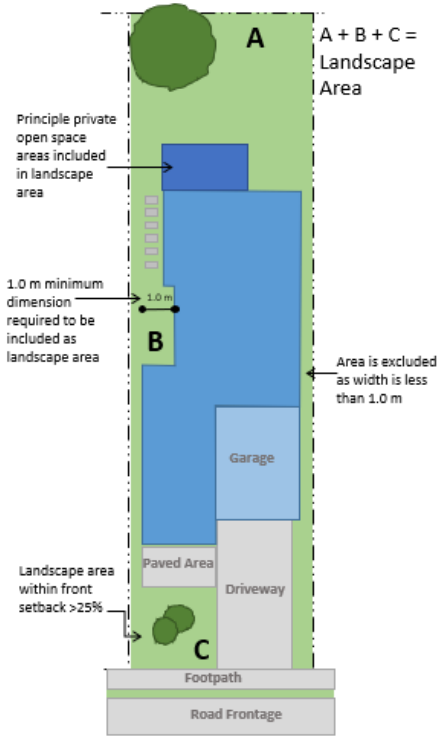


FIGURE 22: HOW TO MEASURE LANDSCAPE AREA

4.12 STREET TREES

The road reserve at the frontage of a development must be considered in the overall landscape design of a development including the installation of new street trees if there are none.

Objective: To ensure new development provides street tree planting appropriate for the streetscape.

Controls

a) The planting and establishment of new street trees must be in accordance with Council's Tree Policy (PG-CP-402).
b) New dwelling development must include the supply, installation and establishment of at least one advanced street tree for every 10 m of street frontage.
c) All trees installed must be advanced stock and at least 75 litre container size.
d) All trees installed must be established and maintained for a minimum period of 12 months. Any failed trees must be replaced immediately.
e) The selection of street tree species must be consistent with other trees in the road reserve and selected from Council's Tree Policy (PG-CP-402).
f) Street trees are not to be planted in developments in the R5 – Large Lot Residential zone unless approved by Council.



FIGURE 23: EXAMPLE OF STREET TREE PLANTING

4.13 VEHICLE ACCESS AND PARKING

Vehicle access and parking is an important consideration in the design of dwellings. Accessways are the area of a driveway between the road and the property boundary. Council's Parking Code is provided in **Appendix 1**.

Objective: To provide sufficient and convenient parking for residents and visitors so as to maintain the amenity of the site and adjoining properties.

Definitions

Accessway *means the area of land between the road carriageway and the property boundary of a subject lot.*

Driveway *means the vehicle manoeuvring area internal to the site from the accessway to garage, carport or parking area.*

Controls

a) Each dwelling must have an exclusive entitlement to at least one secure, undercover private parking space.
b) Parking must be provided in accordance with Council's Parking Code (**Appendix 1**) and the ratios provided in Section 3 for the Precinct.
c) Parking and access facilities must be designed and constructed in accordance with the requirements of *Council's Engineering Standards: Subdivision and Development* (as amended).
d) Accessways and driveways must be designed to enable vehicles to:
    - enter the parking space in a single turning movement; and
    - leave the parking space in no more than two turning movements.
e) Internal driveways should generally be a minimum of 3.5 m in width.

Note*: The construction of an accessway requires a Section 138 Approval from Council. Applications can be lodged through the NSW Planning Portal. More information available at: Constructing your Driveway | Griffith City Council (nsw.gov.au)*

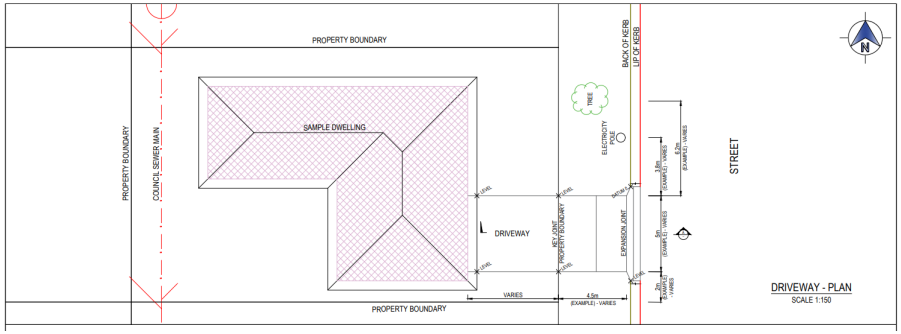


FIGURE 24: EXAMPLE OF A DRIVEWAY PLAN

4.14 SITE FACILITIES

Mailboxes, garbage enclosures, clotheslines and other site facilities should be sensitively integrated into the development and provided on the site plan submitted with the development application.

Objective: To ensure that site facilities are thoughtfully integrated into the development and are unobtrusive.

Controls

a) Waste and recycling bins should generally be located in areas and enclosures not visible from the street or a public space.
b) Open air clothes drying facilities must be provided in a secure and convenient location, which is adequately screened from streets and other public places, and where possible, should be separate from private open space. A minimum of 8 lineal metres should be provided for each dwelling.
c) A mail box structure should be centrally located, close to the primary street frontage and all boxes should be lockable.

4.15 RAINWATER TANKS

Rainwater tanks are required for new dwellings in accordance with the BASIX requirements for the development. The installation of some rainwater tanks for existing dwellings could be carried out without Council approval under SEPP (Exempt and Complying Development Codes) 2008.

Objective: To ensure rainwater tanks are provided for dwellings in locations which do not impact the visual amenity of the locality.

Controls

a) Tanks must be constructed in accordance with Council's Urban Water Tanks (WS-CP-211) Policy.
b) The overflow from tanks must be connected back into stormwater system for the site and not into sewer infrastructure.
c) Tanks must be sited in areas which are not visible from the street, unless vegetative or other screening is provided.
d) Where tank water is proposed to be connected to the same plumbing as Council's reticulated water supply, a backflow prevention device must be fitted (by a licenced plumber) to the reticulated water service on the customer's side of the water meter. No connections are permitted between the water meter & the backflow prevention device.
e) Tanks should be fitted with a gutter flush, or first flush system to prevent foreign materials entering the tank.
f) Where tanks are located along a side boundary they should not obstruct access.

4.16 FENCING

The design of fences has an impact on the real and perceived safety and security of residents as well as on the amenity of the public domain and streetscape character. The visual impact, scale and design of fences needs to be carefully considered.

Objective: To ensure the streetscape does not become inundated with blank, bulky or obtrusive front or secondary frontage fencing.

Controls

a) Front and side return fences should:
   I. Generally be no higher than 1.2 m; and
   II. Generally be no higher than 0.9 m if it is a solid design and
   III. Reflect the design and character of the dwelling and other buildings along the street.

b) Front fences higher than 1.2 m will be considered, but only where:
   I. The maximum height of the fence is 1.8 m;
   II. The lot has frontage to an arterial or collector road or the dwellings private open space is located in the front yard or where justification is provided in accordance with Section 1.5;
   III. Any solid fence must not exceed 2.5 m in length without some articulation, landscaping or alternative materials to provide visual interest.
      i. Alternatively, visually solid fences can be setback 1 m from the front boundary to facilitate screen plantings using tree and shrubs species capable of reducing the visual impact of the fence (ie. height and maturity must be at least equal to the height of the fence) (see **Figure 25**).

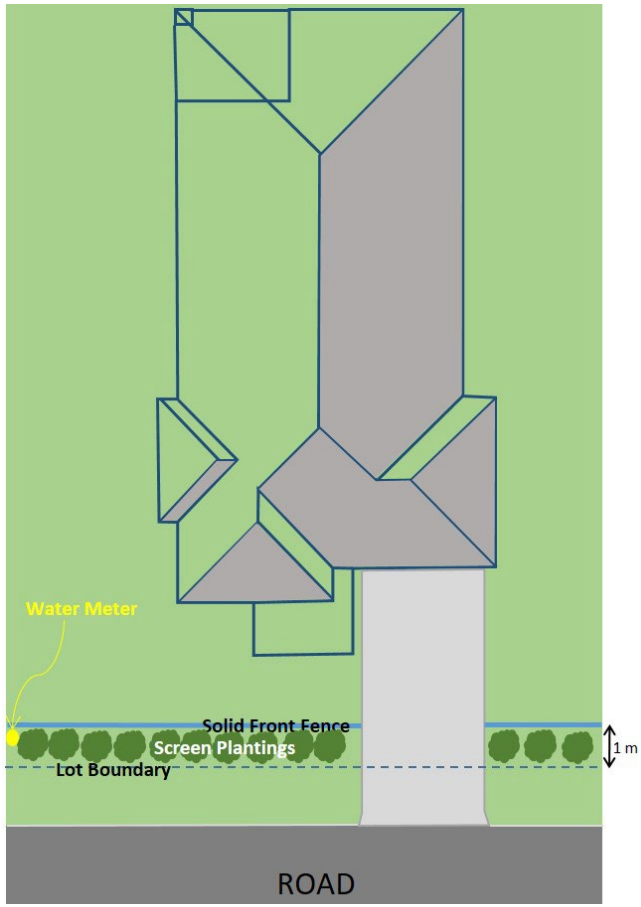


FIGURE 25: SOLID FRONT FENCE WITH LANDSCAPED SCREEN

IV. The fence will reflect the design and character of the dwelling and other buildings along the street;
V. The fence will not impede sight distances for traffic on public roads – a splay in the fence may be required for some lots.
VI. Avoid the use of galvanised steel, corrugated galvanised iron, coated steel or pre-painted steel; and
VII. The water meter must be accessible from the road reserve, integrated into the design of the fence and shown on plans submitted with a development application.

c) Side and Rear Fences

I. Side and rear fences (behind the building line) are to have a maximum height of 1.8 m above ground level;
    i. A lattice extension or similar of 300 mm can be considered based on a variation request submitted under Section 1.5. Overshadowing of neighbouring habitable rooms must be considered for any fence over 1.8m in height.
II. Side fences forward of the building line are to have a maximum height of 1.2 m, unless approval is granted for a front fence higher than 1.2 m in accordance with 4.16(b);
III. Galvanised steel, corrugated galvanised iron, coated steel or pre-painted steel fences are not permitted on street frontages of corner allotments within 4 m of the front building line (see **Figure 26**);
IV. Fencing on corner lots should be designed in accordance with **Figure 26**; and
V. Where fences are proposed in conjunction with a retaining wall, the combined height of the fence and retaining wall must not exceed 1.8 m above the existing ground level.

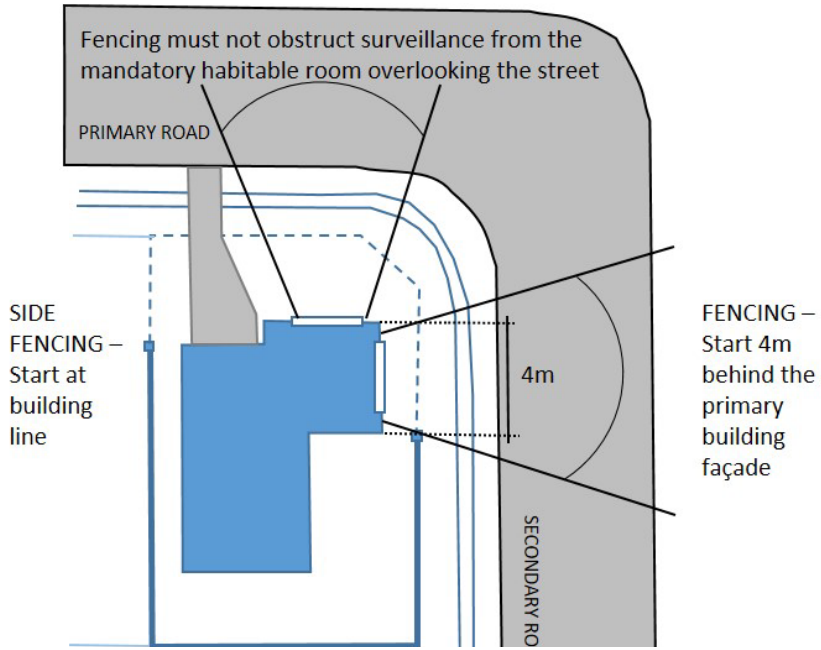


FIGURE 26: DESIGN OF FENCING ON CORNER LOTS

4.17 OUTBUILDING, GARAGES AND CARPORTS

Outbuildings include gazebos, patios, cubby houses, sheds, carports, garden sheds and the like.

Objective: To ensure that a dwelling's ancillary structures are sited and designed to positively contribute to the streetscape and do not detract from the character of the area.

Controls

a) General Controls
   I. Outbuildings must not be used as a dwelling, notwithstanding that a toilet, wash basin and / or shower may be installed with development consent.
   II. Development that is highly visible from a public place should be designed to integrate with the design and character of the dwelling. Where this is not possible, factory pre-coloured finishes will be required as a minimum and highly reflective surfaces are to be avoided.

b) Attached Garage Controls
   I. Garages must be setback a minimum of 5.5 m from the front boundary and 3.5 m from a secondary street frontage.
   II. Garages doors must be a maximum of 6 m wide.

c) Carport Controls
   I. Materials for carports must be sympathetic to the character of the street and design of the dwelling.

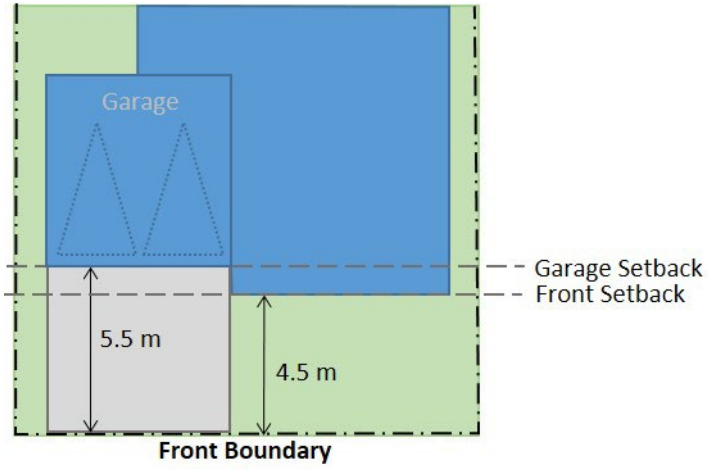


FIGURE 27: ATTACHED GARAGE SETBACKS

   II. Carports must be setback to the building line of an existing dwelling or at the front setback requirement for a new dwelling.
   III. Carports that are integrated into the design of the dwelling may be located forward of the building line only in areas not identified as a Character Conservation Area in Section 4.8.
      i. A 3 m setback from the front boundary must be maintained.

   ***Note**: Integration can include replicating architectural style, use of similar building materials as the dwelling and matching existing roof pitch.*

   IV. Carports which have an open side elevation may be built to the side boundary.

d) Outbuildings

Outbuildings include any building or structure not attached to the dwelling (including a detached garage) but excludes a pool

I. Outbuildings can be setback a minimum of 450 mm from either a side or rear boundary and 900mm from the other boundary.
II. A reduced setback may be considered based on the merits of the proposal. A variation request must be lodged in accordance with Section 1.5 with the development application for reduced setbacks;
III. Outbuildings must not be more than 60 m^2 in area or 10% of the lot area, whichever is greater.
IV. Outbuildings must not be more than 4.5 m in height to the ridge or 3.2 m to the eaves.
V. The finishes, materials and colours of the outbuilding are to complement the principal dwelling.
VI. Outbuildings must be located behind the building line and screened from view from the street by fencing, landscaping or the dwelling.
VII. Detached garages that are integrated into the design of the dwelling may be located forward of the building line.

***Note**: Integration can include replicating architectural style, use of similar building materials as the dwelling and matching existing roof pitch.*

VIII. Detached garages facing secondary frontages on corner lots (forward of the building line) must be sited and designed to be consistent with the design themes of the Precinct and street.

4.18 STORMWATER

Controlling stormwater through holding, reusing and discharging is an important consideration to be made in the residential development of land in order to support Council infrastructure and ensure water does not impact neighbours.

Objective: To ensure stormwater from new residential development including extensions and additions to existing houses, does not impact adjacent properties or Council's infrastructure.

Controls

a) Stormwater infrastructure must be designed and constructed in accordance with the requirements of Council's *Engineering Standards: Subdivision and Development* (as amended).
b) Onsite detention must be provided for those lots captured by and in accordance with Council's Onsite Detention Policy (CS-CP-404).
c) Applications for new dwellings and alterations and additions to existing dwellings must provide concept plans for the proposed and existing stormwater system in accordance with Council's *Engineering Standards: Subdivision and Development* (as amended) and Council's Onsite Detention Policy (CS-CP-404).
d) All stormwater from dwelling sites must be properly managed and not permitted to flow onto adjoining land unless legally created easements are established.

4.19 SWIMMING POOLS

Swimming pools that cannot be installed under SEPP (Exempt and Complying Development Codes) 2008 require development consent from Council. The controls in this Section supplement the controls of the *Swimming Pools Act 1992*.

Objective: To ensure swimming pools are sited and designed to ensure the privacy and amenity of residents and neighbours is maintained and Council's infrastructure is not impacted.

Controls

a) Pools and spas are to be located in the rear yard where possible with a minimum setback of 600 mm from any side or rear boundary.
b) Pools must not adversely affect the existing stormwater system.
c) Pools must be located away from mature trees with root structures which could impact on the integrity of the pool.
d) Should Council's water or sewer infrastructure be located on or in the proximity of the site, pools must be sited, designed and installed in accordance with Council's Buildings – Construction Near Water & Sewerage Assets Policy (CS-CP-316).
e) Pool pump and equipment associated with the pump must be designed so as to be sound insulated or isolated so that the noise emitted does not exceed an LAeq of 5 dB(A) above background noise level in any octave band from 63 Hz centre frequencies inclusive, as measured at the property boundary in accordance with the *Australian Standard AS 1055.1 - 1997, Acoustics - Description and measurement of environmental noise—General procedures.*

4.20 ESSENTIAL SERVICES

All new residential dwellings are expected to be serviced to a minimum level, including water, wastewater, electricity and telecommunications.

Objective: To ensure that the provision of all necessary essential services are provided to all development in residential zones.

Controls

a) All dwellings must be provided with an adequate energy supply that meets the requirements of BASIX and the relevant service provider.
    I. During the siting of new development, the Applicant must ensure all the requirements, setbacks and easements of relevant service providers are considered.
    Note: Applicants should refer to Clause 45 of the State Environmental Planning Policy (Transport and Infrastructure) 2021for referral requirements to electricity supply authorities.
b) Underground energy and telecommunications services should be provided where possible.
c) All dwellings must be provided with adequate water and sewer services.
    I. If the service is directly available, dwellings must be connected to Council's reticulated water and sewer services in accordance with Council's *Engineering Standards: Subdivision and Development* (as amended).

II. Lots which cannot be connected to Council's reticulated sewer service must install an on-site sewage management system in accordance with Council's On-site Sewage Management Strategy (as amended).
    i. The location and proposed method of wastewater disposal, ensuring a minimum area of 200 m^2 for effluent disposal, must be shown on plans submitted with a development application for a dwelling.
    ii. A Land Capability Assessment must be prepared by a suitably qualified Geotechnical Engineer and be provided with the development application for a dwelling on a lot with an area between 4000 m^2 and 1 ha which is not connected to Council's reticulated sewer service.

4.21 BUSHFIRE RISK

This section contains controls applying to Development Applications for a new dwelling-house, dwelling alteration or addition involving land that is classified as bushfire prone on the Bushfire Prone land Map.

Objective: To ensure dwellings are sited, designed and constructed to the standards required by Rural Fire Service.

Controls

a) A Bushfire Risk Assessment Report must be lodged together with the Statement of Environmental Effects in support of the Development Application on lands classified as bushfire prone. The Bushfire Risk Assessment Report must be prepared by a suitably qualified and experienced bushfire consultant and address the proposal's consistency with:
    I. Planning for Bushfire Protection guidelines;
    II. Australian Standard AS 3959; and
    III. Building in Bushfire Prone Areas Single Dwelling Applicants Kit prepared by the NSW Rural Fire Service.

b) Bushfire protection measures are to be placed wholly within the development site. Asset Protection Zones will not be accepted on existing Council reserves or other public lands.

c) Construction Certificate Applications will be assessed by Council in accordance with Australian Standard AS 3959 - Construction of Buildings in Bushfire Prone Areas. Applicants must provide a schedule of compliance with the applicable construction standards. This schedule will form part of the approval documentation and the applicant will be required to comply with it during the course of construction.

4.22 FROST CONTROL FANS

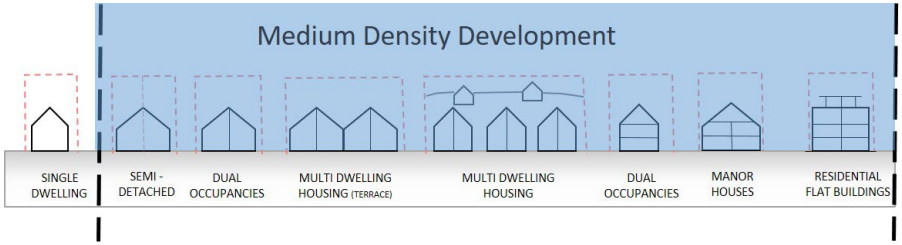
There are a number of operating frost control fans in the Griffith LGA. To lessen the impact of frost control fans on sensitive receivers and to ensure new development is designed to mitigate potential noise impacts, Griffith City Council has developed a Frost Control Fan Policy (CS-CP-309).

Objective: To ensure new residential development in close proximity to frost control fans are sited, designed and constructed to ensure compliance with the policy.

Controls

New residential development, including subdivision, within 1000 m of the location of an existing or approved (but not yet constructed) frost control fan must comply with the requirements of Council's Frost Control Policy (CS-CP-309).

5.0 MEDIUM DENSITY HOUSING



5.1 APPLICATION OF THIS SECTION

This section applies to medium density housing in the following zones:

a) R1 – General Residential
b) R3 – Medium Density Residential
c) RU5 – Village

The following housing types, as defined in the GLEP 2014 are considered medium density housing:

a) Secondary dwellings;
b) Dual occupancies;
c) Semi-detached dwellings;
d) Multi-dwelling housing; and

Secondary Dwelling

A secondary dwelling is a small self-contained dwelling that is located on the same lot as a principal dwelling whether attached or not. Secondary dwellings are often referred to as 'granny flats'.

Dual Occupancies

A dual occupancy is two principal dwellings on one lot whether they are attached or not. Dual occupancy developments allow for an increase in density while maintaining the visual appearance of the lot from the street.

Semi-Detached Dwellings

Refers to two dwellings that are attached by a common wall. Each dwelling is located on its own lot.

Multi-Dwelling Housing

Refers to three or more dwellings that are located on a single lot whether attached or not.

Manor House

A building containing 3 or 4 dwellings where each dwelling is attached to another dwelling by a common wall or floor and at least one dwelling is located above another dwelling and the building contains no more than 2 storeys

5.2 OBJECTIVES

a) To contribute to the availability of affordable housing.
b) To enable the development of a diversity of dwelling types.
c) To ensure medium density housing is designed to be compatible with the character of the locality and streetscape.
d) To encourage medium density affordable housing in areas central to essential community facilities, commercial areas and public transportation.

e) To ensure medium density housing has safe and efficient vehicle access, manoeuvring areas and car parking.

5.3 SECONDARY DWELLINGS

GLEP 2014 limits the area of a secondary dwelling to 60 m² or 50% of the total floor area of the principal dwelling (whichever is greater).

Objective: To contribute to affordable housing while promoting innovative housing solutions that are compatible with the surrounding residential environment.

Controls

a) Secondary dwellings are to be developed in consideration of the Precinct Statement for the locality in Section 3 and in accordance with the controls in Section 4, except where the controls in this section differ, in which case the controls in this section take precedence.

b) The finishes, materials and colours of the secondary dwelling are to complement the principal dwelling.

c) Windows and private open spaces of secondary dwellings must not overlook the private open space of adjacent dwellings. Windows that potentially overlook adjacent lots must either have obscured glazing, be screened or have a minimum sill height of 1.5 m above floor level.

d) No additional parking space is required for a secondary dwelling.

e) Secondary dwellings can share the private open space with the principal dwelling if the area is more than 20 m².

f) A separate driveway is not required for a secondary dwelling.

g) Subdivision of a secondary dwelling from the principal dwelling is not permitted.

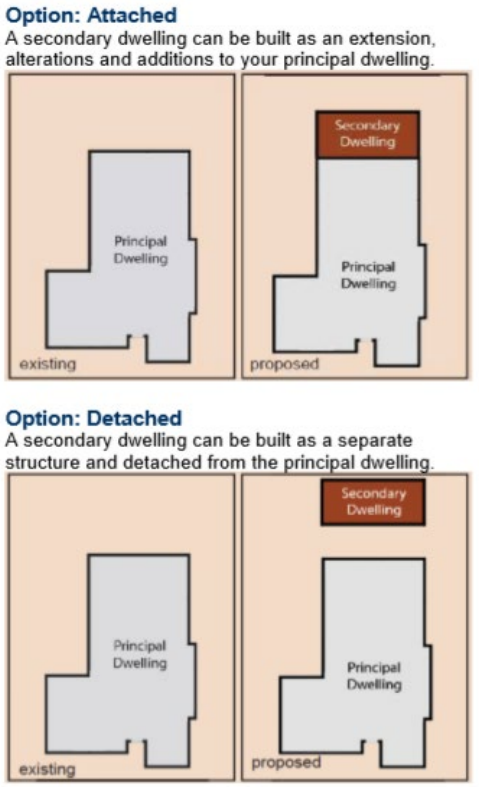


FIGURE 29: SECONDARY DWELLING OPTIONS (SOURCE: NSW GOVERNMENT)

5.4 DUAL OCCUPANCIES

Griffith has many suitable large lots which are appropriate for dual occupancies. Clause 4.1A of GLEP 2014 permits exceptions to minimum lot sizes for the subdivision of dual occupancies.

Objectives: To increase the density of suitable Precincts and add infill housing stock. To promote dual occupancies on corner lots.

Controls

a) Dual occupancies are to be developed in consideration of the Precinct Statement for the locality in Section 3 and in accordance with the controls in Section 4, except where the controls in this section differ, in which case the controls in this section take precedence.

Access and Parking

b) Each dwelling must have access to at least one undercover parking space.
c) Internal driveways should be a minimum of 3m in width.
d) Shared accessways must be prioritised for non-corner lots.
e) Driveways must be designed to allow vehicles to enter and leave the site in a forward direction for frontages on busy roads or where driveway lengths are greater than 30 m.

Setbacks

f) Each dwelling on a corner lot should have a frontage to a different street.

g) Dual occupancies on corner lots must have the following setbacks (refer to **Figure 31**).
   i. Front setbacks to primary roads - 3.5 m
   ii. Secondary setback to secondary road – 2 m
h) If a dual occupancy on a corner lot has one dwelling fronting the primary setback and one fronting the secondary setback, the rear of each dwelling is to be treated as a side boundary for the purposes of determining the setbacks (refer to **Figure 31**).
i) The minimum separation between detached dual occupancies must be 1.8 m.

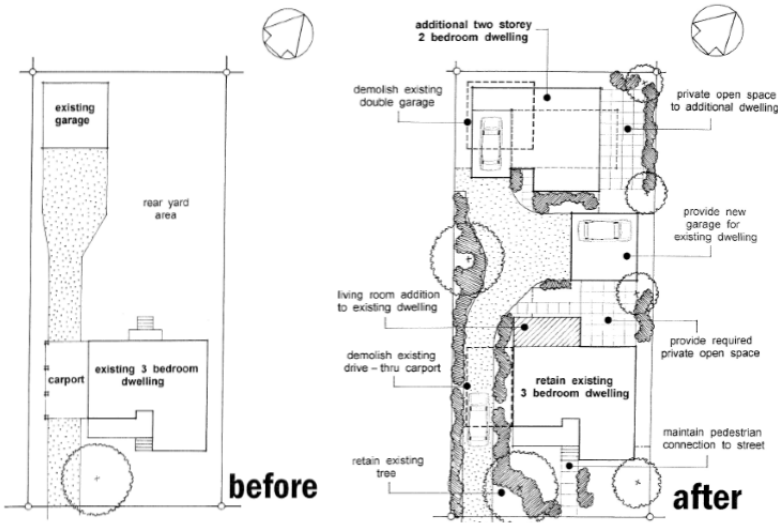


FIGURE 30: SITING A DUAL OCCUPANCY (SOURCE: MAITLAND COUNCIL)

j) Garages must be setback a minimum of 5.5 m from the front boundary and 3.5 m from a secondary street frontage.

k) Garages must be a maximum of 6 m wide.

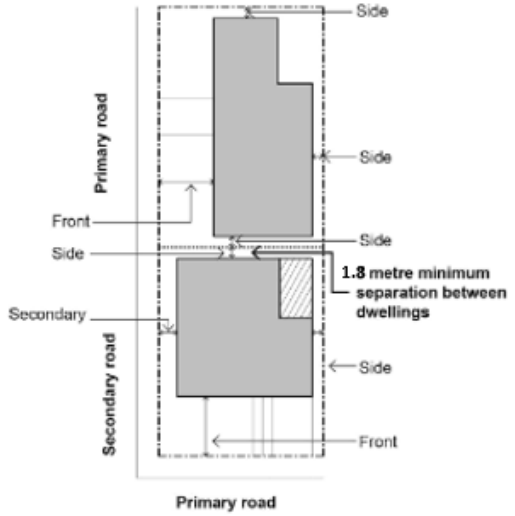


FIGURE 31: CORNER LOT SETBACKS - DUAL OCCUPANCIES

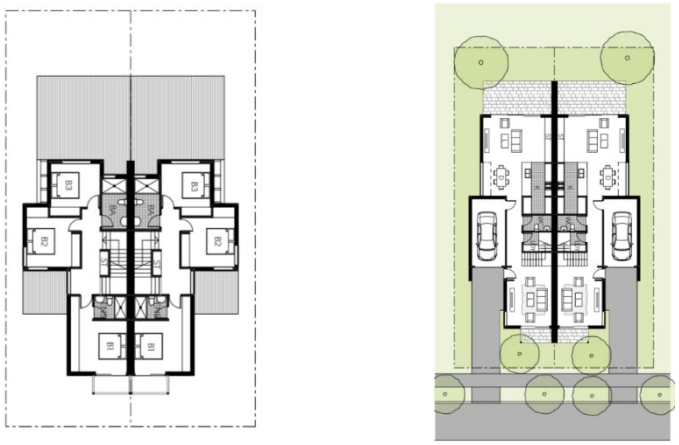


FIGURE 32: SITING A DUAL OCCUPANCY - SIDE BY SIDE (SOURCE: DPIE)

Principal Private Open Spaces (PPOS)

l) PPOS must be provided for each dwelling in accordance with **Section 4.10**.

m) PPOS may be provided on a first-floor balcony.

Landscaping

n) A minimum landscape area of 20% of the total lot area must be provided.

o) A preliminary Landscape Plan must be submitted with a development application for a dual occupancy which includes the nature strip and:

I. A combination of tree planting, for shade, mid height shrubs, lawn and ground covers;

II. 50% of the overall number of trees and shrubs should be species native to the region;

III. A reticulated sprinkler system should be provided; and

IV. An ongoing maintenance plan.

5.5 MULTI DWELLING HOUSING

Multi-dwelling housing (MDH) on vacant and redeveloped lots in Griffith will play an important role in the provision of affordable housing and rental housing. MDH is permissible with consent in the R1- General Residential zone. The Precinct Statements in Section 3 will identify which areas of Griffith are more suitable to MDH. Multi dwelling housing consists of three or more dwellings (attached or detached) on one lot each with access at ground level but does not include a residential flat building.



FIGURE 33: TERRACE HOUSING (SOURCE: DPIE)

Objective: To provide additional dwellings in strategic locations which do not impact the existing amenity of the locality.

5.5.1 TERRACE HOUSING

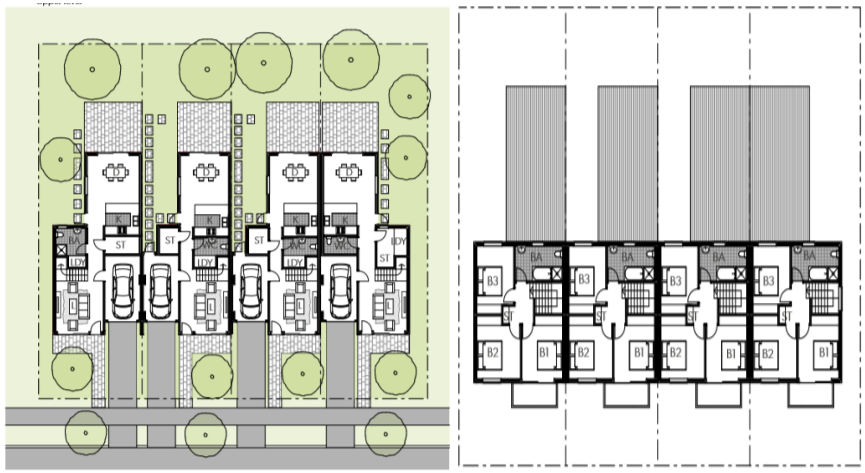


FIGURE 34: SITING TERRACE HOUSING (SOURCE: DPIE)

Terrace housing is a form of MDH where all dwellings face and generally follow the alignment of one or more public roads. The dwellings are located side by side, with no part of a dwelling located above another dwelling.

Controls

a) Terrace housing are to be developed in consideration of the Precinct Statement for the locality in Section 3 and in accordance with the controls in Section 4, except where the controls in this section differ, in which case the controls in this section take precedence.

Minimum Site Controls

b) The minimum lot size for carrying out terrace housing is 600 m^2 with a width at the building line of 18 m.
c) The minimum width of a terrace dwelling is:
    I. 4.0 m where a rear lane is provided and no garages face the street; and
    II. 4.5 m if the garage fronts the primary road.

Access and Parking

d) Each dwelling must have access to at least one undercover parking space.
e) Driveways must be a minimum of 3.5 m wide.
f) Shared accessways should be used where possible.
g) Should the lot have rear lane access, parking structures must be positioned at the rear of the site.
h) Driveways must be designed to allow vehicles to enter and leave the site in a forward direction for frontages on busy roads or where driveway lengths are greater than 30 m.
i) Should three or more dwellings be proposed with a shared access on busy roads, the driveway is to be a minimum width of 5.5 m for the first 6 m in length.
j) New internal lanes or driveways:
    I. Are to be overlooked by windows from habitable rooms and or private open space;
    II. Designed to accommodate appropriate service vehicles likely to access the site; and
    III. Have a maximum length of a dead-end laneway of 50 m or provide passing areas every 30 m.
k) Where on street parking is currently available in front of the development, the proposed driveways are located so that at least one parking space remains.
l) Footpaths are to be provided in accordance with Council's Pedestrian & Bicycle Strategy 2021 and Council's *Engineering Standards: Subdivision and Development* (as amended).

Streetscape Controls

m) At least 25% of the area forward of the building line is to be landscaped.
n) The maximum combined width of all garage door openings facing a primary or secondary road is as follows:

Lot Width	Maximum Width of Garage Door Openings
12 m – 15 m	5.2 m
>15 m – 20 m	6 m
>20 m	9.5 m
>25 m	14 m

Landscaping

o) A minimum landscape area of 15% of the total lot area must be provided.
p) A preliminary Landscape Plan must be submitted with a development application for terrace housing which includes the nature strip and:
    I. a combination of tree planting, for shade, mid height shrubs, lawn and ground covers;
    II. 50% of the overall number of trees and shrubs should be species native to the region;
    III. a reticulated sprinkler system should be provided; and

IV. an ongoing maintenance plan.

Principal Private Open Spaces (PPOS)

t) PPOS must be provided for each dwelling in accordance with Section 4.10.

Site Facilities

u) Garbage bins associated with dwellings in a multi dwelling housing development are to be stored in the rear yard, side setback or garage of the dwelling.
v) Mailboxes must be provided in accordance with Australia Post's requirements.

5.5.2 MULTI DWELLING HOUSING

Non terrace MDH contains three of more dwellings on one lot of land but are not residential flat buildings. Each dwelling typically will have its entry and private open space located at the ground level.

Controls

a) MDH are to be developed in consideration of the Precinct Statement for the locality in Section 3 and in accordance with the controls in Section 4, except where the controls in this section differ, in which case the controls in this section take precedence.

Minimum Site Controls

b) The minimum lot size for carrying out MDH is 600 m^2 with a width at the building line of 18 m.

Access and Parking

c) Each dwelling must have access to at least one undercover parking space.
d) Driveways must be a minimum of 3.5 m wide.
e) Shared accessways should be used where possible.
f) Should the lot have rear lane access, parking garages must be positioned at the rear of the site.
g) Driveways must be designed to allow vehicles to enter and leave the site in a forward direction for frontages on busy roads or where driveway lengths are greater than 15 m.

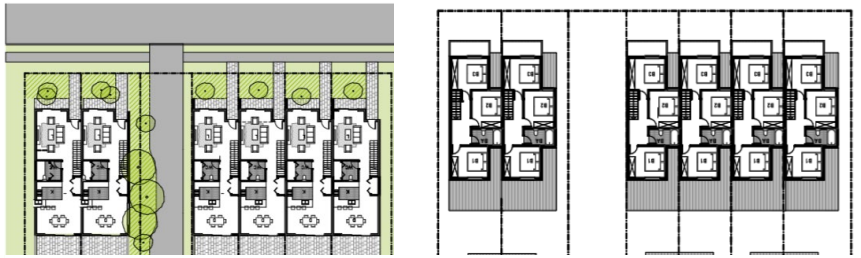


FIGURE 35: SITING MULTI DWELLING HOUSING



FIGURE 36: MULTI DWELLING HOUSING

h) Should three or more dwellings be proposed with a shared access on busy roads, the driveway is to be a minimum width of 5.5 m for the first 6 m in length.
i) New internal lanes or driveways:
    I. Are to be overlooked by windows for habitable rooms and or private open space;
    II. Should terminate with trees, open space of the window of a dwelling – not a garage or parking space.

III. Should be designed to accommodate appropriate service vehicles likely to access the site; and
IV. Have a maximum length of a dead-end laneway of 50 m or provide passing areas every 30 m.

j) Where on street parking is currently available in front of the development, the proposed driveways are located so that at least one parking space remains.
k) Visitor parking is to be located centrally within a development containing 5 or more dwellings where possible.
l) Internal driveway and lanes are to have lighting designed in accordance with AS 1158.3.1 that avoids light spill into adjacent development.
m) Footpaths are to be provided in accordance with Council's Pedestrian & Bicycle Strategy 2021 and Council's *Engineering Standards: Subdivision and Development* (as amended).

Streetscape Controls

n) At least 25% of the area forward of the building line is to be landscaped.
o) The MDH should be designed to suit the scale and character of the area.
p) The dwelling forming the front building line to a road is to be designed to address the street. Blank walls with little or no articulation are to be avoided.
q) The maximum width of garage door openings facing a primary or secondary road is as follows:

Lot Width	Maximum Width of Garage Door Openings
12 m – 15 m	5.2 m
>15 m – 20 m	6 m
>20 m	9.5 m
>25 m	14 m

Design Criteria

r) MDH must be a maximum of two storeys above ground level (existing).
s) Where possible, bedrooms should not to be located next to vehicular accessways, parking areas, air conditioning units or other noise sources.
t) The windows of habitable rooms in dwellings on opposite sides of an accessway are to be screened by dense landscaping. The landscaping should reach a mature height of 1.5 m. Alternatively, the windows should be located or designed to respect the privacy of other dwellings.
u) The minimum separation between two or more buildings containing a dwelling on the same lot is 1.8 m.

Landscaping

v) A minimum landscape area of 15% of the total lot area must be provided.
w) A preliminary Landscape Plan must be submitted with a development application for MDH which includes the nature strip and:
I. a combination of tree planting, for shade, mid height shrubs, lawn and ground covers;
II. 50% of the overall number of trees and shrubs should be species native to the region;
III. a reticulated sprinkler system should be provided; and

IV. an ongoing maintenance plan.

Principal Private Open Spaces (PPOS)

x) PPOS must be provided for each dwelling in accordance with section 4.10.

Site Facilities

y) Garbage bins associated with dwellings in a multi dwelling housing development are to be stored in the rear yard, side setback or garage of the dwelling.

z) Mailboxes must be provided in accordance with Australia Post's requirements.

6.0 RESIDENTIAL FLAT BUILDINGS

A residential flat building (RFB) contains three or more dwellings in one building over a number of storeys. RFB's can also include shop top housing. This section must be read in conjunction with State Environmental Planning Policy (Housing) 2021. RFB's are permissible in the following residential zones R1 – General Residential , R3 – Medium Density Residential and RU5 – Village

Objective: To provide affordable housing in strategic locations at high densities.

Controls

a) RFB's are to be developed in consideration of the Precinct Statement for the locality in Section 3 and in accordance with the controls in Section 4, except where the controls in this section differ, in which case the controls in this section take precedence.

b) RFB's will only be supported by Council in the following Residential Precincts:
   I. Central Griffith (North);
   II. Coolah; and
   III. Hospital

Minimum Site Controls

c) The minimum lot size for an RFB is 800 m^2 with a width at the building line of 20 m.

Housing Mix



FIGURE 37: EXAMPLES OF RESIDENTIAL FLAT BUILDINGS

d) A mix of dwelling types and sizes should be provided including a mix of studio, one bedroom, two bedroom and three bedroom units.

Minimum Setbacks

e) Front setbacks must be a minimum of 6 m.
f) Side and rear setbacks must be a minimum of 3 m.

Access and Parking

g) Parking must be located at the rear of the RFB, in a basement or in an enclosed 1st floor level.
h) Tandem parking is permitted where two parking spaces are designated for a single dwelling.
i) RFB's should be designed with a single driveway supporting two-way traffic with a minimum width of 5.5 m.
j) Internal vehicle circulation must be:
    I. at least 0.5 m setback from a fence;
    II. at least 1 m setback from another dwelling;
    III. at least 2.5 m setback from a window in a habitable room if the window exceeds 1m²; and
    IV. the setbacks should contain plants to soften edges.
k) All accessways, driveways, parking and vehicle manoeuvring areas must be in accordance with Council's *Engineering Standards: Subdivision and Development* (as amended).

Landscaping

l) A minimum landscape area of 15% of the total lot area is required.
m) A Landscape Plan must be submitted with a development application for an RFB which includes the nature strip and:
    I. a combination of tree planting, for shade, mid height shrubs, lawn and ground covers;
    II. 50% of the overall number of trees and shrubs are species native to the region;
    III. A reticulated sprinkler system should be provided; and
    IV. An ongoing maintenance plan.

Principal Private Open Space (PPOS)

n) A PPOS in the form of a balcony or terrace with a minimum area of 8 m² and a width of 2 m must be provided for all dwellings. Development that seeks to vary from this minimum must demonstrate negative impacts cannot be satisfactorily mitigated with design solutions.
    I. where this is not feasible for all dwellings, a communal open space with a minimum area of 40 m² and a minimum dimension of 5 m should be provided.



FIGURE 38: EXAMPLE OF A COMMUNAL OPEN SPACE AREA IN AN RFB

Waste Management

o) Shared waste storage areas must be incorporated into the design of the RFB and be located at the rear of the site or in the basement.

p) A minimum space for waste bin storage must be allocated per dwelling as follows:

I. up to 5 dwellings – one shared 660 litre bin stored in a shared area accessible by all dwellings

II. up to 10 dwellings – one shared 1100 litre bin stored in a shared area accessible to all dwellings.

q) Waste storage areas must be accessible to all occupants while being secure from non-occupants.

r) The design of the development must accommodate safe collection of bins. The bins must be accessible by service vehicles without the need for manual manoeuvring of the bins, or reversing.

s) Where waste storage must be in a lower level basement or internal areas, the building must be designed to accommodate private waste collection vehicles entering and exiting the site.

7.0 BOARDING HOUSES and CO-LIVING HOUSING

Boarding houses and co-living housing can provide a form of affordable rental accommodation for a wide range of tenants including singles, retirees, students, itinerant workers and young couples. *State Environmental Planning Policy (Housing) 2021* (HSEPP) was introduced to increase the supply and diversity of affordable rental and social housing throughout NSW. This section must be read in conjunction with HSEPP. Where there is an inconsistency between the HSEPP and this DCP, the HSEPP prevails.

Objective: To facilitate the effective delivery of new affordable housing and the retention of existing affordable housing in appropriate and accessible locations in Griffith and to ensure boarding houses achieve a high standard of urban design which are compatible with the desired amenity and character of the area.

Definitions

co-living housing *means a building or place that—*

(a) has at least 6 private rooms, some or all of which may have private kitchen and bathroom facilities, and

(b) provides occupants with a principal place of residence for at least 3 months, and

(c) has shared facilities, such as a communal living room, bathroom, kitchen or laundry, maintained by a managing agent, who provides management services 24 hours a day,

but does not include backpackers' accommodation, a boarding house, a group home, hotel or motel accommodation, seniors housing or a serviced apartment.

boarding house *means a building or place—*

(a) that provides residents with a principal place of residence for at least 3 months, and

(b) that contains shared facilities, such as a communal living room, bathroom, kitchen or laundry, and

(c) that contains rooms, some or all of which may have private kitchen and bathroom facilities, and

(d) used to provide affordable housing, and

(e) if not carried out by or on behalf of the Land and Housing Corporation—managed by a registered community housing provider,

but does not include backpackers' accommodation, co-living housing, a group home, hotel or motel accommodation, seniors housing or a serviced apartment.

Controls

General Controls

a) Boarding houses and co-living housing are to be developed in consideration of the Precinct Statement for the locality in Section 3 and in accordance with the controls in Section 4, except where the controls in this section differ, in which case the controls in this section take precedence.
b) All boarding houses are to be registered in accordance with the provisions of the *Boarding Houses Act 2012*, and are to be utilised in accordance with the *Boarding House Regulation 2013*.

c) The subdivision of boarding houses and co-living housing is not permitted.
d) Co-living housing must have a minimum of six private rooms.
e) If the boarding house or co-living housing has capacity for 20 or more occupants, a boarding room or onsite dwelling will be provided for a boarding house manager.
f) A Plan of Management for the boarding house or co-living housing must be submitted to and approved by Council as a condition of consent.

Siting

g) Boarding houses and co-living housing must not be located in cul-de-sacs or battle axe allotments.
h) All boarding house and co-living housing developments are to be designed to be compatible with the character of the Precinct and local area.
i) Where external changes to buildings are proposed or the construction of new boarding houses, a Local Character Statement is to be prepared and submitted with the development application including how the proposal responds to local character including:
    I. predominant building type;
    II. consistency with or improvement of the streetscape;
    III. predominant height of buildings;
    IV. front setbacks and landscaping;
    V. spacing of buildings;
    VI. materials and finishes; and
    VII. responding to prominent views and vistas.

Internal Building Design

j) Boarding houses and co-living housing must be limited to a maximum number of bedrooms using the following formula (rounded to the nearest whole number).

$$\text{No. of rooms} = \frac{\text{Site Area } (m^2)}{50} \times \text{FSR}$$

Example: $\frac{1000\ m^2}{50} \times 1{:}1 = 20$ *rooms*

k) Boarding houses and co-living housing must be designed to comply with the minimum access requirements contained in the National Construction Code (NCC) and *Australian Standard 1428 – Design for Access and Mobility* (as amended).
l) All boarding / co-living rooms are to have a gross floor area (excluding any area used for the purposes of private kitchen and bathroom facilities) of at least:
    I. 12 m^2 in the case of a boarding or co-living room intended to be used by a single lodger, or
    II. 16 m^2 in any other case.
    but,
    III. not exceeding 25 m^2.
m) Communal living rooms, where proposed, are to receive a minimum of 3 hours of direct sunlight between 9 am and 5 pm in mid-winter.
n) If a communal kitchen is provided, it must meet the following requirements:
    I. must have a minimum area of 6.5 m^2 or 1.2 m^2 for each resident occupying a boarding room that

does not contain a kitchenette, whichever is greater;
II. one sink is provided for every 6 occupants; and
III. one stove top for every 6 occupants.

o) Where development has 5 or more boarding or co-living rooms, at least one communal living room is to be provided.
p) Where self-contained boarding or co-living rooms are proposed they must be provided with the following facilities (at a minimum):
I. Ensuite: 2.1 m^2
II. Shower in ensuite: 0.8 m^2
III. Kitchenette: 2 m^2
q) Where shared facilities are proposed, they must be provided at a rate of 1 per 10 occupants in accordance with the following
I. 1 washing machine;
II. 1 clothes dryer or 20 m of external clothes line;
III. 1 bathroom; and
IV. 1 toilet and wash basin

Open Space

r) One principal private open space (PPOS) area of at least 20 m^2 with a minimum dimension of 3 m is to be provided for the use of occupants.
s) The PPOS must be accessible from commonly used spaces and have a minimal impact on bedrooms and adjoining properties in terms of noise generation.

Parking and Traffic

t) 0.4 parking spaces are to be provided for each boarding or co-living room.
u) One parking space will be provided for a bicycle and one will be provided for a motorcycle for every 5 boarding rooms.
v) Design of parking and manoeuvring areas must be in accordance with Council's Parking Code (see Appendix 1).

Privacy and Amenity

w) The main entrance of the boarding house / co-living housing should be located and designed to address the front streetscape (street elevation).
x) Pathways to the front entrance of the boarding house / co-living housing are to be located away from windows to boarding rooms to maximise privacy and amenity of lodgers.
y) Boarding houses / co-living housing must be designed to mitigate any impacts on the visual and acoustic privacy of neighbouring buildings and on the amenity of future residents.
z) An acoustic report prepared by a suitably qualified acoustic consultant may be required where there is the potential for noise impacts on occupants and neighbours.

Sustainability and Energy Efficiency

aa) A BASIX certificate is to be submitted with any development application for a boarding house or co-living housing which has a cost in excess of $50,000 in

accordance with *State Environmental Planning Policy (Sustainable Buildings) 2021*.

Plan of Management

bb) A Plan of Management must be provided as a condition of consent for new boarding houses and co-living housing which includes:

I. fees for residency;
II. management and supervision through an on-site manager or regular visits;
III. kitchen usage, the provision of meals or resident provision of meals;
IV. noise inside the boarding house and in adjacent private open space areas;
V. use of communal space and facilities
VI. parking for cars and restricting the parking of vehicles within the road reserve;
VII. cleanliness and maintenance of the property and grounds;
VIII. house rules (covering issues such as access to rooms, keeping shared facilities clean and tidy, visitors, pets, quiet enjoyment etc.); and
IX. 24 hour contact details.

8.0 LARGE LOT RESIDENTIAL

This section applies to development within the R5 – Large Lot Residential zone under the Griffith Local Environmental Plan 2014 (GLEP).

Objectives:

- ***a) To ensure residential development is of a type, scale and character which maintains an acceptable level of amenity in the urban-rural fringe.***
- ***b) To ensure new residential development does not impact environmentally sensitive areas and is designed to complement the landscape.***
- ***c) To ensure new dwellings and outbuildings including sheds are in keeping with and sympathetic to the character of the area.***

Controls

General Controls

a) Development must be in accordance with the controls in Section 4, except where the controls in this section differ, in which case the controls in this section take precedence.
b) The height of dwellings is not to exceed two storeys include any balcony and viewing platforms.

Setback Controls

c) All buildings including dwellings and outbuildings must be set back in accordance with the following table:

Setback	<3000m²	3000m² – 1 ha	1 ha to 2 ha	2 ha +
Front	7.5 m	7.5 m	10 m	15 m
Side	2.5 m	5 m	10 m	20 m
Rear	2.5 m	5 m	10 m	20 m
Arterial Road	20 m	20 m	20 m	20 m

d) A front setback articulation zone is permitted in accordance with **Section 4.7.2**
e) Dwellings must be setback a minimum of 10 m from drainage or supply channels and reserves or land zoned E2 – Environmental Conservation.
f) Dwellings must be setback a minimum of 40 m from active agricultural operations on lands in RU1 and RU4 zones.
g) Dwellings, on-site sewage management systems and wastewater disposal areas must be setback 100 m from the high-water line of any natural wetland or lake.

Landscaping

h) Side and rear setbacks must be landscaped, prioritising the installation of trees with a mature height of over 6 m. A landscaping management plan for the site must be submitted with a development application including a plan for the site which details:
    I. The proposed tree and shrub species to be planted on a plan;
    II. The proposed irrigation system to be installed and maintained;
    III. The watering regime for the plantings; and

IV. Protocols for replacing dead or dying trees and shrubs.

***Note**: A template Landscaping Management Plan is available at Council offices and on Council's website.*

i) The side and rear landscaped areas must be established, and irrigation system installed prior to the completion and occupation of the dwelling or any other structure. All other landscaping including lawn areas must be planted and established within 3 months of the dwelling being occupied.

Siting

j) Existing vegetation and mature trees should be retained, protected and or replaced where possible.

k) Dwellings must be sited away from visually prominent areas such as exposed ridgelines and utilise landscaped screens where prominent views to the site exist.

Services

l) Where no reticulated water supply is available a tanked water supply with a minimum of 45,000 litres of water is to be provided onsite.

m) Where Council's reticulated sewer is connected to or available to the lot, the dwelling must be connected to this service.

n) Where Council's reticulated sewer service cannot be connected to the lot, an approved effluent disposal system is to be installed in accordance with Council's On-Site Sewage Management Strategy.

Access

o) Access to the site must be sited and designed in accordance with Council's *Engineering Standards: Subdivision and Development* (as amended).

p) Driveways are to be a maximum of 7.5 m wide between the road carriageway and the property boundary.

q) Driveways with access to a sealed Council road must be constructed of bitumen or concrete between the road carriageway and the property boundary. An all-weather surface is permitted behind the property boundary.

r) Driveways with access to unsealed roads must be constructed of an all-weather gravel surface.

s) Driveways can only be located within 20% of the required setback areas.

t) Concrete piped culverts with headwalls are to be constructed to Council's *Engineering Standards: Subdivision and Development* (as amended) where drains exist.

u) Existing channel crossings are to be used to service all existing and proposed structures on the lot. Only one channel crossing per lot is permitted.

Outbuildings

Outbuildings include any building or structure not attached to the dwelling but excludes a pool.

v) The maximum floor area of all outbuildings is 15% of the total lot area.

w) The maximum height of outbuildings is 5.5 m to the peak and 4 m to eaves.

x) Outbuildings must be ancillary to an approved dwelling. At a minimum, a concept plan for the site including a dwelling and all proposed accessways and driveways must be approved prior to the construction of an outbuilding.

y) Outbuildings must be located in the rear yard and substantially shielded from view from the street by the dwelling, landscaping or fencing.

   I. An exception to this is a detached garage which has been designed to complement the dwelling which can be built to the building line, but must not dominant the street frontage.

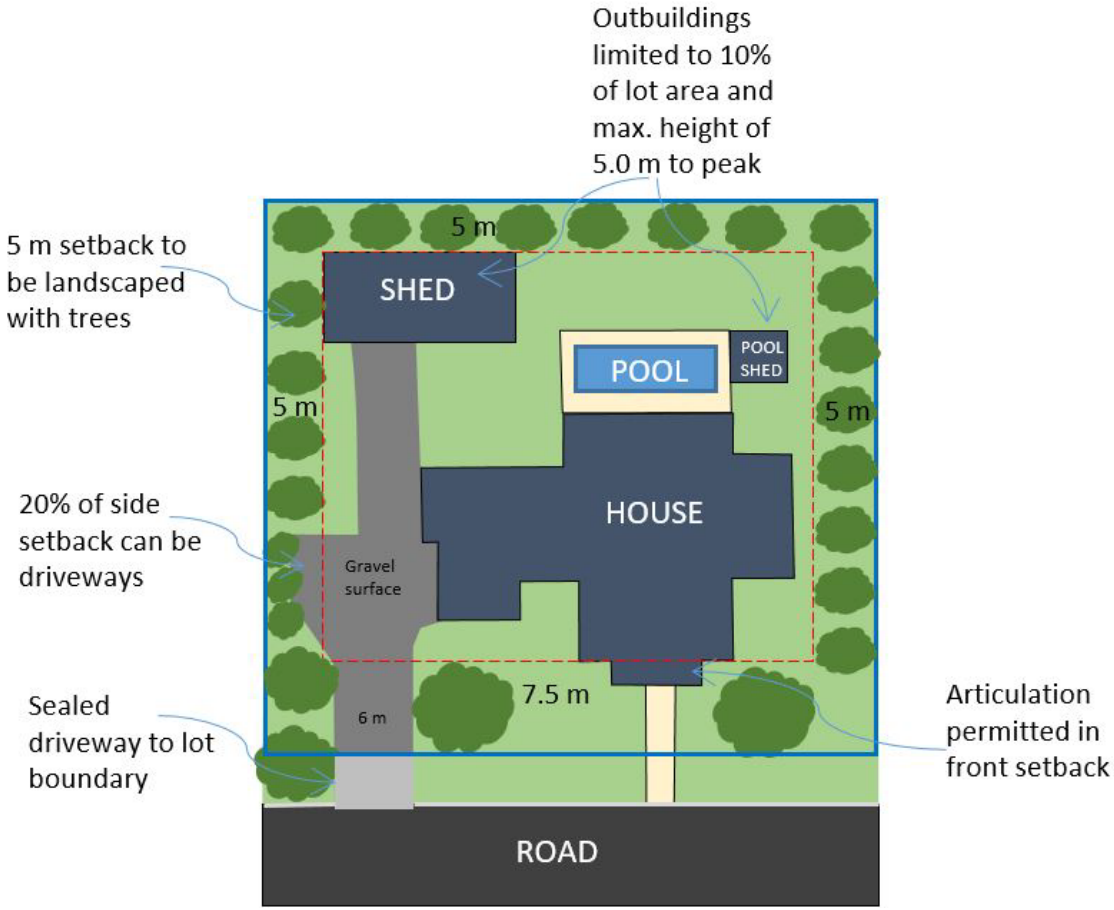


FIGURE 39: INDICATIVE SITE PLAN AND CONTROLS FOR LARGE LOT RESIDENTIAL (3000M² + ALLOTMENT)

Fencing

z) Side and rear fences can be constructed of galvanised steel, corrugated galvanised iron, coated steel or pre-painted steel to a height of 2 m above existing ground level including any retaining wall. All galvanised steel, corrugated galvanised iron, coated steel or pre-painted steel fences must be located behind the building line.

   I. Fences higher than 2 m above existing ground level are only permitted adjacent to parks, drainage reserves, channels and laneways.

9.0 PARKING

Griffith City Council requires that off-street car parking be provided to meet the needs of the proposed use. The requirements in this section aim to satisfy the parking demand likely to be generated by the development while encouraging other transportation modes.

9.1 GENERAL PROVISIONS AND DEVELOPMENT CONTROLS

Council's Parking Code is provided in Appendix 1. All development within the zones to which this Development Control Plan relate must provide parking in accordance with the Parking Code and in recognition of the Precinct Specific Controls in Section 3.0.

10.0 NON-RESIDENTIAL DEVELOPMENT

Within residential zones in Griffith there are some non-residential uses which are permissible. These uses should be of a size and scale which is suitable for residential neighbourhoods. The Floor Space Ratio's and Height of Buildings restrictions in **Section 3** apply to all non-residential development.

Objectives: To provide controls for non-residential development and ensure compatibility with the amenity and character of the Precinct is maintained.

10.1 CHILD CARE CENTRES

Locating Child Care Centres within established residential areas and co-locating with employment generating uses should be supported to provide access to child care.

Objectives:

a) To ensure that Child Care Centres do not interfere unreasonably with the amenity of adjoining properties.
b) To ensure Child Care Centres are consistent with the existing streetscape of the locality

Controls

General Controls

a) Development of Child Care Centres must be in accordance with the controls in State Environmental Planning Policy (Transport and Infrastructure) 2021, NSW Planning and Environment's *Childcare Planning Guideline 2017* and Education and Care Services National Regulations except where the controls in this section differ, in which case the controls in this section take precedence.

Site Location

b) Child Care Centres should be located:
   I. In the general vicinity of primary schools, major employment areas and recreation areas;
   II. Within the grounds of community facilities, educational facilities and recreation areas;

III. Near services such as shops, medical facilities and public transport;
IV. Where traffic controls do not impede vehicular access to the site; and
V. Where children will not be impacted by air, noise and other pollution.

c) Child Care Centres must not be permitted:
   I. Adjacent to:
      i. Industrial activities;
      ii. Railway lines;
      iii. Roundabouts; and
      iv. Within any established land use buffer areas.
   II. On Classified Roads;
   III. On streets with a carriageway width of 6.5 m or less; and
   IV. In areas where aircraft noise levels exceed 25 Australian Noise Exposure Forecast (ANEF).

Setbacks

d) Setbacks must be provided in accordance with Section 4.7.

Open Space and Landscaping

e) Outdoor open space is to be located behind the Child Care Centre at the rear of the site and away from busy streets.
f) A Landscape Plan must submitted with any development application for a Child Care Centre.

Building Appearance

g) Buildings should be designed to enable the conversion of the Child Care Centre to a dwelling at a later date.
h) The roof design must be compatible with surrounding properties with respect to height, pitch, building materials and colour.
i) The building must be designed so that it is in character with the surrounding residential area in terms of bulk, scale, size and height.
j) The front pedestrian entrance must be visible from the street.
k) Buildings that face two street frontages or a street and public space must address both frontages by the use of verandas, balconies, windows or similar modulating element.
l) All fencing must comply with Section 4.16.

Car Parking and Accessways

m) Car parking and accessways must be designed and sited in accordance with Appendix 1 and Council's *Engineering Standards: Subdivision and Development* (as amended).

Amenity and Environmental Impact

n) The Statement of Environmental Effects for a Child Care Centre must consider, to the satisfaction of Council, the following potential impacts:
   I. Visual impacts;
   II. Hours of operation;
   III. Deliveries and loading and unloading;
   IV. Traffic generation;

V. Pedestrian and vehicular access arrangements;
VI. Waste removal;
VII. Lighting; and
VIII. Signage.

10.2 HEALTH SERVICES FACILITIES

The Hospital Precinct is located within the R1 – General Residential zone. Locating Health Services Facilities (HSF) in or within close proximity to the Hospital Precinct should be promoted. Some Health Service Facilities can be constructed without the consent of Council by public authorities in accordance with *State Environmental Planning Policy (Transport and Infrastructure) 2021*. Health Service Facilities include:

- Medical centres;
- Community health facilities;
- Health consulting rooms;
- Patient transport facilities; and
- Hospitals.

Objectives:

a) To ensure HSF do not interfere unreasonably with the amenity of adjoining properties.
b) To ensure the appearance of HSF are consistent with the existing streetscape of the locality.

Controls

General Controls

a) Development must be in accordance with the controls in Section 4, except where the controls in this section differ, in which case the controls in this section take precedence.

Building Appearance and Layout

b) The roof design must be compatible with surrounding properties with respect to height, pitch, building materials and colour.
c) The building must be designed so that it is in character with the surrounding residential areas in terms of bulk, scale, size and height.
d) Buildings that face two street frontages or a street and public space must address both frontages through the use of verandas, balconies, windows or similar modulating elements.
e) All fencing must comply with **Section 4.16**.

Car Parking and Accessways

f) Car parking and accessways must be designed and sited in accordance with Council's Parking Code (see Appendix 1) and Council's Engineering Guidelines: Subdivision and Development Standards (as amended).

Amenity and Environmental Impact

g) The Statement of Environmental Effects for a Health Service Facility must consider, to the satisfaction of Council, the following potential impacts:
I. Visual impacts;
II. Hours of operation;
III. Deliveries and loading and unloading;
IV. Traffic generation;

V. Pedestrian and vehicular access arrangements;
VI. Waste removal;
VII. Lighting; and
VIII. Signage.

h) Hours of operation are generally restricted to between 7 am and 8 pm Monday to Friday and 8 am to 8 pm on weekends.

Waste Management

i) Adequate waste disposal facilities must be provided for the development located away from adjacent residential dwellings and accessible by the maximum sized waste disposal truck required to access the development.

10.3 NEIGHBOURHOOD SHOPS AND SUPERMARKETS

Appropriately sized retail shops in residential zones can provide for convenient retail services for the day-to-day needs of residents, promote walkability and a sense of place. Neighbourhood shops are defined as:

> *premises used for the purposes of selling general merchandise such as foodstuffs, personal care products, newspapers and the like to provide for the day-to-day needs of people who live or work in the local area, and may include ancillary services such as a post office, bank or dry cleaning, but does not include neighbourhood supermarkets or restricted premises.*

Neighbourhood supermarkets are defined as:

> *premises the principal purpose of which is the sale of groceries and foodstuffs to provide for the needs of people who live or work in the local area.*

Objectives:

a) To facilitate convenient access to daily shopping needs within the neighbourhood while ensuring the amenity of adjacent properties is maintained.

Controls

General Controls

a) Development must be in accordance with the controls in Section 4, except where the controls in this section differ, in which case the controls in this section take precedence.
b) The height of a neighbourhood shop is not to exceed two storeys with an allowance for 'shop top housing' on the first floor.
c) The retail floor area of a neighbourhood shop must not exceed 200 m^2.
d) The retail floor area of a neighbourhood supermarket must not exceed 1000 m^2.

Site Planning

e) *Neighbourhood shops and supermarkets must:*
   I. Be located on streets with a carriageway wider than 6.5 m;
   II. Not be located on battle axe lot or on lots with a frontage of less than 18 m; and

III. Have entrances oriented towards the front of the site facing the street.

Building Appearance

f) The roof design must be compatible with surrounding properties with respect to height, pitch, building materials and colour.

g) The building must be designed so that it is in character with the surrounding residential areas in terms of bulk, scale, size and height.

h) Buildings that face two street frontages or a street and public space must address both frontages through the use of verandas, balconies, windows or similar modulating elements.

i) All fencing must comply with Section 4.16.

Car Parking and Accessways

j) Car parking and accessways must be designed and sited in accordance with Council's Parking Code (see Appendix 1) and Council's *Engineering Standards: Subdivision and Development* (as amended).

Amenity and Environmental Impact

k) *The Statement of Environmental Effects for Neighbourhood Shops must consider, to the satisfaction of Council, the following potential impacts:*

I. Visual impacts;
II. Hours of operation;
III. Deliveries and loading and unloading;
IV. Traffic generation;
V. Pedestrian and vehicular access arrangements;
VI. Waste removal;
VII. Lighting; and
VIII. Signage.

l) Hours of operation are generally restricted to between 7 am and 8 pm Monday to Friday and 8 am to 8 pm on weekends.

Waste Management

m) Adequate waste disposal facilities must be provided for the development located away from adjacent residential dwellings and accessible by the maximum sized waste disposal truck required to access the development.

11.0 SUBDIVISION

11.1 GENERAL PROVISIONS AND DEVELOPMENT CONTROLS

Council's Subdivision Code is provided in Appendix 2. All development within the zones to which this Development Control Plan relate must be subdivided only in accordance with the Subdivision Code.

12 SITE SPECIFIC CONTROLS

12.1 COLLINA GROWTH AREA SUBDIVISION CONTROLS

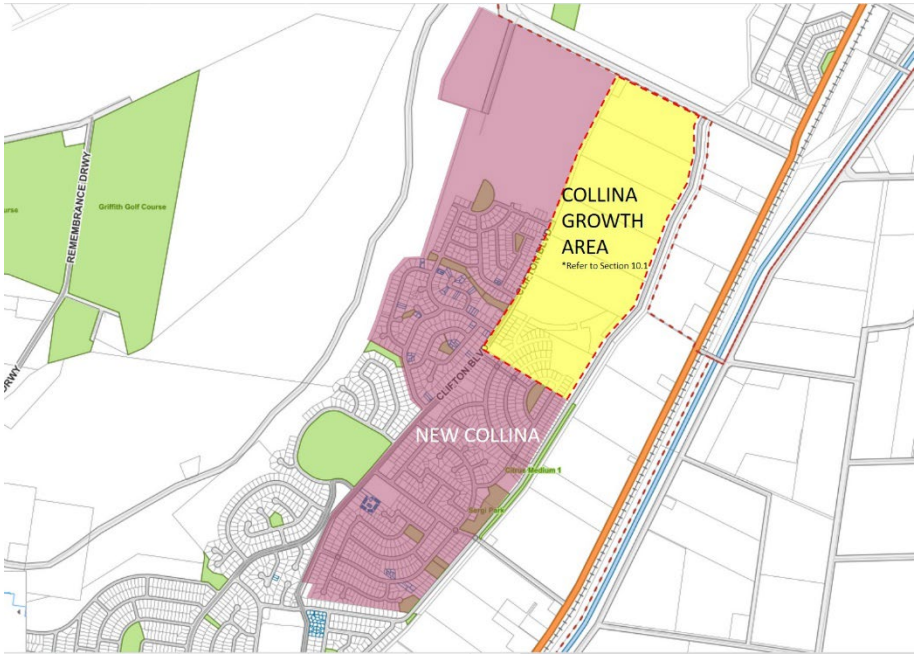


FIGURE 41: COLLINA GROWTH AREA

The Collina Growth Area (CGA) was master planned in 2003 by Council to extend the existing Collina residential area and provide additional low-density housing. The controls in this section relate to the initial subdivision of each of the farms in the CGA. Any other development within the CGA is controlled under Section's 4-10 of this DCP.

12.1.1 STAGING

a) Staging of the CGA must be in accordance with the CGA Staging Plan (refer to **Figure 42**).

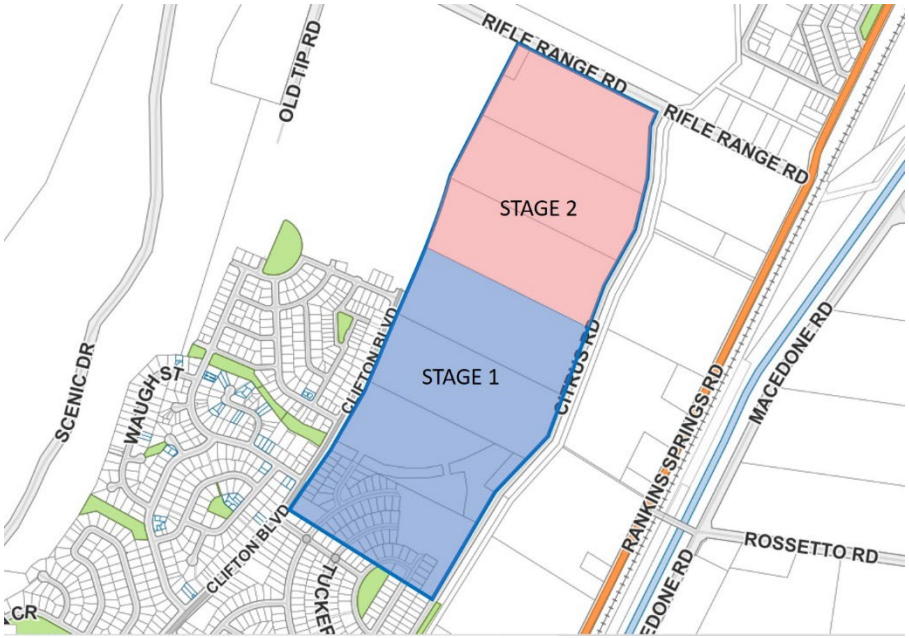


FIGURE 42: COLLINA STAGING PLAN

b) The staging of the CGA should provide for the logical development of the area based on cost effective provision and availability of infrastructure and servicing arrangements.

c) Development Applications for the residential subdivision of the CGA must:

I. Consider infrastructure provision and sequencing;

II. Provide evidence of satisfactory arrangements for essential services, including water and sewerage servicing. The provision of sewerage servicing must be generally in accordance with the CGA Trunk Sewer Main Concept Plan and CGA Water Main Concept Plan. The release of allotments will be dependent on the satisfactory provision of reticulated water and sewerage services; and

III. Incorporate road networks, stormwater detention areas, active and passive recreation areas consistent with the overall staging and intended development outcomes for the CGA.

IV. The release of Stage 2 of the CGA should only occur when 80% of the lots in Stage 1 have been granted a Subdivision Certificate from Council and registered with the NSW Land Registry Services. However, Council at its discretion may release additional lands in Stage 2 by amending the Staging Plan.

12.1.2 TRANSPORT MOVEMENT HIERARCHY

a) The overall movement hierarchy for the CGA must be generally in accordance with the CGA Road and Path Plan (refer to **Figure 43**). However, the installation of alleys identified on the CGA Road and Path are presently not supported due to Crime Prevention Through Environmental Design (CPTED) principles and must be excluded from design plan submitted for subdivision in the CGA.

b) The overall pedestrian and cycleway links should be consistent with the CGA Footpath Plan;

c) The following road network upgrades will be required within the CGA:

I. Clifton Boulevard must be upgraded to a two-lane two-way road with a centre median;

II. The intersection of Clifton Boulevard and Rifle Range Road is required to be upgraded to cater for the increased traffic that will utilise the intersection;

III. Citrus Road must be upgraded to a two-lane two-way road, as per the requirements of a Local Distributor in Council's *Engineering Standards: Subdivision and Development* (as amended);

IV. The intersection of Citrus Road and Rifle Range Road is required to be upgraded to cater for the increased traffic that will utilise the intersection;

V. Rifle Range Road must be upgraded to a two-lane two way road, as per the requirements of a Local Distributor in Council's *Engineering Standards: Subdivision and Development* (as amended). As a minimum Rifle Range Road should be reconstructed between Clifton Boulevard and Rankins Springs Road;

VI. The intersection of Rifle Range Road and Rankins Springs Road is required to be upgraded to cater for the increased traffic that will utilise the intersection; and

VII. All four-way intersections are to incorporate a roundabout. This is consistent with the existing Collina Farms.

d) Development Applications for the residential subdivision of the CGA must:
   I. Include an overall transport movement hierarchy showing major circulation routes and connections to achieve simple and safe movement systems for private vehicles, public transport, pedestrians and cyclists; and
   II. Include cross sections of each type of road proposed in the hierarchy.

12.1.3 LANDSCAPE STRATEGY

a) Landscaping must be required on land adjacent to major intersections and all collector roads so as to soften the visual impact of all built elements and creating attractive streetscapes including along Clifton Boulevard and Citrus Road when viewed by passing traffic and pedestrians.
b) Street Trees must be planted within the road reserves of the CGA in accordance with the following principles:
   I. Street trees should provide shade and enhance the visual quality of the streetscape;
   II. Existing street trees must be protected during construction;
   III. Street trees should be space at regular intervals to enhance the streetscape appearance in the locality;
   IV. Street trees should not interfere with underground and overhead utilities;
   V. Street trees planted around hard surfaces should be provided with appropriate grates to protect the roots and best facilitate water infiltration; and
   VI. Street trees are to be planted in accordance with Council's Tree Policy (PG-CP-402).
c) Development Applications for the residential subdivision of the CGA must include a landscape plan which includes street trees and shrub species selected in accordance with Council's Tree Policy (PG-CP-402).

12.1.4 NETWORK OF ACTIVE AND PASSIVE RECREATION

a) Areas of passive and active recreation must be provided generally in accordance with the CGA Open Space Plan (refer to **Figure 44**).
b) Useable open space areas, must be generally not less than 3000 m² per open space and must be provided within each subdivision within 400 m safe walking distance of each lot.
c) Development applications for the residential development of the CGA are to include a preliminary design of open spaces in accordance with following principles:
   I. Pedestrian, cycle linkages must be provided to other destinations;
   II. Park furniture, shaded areas and resting place must be provided to promote pedestrian comfort;
   III. Safe pedestrian crossing points must be provided where routes intersect the road network;
   IV. Easily identifiable access points must be provided; and
   V. Frontage to abutting roads provided to optimise pedestrian access and visibility.

12.1.5 STORMWATER

a) Stormwater detention and management for the CGA must be generally in accordance with the Collina Drainage Modelling and Design 2018 as amended (refer to **Figure 45**).
b) Development applications for the residential development of the CGA must include a preliminary Stormwater Management Plan which:
    I. Is designed in accordance with Council's *Engineering Standards: Subdivision and Development* (as amended) and the Collina Drainage Modelling and Design 2018 as amended (refer to **Figure 45**);
    II. Addresses the Griffith City Council Developer Servicing Plan – Stormwater Development Servicing Plan – Collina (adopted 27 July 2004); and
    III. Identifies long-term maintenance requirements in the design of the proposed WSUD elements.

12.1.6 MEDIUM DENSITY LOTS

a) Medium density lots permitting the development of more than one dwelling must be strategically located in close proximity to arterial roads, public transportation network and public open spaces.
b) Should an Applicant elect to provide **25% or less** lots to be utilised for medium density development within the CGA, the following controls apply to the proposal:
    I. Development applications for the residential subdivision of the CGA must identify proposed locations of medium density allotments. Medium density lots must be designed to be of an appropriate size and shape to cater for the siting of multiple dwelling development.
    II. A Restriction as to User pursuant to Section 88B of the *Conveyancing Act 1919* must be placed on all lots within the CGA stating that only one primary dwelling must be constructed with the exception of lots designated as medium density lots. This does not limit the construction of a secondary dwelling in accordance with the GLEP.
    III. Any development of medium density allotments with impervious surfaces in excess of 40% of the lot area must provide onsite detention in accordance with Council's Onsite Detention Policy (CS-CP-404).
c) Should an Applicant elect to provide between **26% and 50%** of lots or total area of land for residential development (not including road reserves and open spaces areas) to be utilised for medium density development within the CGA, the following controls or requirements apply to the proposal:
    I. A Concept Development Application must be submitted for the proposed subdivision including a concept proposal providing for the development of the site with the Stage 1 development application being for the subdivision of land.
    II. The Concept Development Application must provide an overall Master Plan for how the site

would be developed including meeting the requirements of Section 12.1 of this DCP and the following additional matters:

i. A servicing strategy which considers the impact of the increased demands for water, sewer and stormwater services and proposed upgrades if required;
ii. Location of medium density precincts in close proximity to open space, commercial areas, public transport connections and community facilities (maximum 25% of total lot yield);

***Note**: Medium density precincts are strategically located nodes of medium density development within a subdivision and include a group of a minimum of four adjoining or adjacent (separated by a road) lots (or a single lot with an area four times the size of the minimum lot size for the land to be developed for medium density development).*

iii. Location of strategically located medium density lots throughout the subdivision (maximum 25% of total lot yield);
iv. Include a staging plan;
v. Include a Traffic Impact Assessment;
vi. Provide concept-built form designs for medium density precincts including:
    - Concept layout plans for lots including driveways, private and communal open space areas and landscaping;
    - Concept locations of stormwater detention areas;
    - Basic floor plans for dual occupancies, townhouses, multi-dwelling housing and manor houses to achieve compliance with Section 5 of this DCP; and
    - Building envelopes for single detached dwellings.
vii. Should the Master Plan propose to subdivide a lot utilising clause *4.1A Exceptions to minimum subdivision lot sizes for certain residential development* of the Griffith Local Environmental Plan 2014(with 300-400m^2 lot area), the Applicant must provide an assessment of how the medium density development would achieve compliance with Sections 1-6 and Appendix 2 of this DCP within the boundaries of the reduced lot size.

III. The Concept Proposal provides a vision and overall guide for how the site would be developed. All future development applications submitted for medium density development would need to be in accordance with the Concept Approval.

12.1.7 LOT SIZE, LAYOUT AND DIMENSIONS

a) The lot layout of the CGA must generally be in accordance with the CGA Lot Layout Plan.

b) The minimum lot sizes of the CGA are set by the Griffith Local Environmental Plan 2014. The minimum lot is 700 m^2.
c) Development applications for the residential development of the CGA must include a lot layout plan which complies with the following controls:
    I. Allotments should be of sufficient size and shape to enable efficient siting of a dwelling and provision for outbuildings, acceptable private outdoor space, vehicle access and parking;
    II. Higher densities, where provided, should be located in areas closer to commercial areas, parks, community facilities and public transport routes;
    III. Allotments should be orientated and configured to maximise opportunities for solar access;
    IV. Corner allotments should be designed to enable the construction of a dwelling that can comply with the prevailing setback requirements along both street frontages; and
    V. The subdivision design should avoid the creation of battle-axe or highly irregular shaped allotments.

12.1.8 NEIGHBOURHOOD COMMERCIAL AND RETAIL USES

a) The Griffith Local Environmental Plan 2014 permits a limited amount of commercial and retail uses within the R1 – General Residential zone.
b) Neighbourhood Commercial and Retail uses within the CGA must provide for the day to day needs of residents in the locality.
c) Council will support and encourage the location of neighbourhood shops, restaurants and cafes and business premises within the CGA located in accessible locations in proximity to Clifton Boulevard.

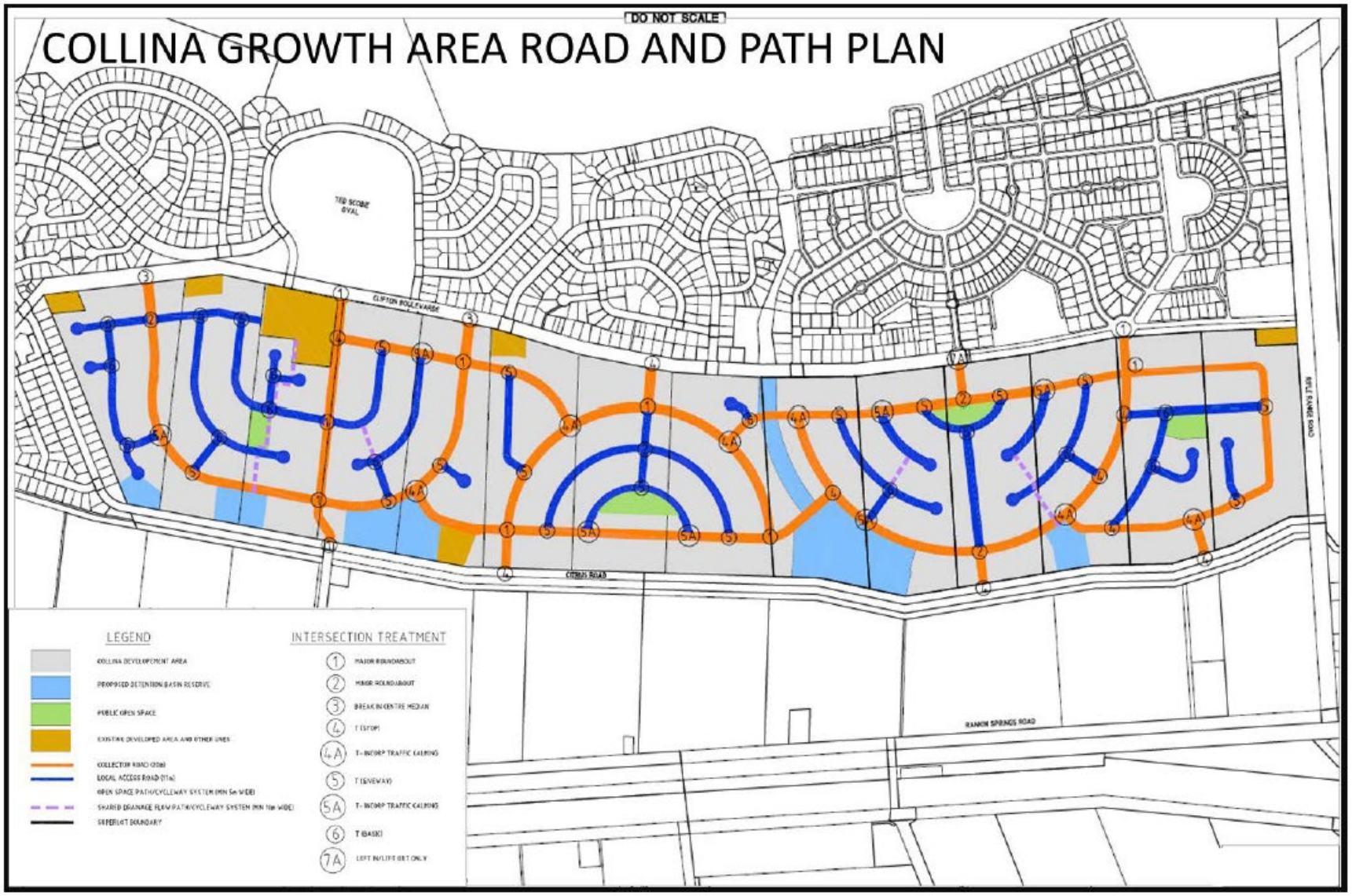


FIGURE 43: ROAD AND PATH PLAN

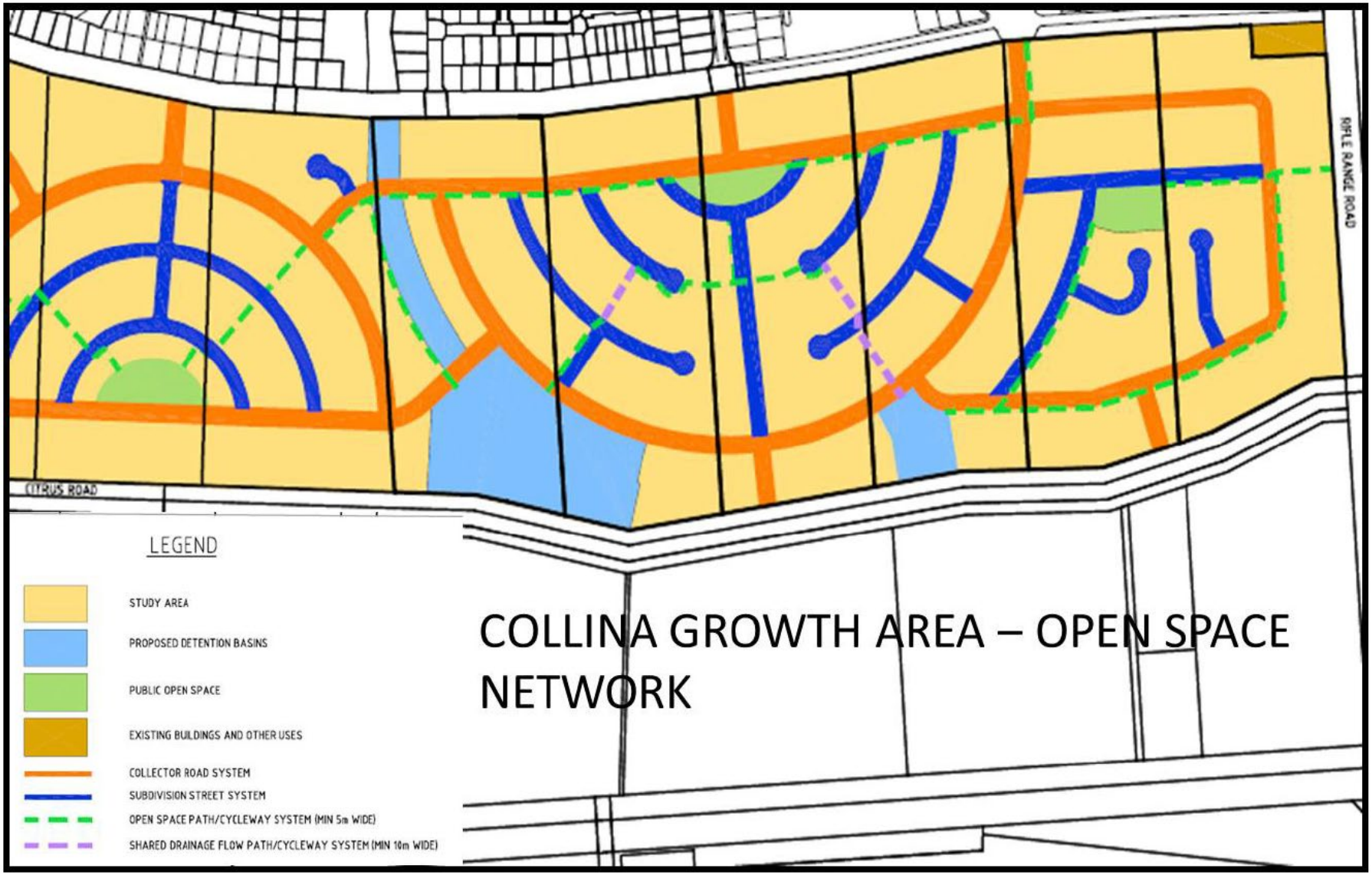


FIGURE 44: OPEN SPACE NETWORK

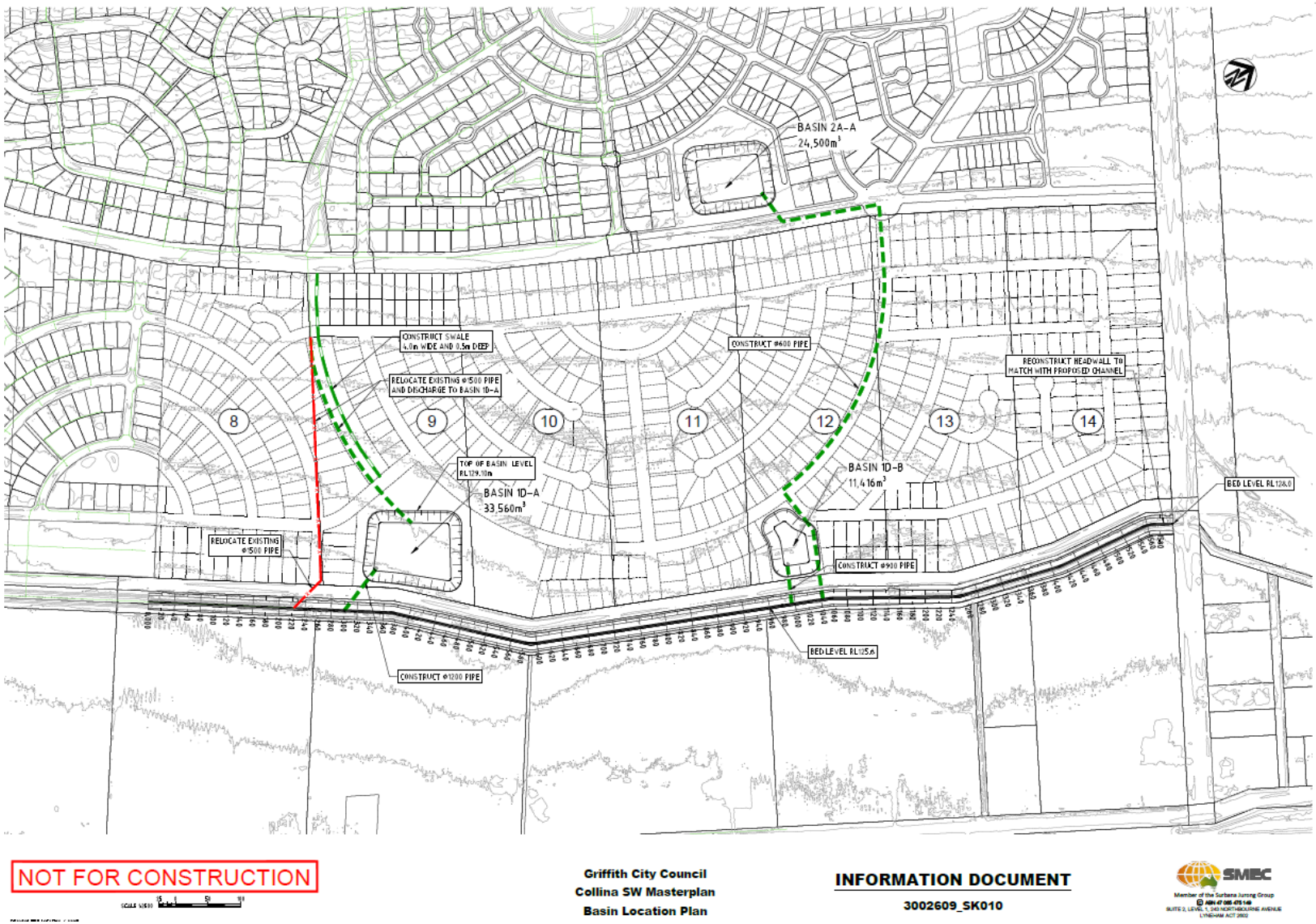


FIGURE 45: STORMWATER CONCEPT PLAN

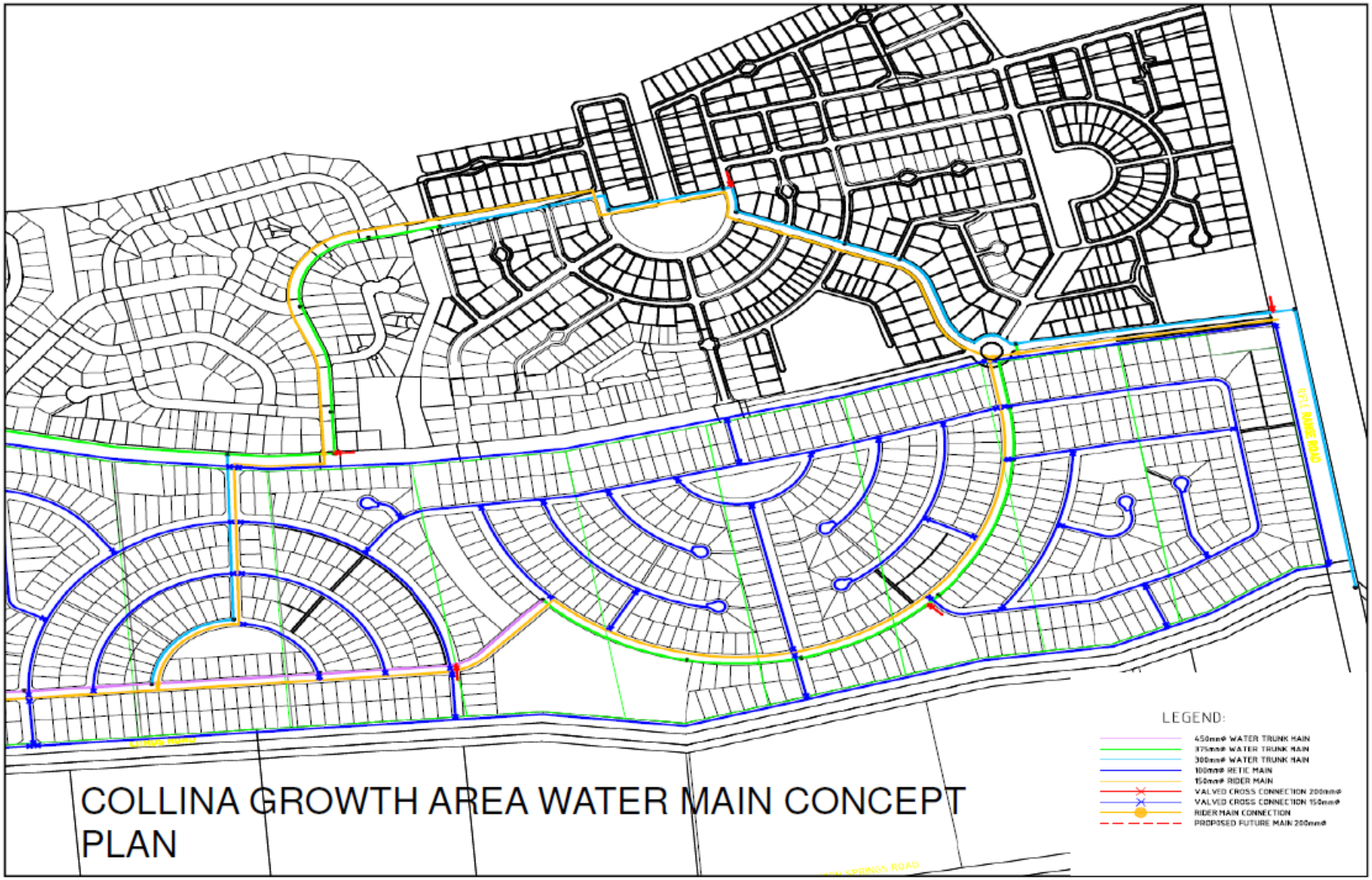


FIGURE 46: WATER MAIN CONCEPT PLAN

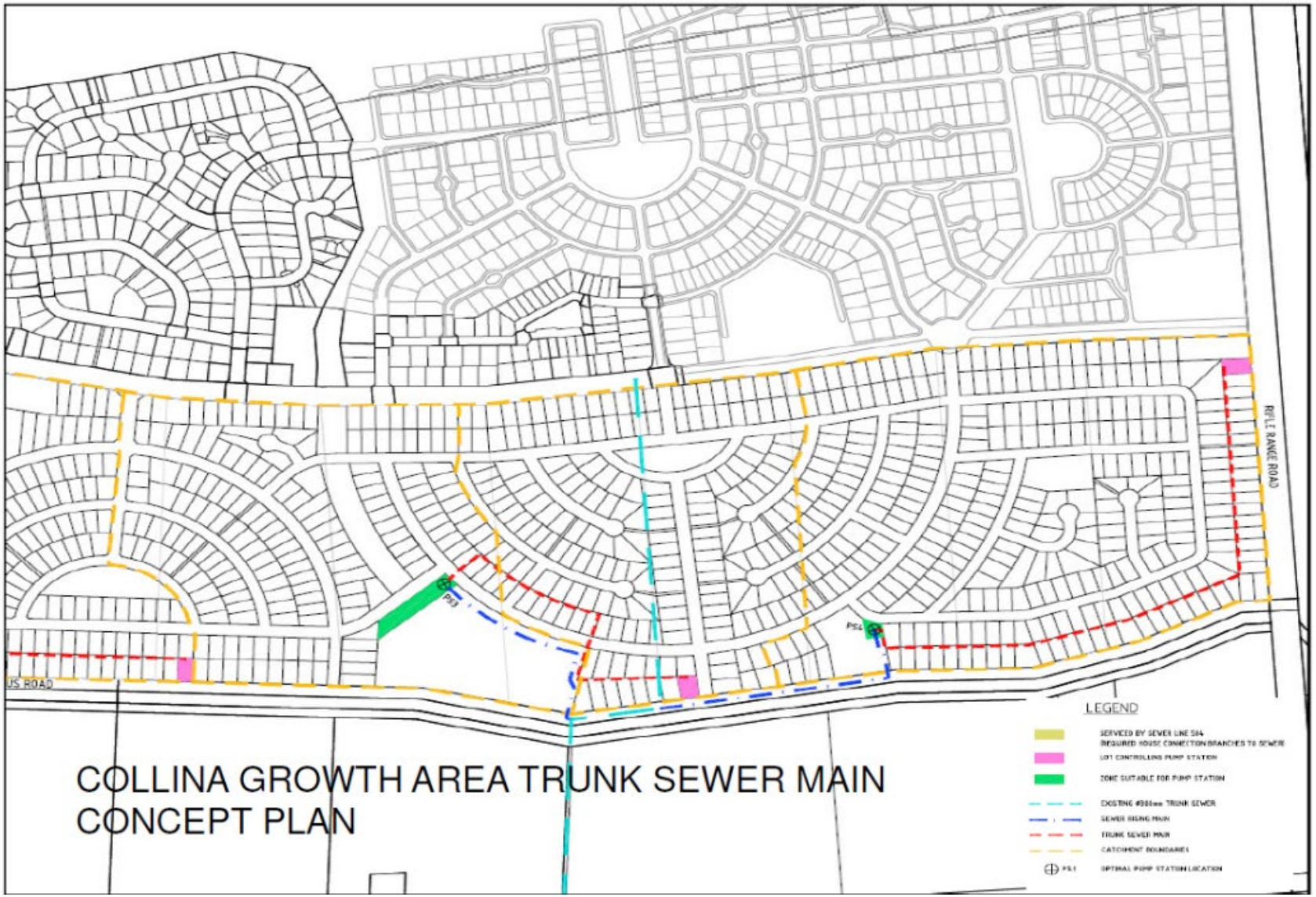


FIGURE 47: SEWER MAIN CONCEPT PLAN

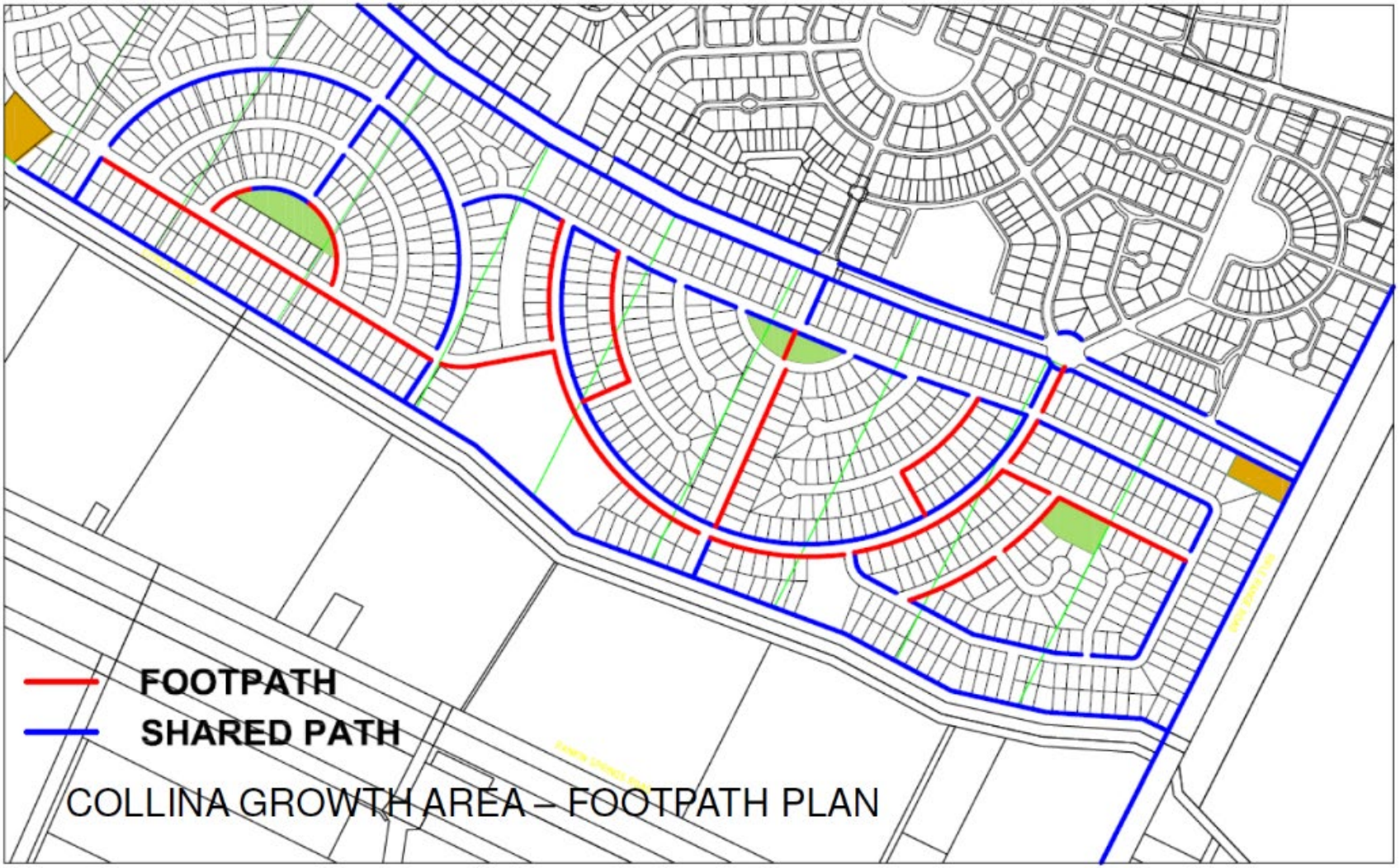


FIGURE 48: FOOTPATH PLAN

12.2 LAKE WYANGAN GROWTH AREA SUBDIVISION CONTROLS

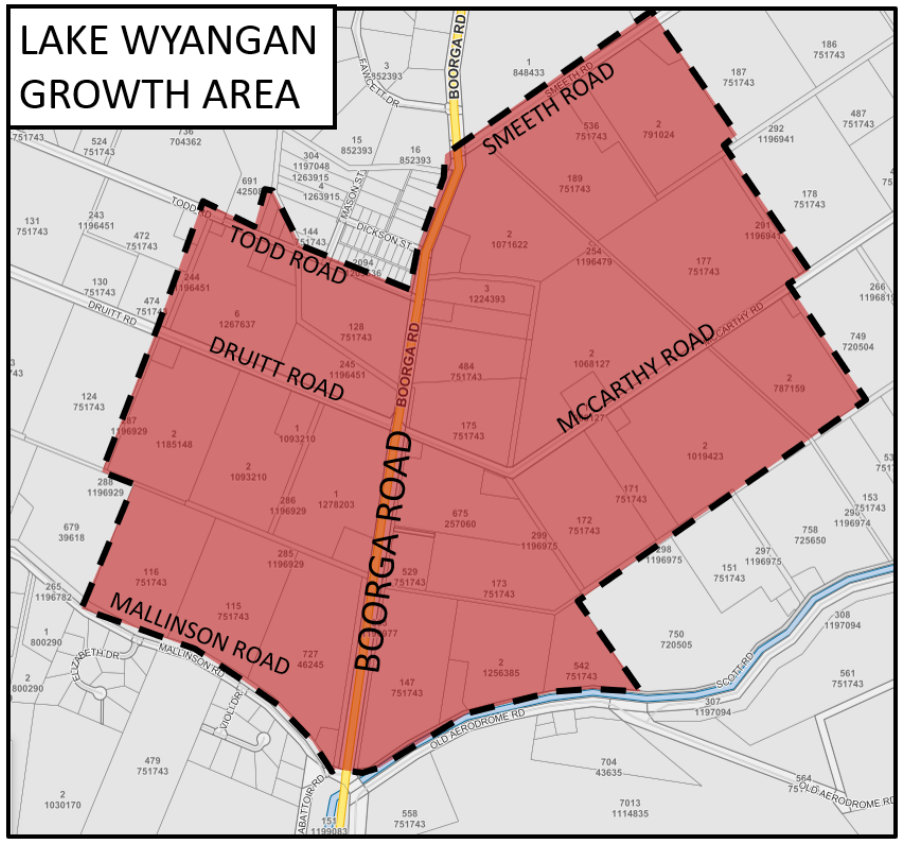


FIGURE 49: LAKE WYANGAN GROWTH AREA

The Lake Wyangan Growth Area (LWGA) was master planned in 2020 by Council to expand the Lake Wyangan Village and provide land for an additional 1660 dwellings to support the needs of Griffith's growing population. The controls in this section relate to the initial subdivision of each of the land holdings in the LWGA. Any other development within the LWGA is controlled under Section's **4-10** of this DCP and **Appendix 1** and **2**. Development on lands with frontage to Mallinson Road must adhere to the Large Lot Residential Subdivision controls in **Section 4 of Appendix 2 – Griffith Subdivision Code.**

The development of the LWGA should be generally in accordance with the following plans, unless otherwise agreed to by Council:

- Lake Wyangan Master Plan (LWMP) – endorsed by Council on 9 December 2020; and
- Lake Wyangan Road & Drainage Infrastructure (LWR&DI) Plans prepared by CBR Consultants and dated [July 2023]

12.2.1 STAGING

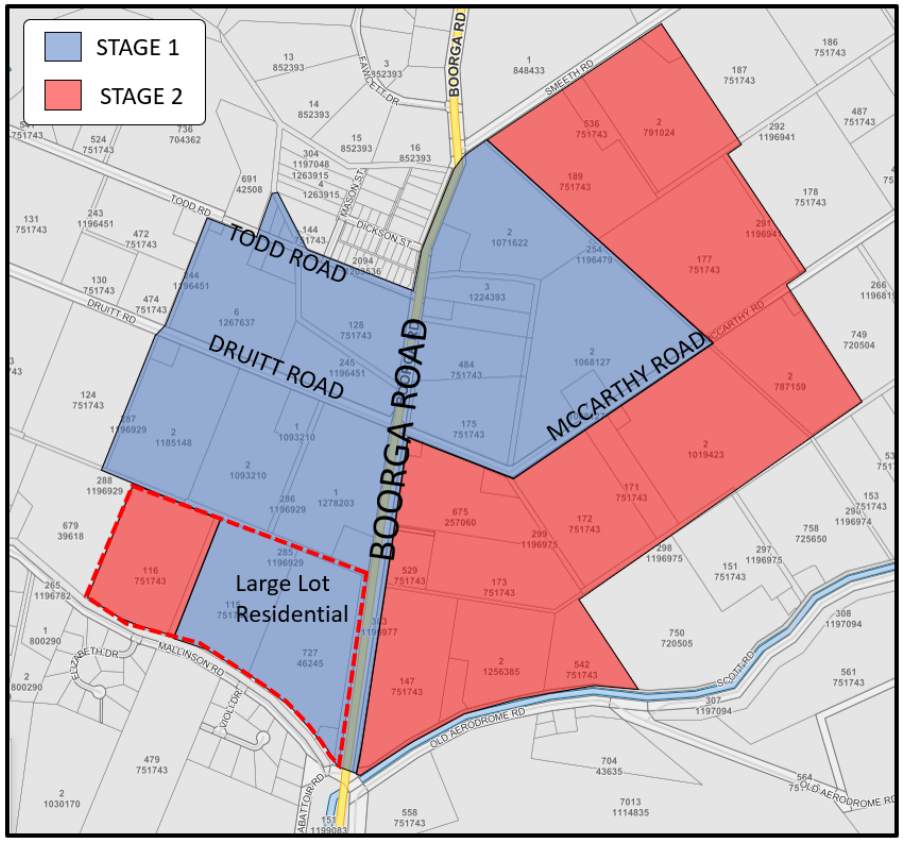


FIGURE 50: LAKE WYANGAN GROWTH AREA STAGING PLAN

a) Staging of the LWGA must be in accordance with the LWGA Staging Plan (refer to **Figure 50**).

b) The staging of the LWGA should provide for the logical development of the area based on cost effective provision and availability of infrastructure and servicing arrangements.

c) Development should be carried out in a sequential manner to avoid the extension of infrastructure past undeveloped land. Should the out of sequence extension of infrastructure be proposed, the Lake Wyangan 7.11 Contribution Plan 2023 and Council's Developer Servicing Plans (as amended) provide for Works in Kind and forward funding arrangements subject to an agreement with Council.

d) Development Applications for the residential subdivision of the LWGA must:

   I. Consider infrastructure provision and sequencing;

   II. Provide proposed arrangements for essential services, including water and sewerage servicing:

      i. The provision of sewerage servicing must be generally in accordance with the LWGA Sewer Plan and LWGA Potable Water Plan or otherwise as agreed to by Council.

      ii. The release of allotments will be dependent on the satisfactory provision of reticulated water and sewerage services; and

   III. Incorporate road networks, stormwater conveyance systems, active and passive recreation areas consistent with the overall staging and intended development outcomes for the LWGA in the LWMP and LWR&DI Plans.

e) The release of Stage 2 of the LWGA should only occur when 80% of the lots in Stage 1 have been granted a Subdivision Certificate from Council. However, Council at its discretion may release additional lands in Stage 2 by

amending the Staging Plan and this Development Control Plan.

12.2.2 TRANSPORT MOVEMENT HIERARCHY

Boorga Road is the key arterial road which supports the development of the LWGA. The Griffith City Council Lake Wyangan 7.11 Contribution Plan 2023 has identified that the costs associated with the upgrade of Boorga Road including key intersections, footpaths and cycleways, landscaping and street lighting would be recouped by Council through contributions. The upgrade of other roads for the full frontage of a development lot would be the responsibility of the developers.

The development of land in the LWGA must adhere to the following requirements:

a) The overall movement hierarchy for the LWGA must be generally in accordance with the LWMP and LWR&DI Plans.
b) The overall pedestrian and cycleway network must be consistent with the LWMP and LWR&DI Plans.
c) Road network upgrades must be provided in accordance with the LWR&DI Plans for the full frontage of the development site including intersection treatments (other than any intersection with Boorga Road and an existing Council road).
d) All four-way intersections are to incorporate a roundabout.
e) Consider alternative modes of transport in the planning for local road networks, including measures to encourage walking and cycling and access for public transport, community transport and taxis.
f) Development Applications for the residential subdivision of the LWGA must:
    I. Include subdivision plans which are generally in accordance with the LWMP, the LWR&DI Plans and the requirements of this clause;
    II. Include an overall transport movement hierarchy showing major circulation routes and connections to achieve simple and safe movement systems for private vehicles, public transport, pedestrians and cyclists; and
    III. Include cross sections of each type of road proposed in the hierarchy.

12.2.3 LOT SIZE AND LAYOUT

Lot sizes and layout should generally be in accordance with the LWMP. However, developers or landowners are permitted to propose alternative designs should the following key aspects of the LWMP be achieved:

- Road connections to adjacent development and intersections with existing roads and retention of the road hierarchy.
- Restricting road connections to Boorga Road.
- Connection to main drainage infrastructure.
- Location of the Community Park.
- Location of building envelopes outside of floodway's.
- Provision of the footpath / cycleway network.

- Provision of roads adjacent to drainage channels for maintenance purposes.

The subdivision of land in the LWGA must adhere to the following requirements:

a) The size of any lot subdivided must be in accordance with the relevant clauses in the *GLEP*.
b) Proposed lots must be of a size and have a shape and dimensions to enable the siting of a dwelling and ancillary structures that:
    i. minimise impacts on adjoining properties including access to sunlight, privacy and views;
    ii. provide usable principal private open space;
    iii. provide vehicle access; and
    iv. protect or replace significant trees.
c) Larger lots should be provided in response to hazards such as flooding, bushfire or adjacent agricultural operations.
d) Medium density lots, where provided, should be located in areas closer to commercial uses, open space, parks, community facilities and public transport routes.
e) Lot layout should enable dwelling fronts to face other dwelling fronts across a public street and backyards to face backyards.
f) Lots should be oriented and configured to maximise opportunities for solar access.
g) Corner lots should be designed to enable the construction of a dwelling that can comply with the prevailing setback requirements along both street frontages (dual occupancy lot).
h) Building envelopes on lots adjacent to active agricultural operations outside the LWGA must be located at least 30 m from plantings or crops and include a 20 m wide vegetated buffer within the lot. Alternatively, periphery roads with a landscaped verge designed to reduce the impacts of dust and spray drift may be used.
i) The development layout of the residential subdivision on Lot 2 DP1185148 (47 Druitt Road), Lot 2 DP1093210 and Lot 1 DP1278203 should locate the shared east-west collector and local road on the southern boundaries of the lots adjacent to the channel for Council maintenance purposes.
j) For subdivision development on R5 - Large Lot Residential land, the subdivision design should ensure that all the requirements in Section 7.0 of this DCP can be catered for on each lot.
k) Solid Fences are not permitted on the rear lot boundary of lots which back onto Boorga Road.
    i. A Restriction on the use of land on all lots which back onto Boorga Road must be established under Section 88B of the *Conveyancing Act 1919* which restricts the construction of solid fencing including pre-coloured metal materials facing Boorga Road.

12.2.4 STREET TREES AND VEGETATION

a) Street Trees must be planted within the road reserves of the LWGA in accordance with the following principles:
    I. Street trees should provide shade and enhance the visual quality of the streetscape;

II. Existing street trees must be protected during construction;
III. Street trees should be spaced at 10 m intervals;
IV. Street trees should not interfere with underground and overhead utilities; and
V. Street trees planted around hard surfaces should be provided with appropriate grates to protect the roots and best facilitate water infiltration.

b) Development Applications for the residential subdivision of the LWGA must include a landscape plan prepared in accordance with the principles set out in this clause and which includes street trees and shrub species selected in accordance with Council's Tree Policy (PG-CP-402).

12.2.5 OPEN SPACE

Community Park

The LWGA includes a Community Park located over Lot 2 DP1071622 and Lot 2 DP1068127 which is to be constructed as part of the Griffith City Council Lake Wyangan 7.11 Contribution Plan 2023. This Community Park would provide a large area for recreation and the enjoyment of residents in the LWGA. The Community Park would have an area of 2.7 ha and include:

- A multi-purpose oval sized for cricket and Australian Rules Football.
- A basketball / multi-purpose court.
- An amenities block.
- Landscaping and footpaths.
- A carpark.
- A playground.
- Irrigation systems throughout.

The Community Park will be designed and developed by or in close consultation with Council utilising the funds recouped from contributions.

Other Development Land

The subdivision of other land in the LWGA must adhere to the following requirements to ensure open space is available throughout the LWGA:

a) Open space must be provided at a ratio of 500 m^2 / 20 lots or 25 m^2 / lot. Subdivision of land for under twenty lots do not need to provide open space. The staging of the subdivision of a development lot cannot be used to avoid the provision of open space.
b) Useable open space areas, must generally not be less than 2000 m^2 and must be provided within 400 m safe walking distance of 90% of the lots in the subdivision. A reduced open space area can be considered subject to the acceptance of a detailed design by council in accordance with this clause.
c) An electrical connection must be provided to each open space area.
d) Developers of adjacent sites can co-locate open space areas at boundaries through private cost sharing agreements subject to Council approval.
e) Development applications for the residential subdivision of the LWGA are to include a preliminary design of open spaces in accordance with following principles and requirements:

I. Park furniture, shaded areas and resting places must be provided to promote pedestrian comfort;
II. Safe pedestrian crossing points must be provided where routes intersect with the road network;
III. A connection to Essential Energy's electrical infrastructure must be provided;
IV. A council water meter must be provided;
V. Landscaping must be provided which is low maintenance with species selected in consultation with Council;
VI. All landscaped areas must include an irrigation system designed and installed in consultation with Council;
VII. Easily identifiable access points must be provided;
VIII. Frontage to abutting roads should be provided to optimise pedestrian access and visibility; and
IX. Each open space area should include a playground system designed and selected in consultation with Council.

f) A final design for the open space area would be required as a condition of consent on approved development consents in the LWGA. The final design, among other requirements, must include:
   I. An irrigation plan including an electrical cabinet and location of a Council water meter located in consultation with Council;
   II. Electrical connection plans to Essential Energy infrastructure; and
   III. Detailed design for the open space in accordance with this clause.

12.2.6 STORWMATER / DRAINAGE

The Griffith City Council Lake Wyangan 7.11 Contribution Plan 2023 (Contribution Plan) has been prepared in accordance with the LWMP and the LWR&DI Plans. The Contribution Plan has identified that the costs associated with the upgrade of the main drainage network in the LWGA would be recouped by Council through contributions.

The subdivision of land in the LWGA must adhere to the following requirements:

a) Stormwater management for the LWGA must be generally in accordance with the LWMP and LWR&DI Plans.
b) Development applications for the subdivision of land in the LWGA must include a preliminary Stormwater Management Plan which:
   I. Is designed in accordance with Council's *Engineering Standards: Subdivision and Development* (as amended), the LWMP and LWR&DI;
   II. Ensure only one drainage connection point to the main drainage network is provided where possible;
   III. Provide the location and conceptual design of the sediment basins to control run-off during the construction stage;
      i. Sediment basins should also be sited and designed to cater for any proposed staging of the subdivision.

IV. Detail that the maximum impervious surfaces for the subdivision once developed is at or below 40% unless additional onsite detention is provided; and

V. Provides a minimum of a five-metre all-weather access track adjacent to channels. This can be achieved through the strategic location of roads and laneways adjacent to channels or alternatively a right of carriageway or other means to the satisfaction of Council. The channel access must ensure that a minimum turning radius of 12.5 m truck is provided.

12.2.7 WATER QUALITY

As Lake Wyangan is a terminal lake (meaning it does not flow to the ocean through a network of rivers or wetlands), nutrient and pollutant removal is an important objective in the catchment. Stormwater treatment systems for new development should be selected to remove nutrients. Natural stormwater treatment systems also need to be able to function effectively in the local environment.

The following water quality reduction targets must be achieved by development in the LWGA:

- Total Suspended Solids: 65%
- Total Phosphorous: 50%
- Total Nitrogen: 46%

Water quality reduction targets can be achieved through the following Water Sensitive Urban Design (WSUD) methods:

- Grassed swales, which are stormwater conveyance and treatment measures that primarily treat runoff through filtering and deposition of sediments. These can be incorporated at the downstream end of edge roads and landscaped areas.
- Bioretention swales, which are swales with the addition of a bioretention trench with filter media and an underlying pervious (slotted) collector pipe that drains to the broader stormwater drainage network.
- Infiltration systems, which capture and detain flows to encourage infiltration in the form of streetscape tree pits as mentioned above.
- Buffer strips, which are zones of vegetation designed to intercept and treat surface stormwater flows before discharging to major drainage channels.

Proprietary/non-natural mechanical systems are not preferred methods of reaching the abovementioned treatment targets.

Development applications for development in the LWGA must include a WSUD Strategy including:

a) Description of the proposed development/works and the existing site conditions, including the surrounding environment.
b) Summary of the relevant site objectives pertaining to water quality, quantity, and other relevant factors.
c) Explanation of the opportunities and limitations for applying WSUD solutions on the site.
d) Description of the chosen WSUD assets for the site and the design approach employed.

e) Site plans illustrating key features such as drainage pathways, as well as the location of the proposed WSUD assets (also known as a WSUD Concept Plan).
f) Application of the MUSIC modelling approach and presentation of the results, demonstrating compliance with the reduction targets.

12.2.8 INFRASTRUCTURE

a) The design and installation of sewerage, water and stormwater must be provided in accordance with Council's *Engineering Standards: Subdivision and Development* (as amended), the LWMP and the LWR&DI Plans unless other arrangements satisfactory to Council are proposed.
b) The design of the subdivision must meet the requirements of Fire and Rescue NSW's *'Fire Safety Guideline – Fire Hydrants for Minor Residential Development'*.
c) The design and installation of electricity, street lighting, telecommunications (including NBN) and gas services must be in accordance with the requirements of the relevant servicing authorities.
d) Electricity and telecommunications infrastructure should be provided as underground services.
e) Compatible public utility services should be coordinated in common trenching to minimise construction costs for underground services and reduce restrictions on landscaping within road reserves.
f) Development Applications for subdivision in the LWMP area must Include draft servicing plans showing the location of all required utilities and demonstrating compliance with this section.

12.2.9 CONTAMINATION

a) The Statement of Environmental Effects for subdivision to which this section relates should provide a history of the use of the site indicating whether there may have been any previous or current land uses that could have resulted in contamination of the site in accordance with Council's *Contaminated Land Management Policy* (EH_CP_203).
b) If there is a possibility the site could be contaminated from past uses, the development application must address the requirements of *State Environmental Planning Policy (Resilience and Hazards (2021)*, *Managing Land Contamination Planning Guidelines 1998* - Department of Urban Planning / Environment Protection Authority (as amended or replaced) and Council's *Contaminated Land Management Policy* (EH_CP_203).

12.2.10 SAFETY

a) Development applications should demonstrate how the lot, access, street and street lighting arrangements will promote the principles of Crime Prevention Through Environmental Design (CPTED), including but not limited to:
    I. Orienting building envelopes and car parking areas to minimise inactive streets;

II. Casual surveillance of public spaces, including the street; and
III. Appropriate lighting of public spaces and walkways.

12.2.11 MEDIUM DENSITY LOTS

a) Medium density lots permitting the development of more than one dwelling must be strategically located in close proximity to arterial roads, public transportation network and public open spaces.
b) Should an Applicant elect to provide **25% or less** lots to be utilised for medium density development within the LWGA, the following controls apply to the proposal:
   I. Development applications for the residential subdivision of the LWGA must identify proposed locations of medium density allotments. Medium density lots must be designed to be of an appropriate size and shape to cater for the siting of multiple dwelling development.
   II. A Restriction as to User pursuant to Section 88B of the *Conveyancing Act 1919* must be placed on all lots within the LWGA stating that only one primary dwelling must be constructed with the exception of lots designated as medium density lots. This does not limit the construction of a secondary dwelling in accordance with the GLEP.
   III. Any development of medium density allotments with impervious surfaces in excess of 40% of the lot area must provide onsite detention in accordance with Council's Onsite Detention Policy (CS-CP-404).
c) Should an Applicant elect to provide between **26% and 50%** of lots or total area of land for residential development (not including road reserves and open spaces areas) to be utilised for medium density development within the LWGA, the following controls or requirements apply to the proposal:
   I. A Concept Development Application must be submitted for the proposed subdivision including a concept proposal providing for the development of the site with the Stage 1 development application being for the subdivision of land.
   II. The Concept Development Application must provide an overall Master Plan for how the site would be developed including meeting the requirements of section 12.1 of this DCP and the following additional matters:
      i. A servicing strategy which considers the impact of the increased demands for water, sewer and stormwater services and proposed upgrades if required;
      ii. Location of medium density precincts in close proximity to open space, commercial areas, public transport connections and community facilities (maximum 25% of total lot yield);

      ***Note**: Medium density precincts are strategically located nodes of medium density development within the subdivision and include a group of a minimum of four adjoining or adjacent (separated by a road) lots (or a single lot with an area four times the size of the minimum lot size for*

the land to be developed for medium density development).

iii. Location of strategically located medium density lots throughout the subdivision (maximum 25% of total lot yield);
iv. Include a staging plan;
v. Include a Traffic Impact Assessment;
vi. Provide concept-built form designs for medium density precincts including:
    - Concept layout plans for lots including driveways, private and communal open space areas and landscaping;
    - Concept locations of stormwater detention areas;
    - Basic floor plans for dual occupancies, townhouses, multi-dwelling housing and manor houses to achieve compliance with Section 5 of this DCP; and
    - Building envelopes for single detached dwellings.
vii. Should the Master Plan propose to subdivide a lot utilising clause *4.1A Exceptions to minimum subdivision lot sizes for certain residential development* of the Griffith Local Environmental Plan 2014(with 300-400m^2 lot area), the Applicant must provide an assessment of how the medium density development would achieve compliance with Sections 1-6 and Appendix 2 of this DCP within the boundaries of the reduced lot size.

III. The Concept Proposal provides a vision and overall guide for how the site would be developed. All future development applications submitted for medium density development would need to be in accordance with the Concept Approval.

12.2.12 NEIGHBOURHOOD COMMERCIAL AND RETAIL USES

The Griffith Local Environmental Plan 2014 permits commercial and retail uses within the RU5 – Village zone. Council will support and encourage the location of neighbourhood shops, restaurants and cafes and business premises within the LWGA located in accessible locations in proximity to Boorga Road.

a) Neighbourhood Commercial and Retail uses within the LWGA must provide for the day to day needs of residents in the locality.

12.2.13 FLOODING

a) Development in the LWGA must be designed and sited in accordance with Clause 5.21 of the GLEP 2014, the Lake Wyangan Flood Study (2012) and the Lake Wyangan Floodplain Risk Management Study and Plan (2013) as amended.
b) No building or structure can be erected and no land filled by way of the deposition of any material within any area identified as a floodway except for minor alterations to

ground levels which do not significantly alter the fundamental flow patterns for:

I. Roads;
II. Parking; and
III. Landscaping and open space.

c) Development Applications for subdivision in the LWMP area must Include a design which takes into consideration the flood affectation of the land and the requirements of this clause.
d) Development applications for land which is impacted by a floodway or flood storage area must be in accordance with Council's Flood Liable Land Policy (CS-CP-403).

12.2.14 BUSHFIRE PRONE LAND

This section contains development controls applying to Development Applications for subdivisions involving land that is classified as bushfire prone on Council's Bushfire Prone Land Map.

a) A Bushfire Risk Assessment Report must be lodged together with the Statement of Environmental Effects in support of the Development Application on bushfire prone lands. The Bushfire Risk Assessment Report must be prepared by a suitably qualified and experienced bushfire consultant and address the developments consistency with RFS's *Planning for Bushfire Protection Guidelines 2019* as amended or replaced.
b) Bushfire protection measures are to be placed wholly within the development site. All proposed Asset Protection Zones are to be within the property to be subdivided and incorporated into affected lots. Asset Protection Zones will not be accepted on existing Council reserves, other public lands or in reserves proposed to be dedicated through the subdivision.
c) Fire trails, if required, are not accepted on existing Council reserves proposed to be dedicated through the subdivision.

12.2.15 FROST CONTROL FANS

There are a number of operating frost control fans in the Lake Wyangan area including within the LWGA. To lessen the impact of frost control fans on sensitive receivers and to ensure new development is designed to mitigate potential noise impacts, Griffith City Council has developed a Frost Control Fan Policy (CS-CP-309).

a) Council will impose a condition of consent on the subdivision of land in the LWGA which requires a restriction on the use of each lot that habitable dwellings are constructed to achieve the required indoor noise criteria as set out in the policy.

12.3 BOORGA ROAD LARGE LOT RESIDENTIAL

This section applies to the subject lands on Boorga Road in Nericon identified in **Figure 51** and including:

- Lot 102 DP 1018460.
- Lot 104 DP 1018460 (south of West Road).
- Lots 309 and 610 DP 751743, West Road.

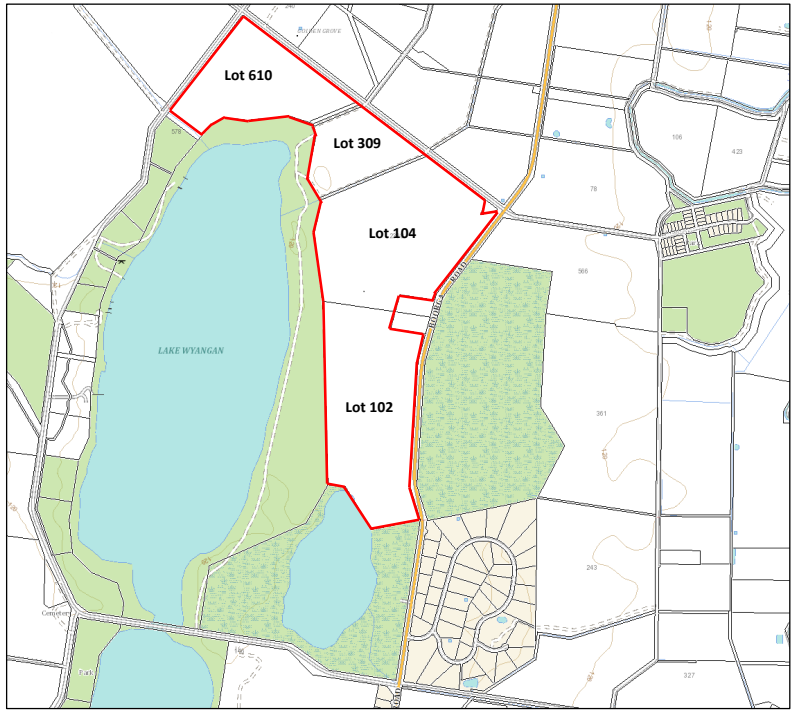


FIGURE 51: BOORGA ROAD DEVELOPMENT CONTROLS SUBJECT LANDS

This section applies to the subdivision and use (through the construction of a dwelling) of the subject lands for residential development with lot sizes less than 5 ha and not connected to Council's reticulated sewer. This section has been prepared to appease the requirements of Clause 7.12 of the Griffith Local Environmental Plan 2014 (GLEP 2014). Residential development must be carried out in accordance with the controls in Sections 4-10 Appendix 1 and Appendix 2, except where the controls in this section differ, in which case the controls in this section take precedence.

12.3.1 OBJECTIVES

The objectives of this section are as follows:

a) To provide site specific controls for large lot residential development on the subject lands.
b) To dispose of effluent in an environmentally safe and sustainable manner.
c) Encourage appropriate management of on-site sewage management.
d) To protect surface water, stormwater, waterways, land, vegetation, public health and community amenity from the impacts associated with on-site sewerage management systems (OSMS's).
e) To manage and mitigate the impacts of development on groundwater and mitigate the potential impacts of a high-water table.
f) To manage and mitigate the impacts of, and on, salinity and sodicity.

g) Minimise the damage caused to property and vegetation where saline soils are encountered, or where processes may create saline soils.
h) Ensure any development will not significantly increase the salt load in existing soils and watercourses.
i) Prevent degradation of the existing soil and groundwater environment from saline and sodic soils where required.
j) To protect Lake Wyangan and nearby waterbodies (Campbells Swamp) from development that has the potential to pollute and diminish the environmental values of the Lake and its surrounds.
k) To ensure changes in land use within the Lake Wyangan catchment will not adversely affect the quantity and quality of water flowing into the Lake and nearby wetlands.
l) To provide controls and management measures to reduce the impacts of mosquitos on residents.

12.3.2 ONSITE WASTEWATER MANAGEMENT SYSTESM (OSMS) – DEVELOPMENT CONTROLS

a) All OSMS are to comply with Griffith City Council's Onsite Sewage Management Strategy (as amended) and NSW Government's Environment & Health Protection Guidelines – On-site Sewage Management for Single Households (as amended). Only AWTS units can be used on the subject lands.
b) OSMS must **not** be located:
    I. Within 100 metres of a waterbody, waterway or wetland, specifically Lake Wyangan (Lot 308 DP 751743) and Campbells Swamp (Lot 407 DP 751743).
    II. Within 250 metres of a water supply well or bore.
    III. Within 40 metres of a dam or intermittent watercourse.
    IV. On slopes steeper than 1 in 8 (12%).
    V. Where the treatment facility is below the 1 in 100 year flood level.
    VI. Where the disposal area is below the 1 in 20 year flood level.
    VII. On soils with permeability greater than 3.5 metres per day.
    VIII. Within 1 metre of the seasonally high-water table or bedrock.
c) All OSMS land application systems are to be consistent with AS 1547 (2017) On-site Domestic Wastewater Management and the former Department of Environmental and Conversation (2004) Environmental Guidelines – Use of Effluent By Irrigation. It is recommended:
    I. The onsite wastewater disposal system is designed to meet the relevant requirements for approval under Section 68 of the Local Government Act 1993.
    II. Effluent is to be contained with the boundaries of the site.
    III. Areas used for spray irrigation are not to be used for recreation purposes or for the growing of fruit or vegetables.
    IV. For surface irrigation systems wet weather storage is provided.

V. A secondary effluent irrigation area must be identified and reserved on each lot in case the primary irrigation area fails or is deemed unusable.
VI. Surface application/reuse areas are provided with adequate signage.

12.3.3 ONSITE WASTEWATER MANAGEMENT SYSTESM (OSMS) – DEVELOPMENT APPLICATION REQUIREMENTS

Subdivision of Land

a) A detailed Land Capability Assessment must be prepared in support of a development application for the subdivision of land. The Land Capability Assessment must
   I. Be prepared by a suitability qualified geotechnical engineer or soil scientist.
   II. Be prepared in accordance with AS 1547 (2017) On-site Domestic Wastewater Management and the former Department of Environmental and Conversation (2004) Environmental Guidelines – Use of Effluent By Irrigation.
   III. Investigate the soils across the site including within each building envelope of each proposed lot.
   IV. Provide recommendations to be followed in siting OSMS units and irrigation areas.

Construction of a Dwelling

b) An additional site-specific Land Capability Assessment must be prepared as part of the development application for the construction of a dwelling. The Land Capability Assessment must:
   I. Be prepared by a suitability qualified geotechnical engineer or soil scientist.
   II. Be prepared in accordance with AS 1547 (2017) On-site Domestic Wastewater Management and the former Department of Environmental and Conversation (2004) Environmental Guidelines – Use of Effluent By Irrigation.
   III. Detail how the recommendations of the Land Capability Assessment for the subdivision of land have been addressed and implemented.
   IV. Identify the location of the AWTS unit and irrigation area as well as a secondary irrigation area to be reserved should the primary irrigation area fail ensuring all setback requirements of AS 1547 (2017) are achieved.
   V. Provide recommendations for the ongoing operation of the AWTS to mitigate impacts on the environment.

12.3.4 WATER QUALITY - DEVELOPMENT APPLICATION REQUIREMENTS

As Lake Wyangan is a terminal lake (meaning it does not flow to the ocean through a network of rivers or wetlands), nutrient and pollutant removal is an important objective in the catchment. Stormwater treatment systems for new development should be selected to remove nutrients. Natural stormwater treatment systems also need to be able to function effectively in the local environment.

The following water quality reduction targets must be achieved by development of the subject lands (post development reductions based on pre-development as baseline):

- Total Suspended Solids: 65%
- Total Phosphorous: 50%
- Total Nitrogen: 46%

Water quality reduction targets can be achieved through the following Water Sensitive Urban Design (WSUD) methods:

- Grassed swales, which are stormwater conveyance and treatment measures that primarily treat runoff through filtering and deposition of sediments. These can be incorporated at the downstream end of edge roads and landscaped areas.
- Bioretention swales, which are swales with the addition of a bioretention trench with filter media and an underlying pervious (slotted) collector pipe that drains to the broader stormwater drainage network.
- Infiltration systems, which capture and detain flows to encourage infiltration in the form of streetscape tree pits as mentioned above.
- Buffer strips, which are zones of vegetation designed to intercept and treat surface stormwater flows before discharging to major drainage channels.

Proprietary/non-natural mechanical systems are not preferred methods of reaching the abovementioned treatment targets.

Development applications for the subdivision of land on the subject lands must include a WSUD Strategy including:

a) Description of the proposed development/works and the existing site conditions, including the surrounding environment.
b) Summary of the relevant site objectives pertaining to water quality, quantity, and other relevant factors.
c) Explanation of the opportunities and limitations for applying WSUD solutions on the site.
d) Description of the chosen WSUD assets for the site and the design approach employed.
e) Site plans illustrating key features such as drainage pathways, as well as the location of the proposed WSUD assets (also known as a WSUD Concept Plan).
f) Application of the MUSIC modelling approach and presentation of the results, demonstrating compliance with the reduction targets.

12.3.5 SALINITY - DEVELOPMENT APPLICATION REQUIREMENTS

Salinity can affect urban structures in a number of ways, including corrosion of concrete, break-down of bricks and mortar, corrosion of steel (including reinforcement), break-up of roads, attack on buried infrastructure, reduced ability to grow vegetation and increased erosion potential. Areas around Lake Wyangan have historic issues with salinity which need to be understood and managed as part of the development of the subject lands.

Subdivision of Land

a) A detailed Salinity Investigation must be prepared in support of a development application for the subdivision of land. The Salinity Investigation must:
    I. Be prepared by a suitability qualified geotechnical engineer or soil scientist.

II. Be prepared in accordance with the former Department of Land and Water Conservation (2002) Site Investigations for Urban Salinity.
III. Include the excavation of test pits across the entire site including within or in proximity of each building envelope including laboratory testing, engineering analysis and reporting.
IV. Provide classification of selected soil samples for soil texture, electrical conductivity (EC 1:5), pH, chloride, and sulphate, sodicity and Emerson crumb dispersibility tests at a NATA accredited analytical laboratory.
V. Provide a determination as to the suitability of each building envelope for the purposes of a dwelling given the findings of the investigation.

b) Based on the findings and recommendations of the Salinity Investigation, a Salinity Management Plan must be prepared and submitted with the development application. The Salinity Management Plan must:
   I. Incorporate soil conservation measures to minimise soil erosion and siltation during construction and following completion of development. Evidence of soil and water management in accordance with Managing Urban Stormwater – Soils and Construction (as amended).
   II. Provide management measures to be implemented during bulk earthworks for the civil works associated with the subdivision of land.
   III. Provide recommendations and management strategies for the construction and installation of roads, drainage works and services including the installation of subsoil drainage.
   IV. Provide general recommendations and management strategies for the future construction of dwellings and outbuildings on each lot.
   V. Include soil and water management measures in accordance with Managing Urban Stormwater – Soils and Construction (as amended).

Construction of a Dwelling

a) An additional Salinity Investigation and Salinity Management Plan must be prepared as part of the development application for the construction of a dwelling and ancillary development on the subject lands. The Salinity Investigation and Salinity Management Plan must:
   I. Be prepared by a suitability qualified geotechnical engineer or soil scientist.
   II. Provide details as to how the recommendations in the Salinity Investigation and Salinity Management Plan for the subdivision of the land can be implemented on each lot.
   III. Provide recommendations and management measures for the siting, design and construction of a dwelling and outbuildings on the lot. Management measures would include, but not be limited to:
      - Avoiding over-watering gardens and lawns.
      - Planting large native trees and shrubs in landscape areas.

- Ensuring that water drains away from buildings and hard stand areas to avoid ponding
- Monitoring changes to water table levels and groundwater quality by installing piezometer ('monitoring bore') networks.
- Establishing gardens with low water requirements.
- Provide locations for the dwelling within the building envelope to avoid salinity hotspots.
- Provide construction methodologies to ensure dwellings can withstand the effects of salinity.

12.3.6 OTHER DEVELOPMENT APPLICATION REQUIREMENTS

Subdivision of Land

The following additional technical studies or plans must be submitted to the satisfaction of Council with a development application for the subdivision of the subject lands (this is not an exhaustive list and other studies or plans will be required):

a) A Groundwater Impact Assessment in accordance with the NSW Groundwater Strategy, the relevant Water Sharing Plan and NSW Aquifer Interference Policy
b) An assessment of the potential direct and indirect impacts of the development on Campbells Wetland and potential strategies to mitigate such impacts.
c) A Bushfire Assessment report prepared in accordance with Planning for Bushfire Protection (as amended).
d) An Aboriginal Cultural Heritage Due Diligence Assessment.

12.3.7 PRESCRIBED CONDITIONS OF CONSENT

Subdivision of Land

The following are prescribed location specific conditions of consent to be placed on development applications for the subdivision of the subject lands (this is not an exhaustive list and other conditions will be imposed):

a) A Mosquito Management Plan (MMP) must be prepared prior to the issue of a Subdivision Works certificate to the satisfaction of Council. The MMP must include, but not limited to:
    I. Be prepared by a suitably qualified professional.
    II. Provide the location of a minimum of a 100 m buffer zones between mosquito hazard/breeding sites and dwellings. This buffer zone must be kept clear of trees and any temporary or permanent water body / structure including swimming pools (refer to **Figure 52**).
    III. Outlining known nuisance and health risks associated with local mosquitoes.
    IV. Include measures to reduce the health risks associated with mosquitos including but not limited to:
        - Use of insect screening on all windows and doors.
        - Screening the inlets and outlets of rainwater tanks.

- Ensure stormwater systems can fully drain out.
- Ensure detention basins drain within 48 hours after inflows have ceased.
- Discourage the construction of any water features on the land.
- Provide mosquito avoidance strategies and measures to reduce or eliminate onsite/backyard mosquito breeding.

- The implementation of the MMP must be a requirement placed on each lot via a restriction on the use of land referred to on the 88B Instrument associated with the subdivision under the *Conveyancing Act 1919*.



FIGURE 52: EXAMPLE OF MOSQUITO BUFFER (SOURCE: BALLINA SHIRE COUNCIL, DCP 2012)

Construction of a Dwelling and Ancillary Development

The following are prescribed location specific conditions of consent to be placed on development consents for the construction of a dwelling on the subject lands (this is not an exhaustive list and other conditions will be imposed):

a) The proposed effluent irrigation area and secondary irrigation area identified in the Land Capability Assessment submitted with the development application for the construction of a dwelling must be protected through a section 88B (restriction as to user) instrument under the *Conveyancing Act 1919*. The instrument must reserve the identified area for effluent irrigation purposes and restrict any buildings or structures.

b) Swimming Pools
   a. No wastewater is to be generated by the swimming pool filtration system. As such, a cartridge filter or similar system which does not require backwashing is to be used. If any on-site disposal of wastewater from the pool filtration system is proposed this would require a separate approval from Council.

12.4 YENDA GROWTH AREA SUBDIVISION CONTROLS

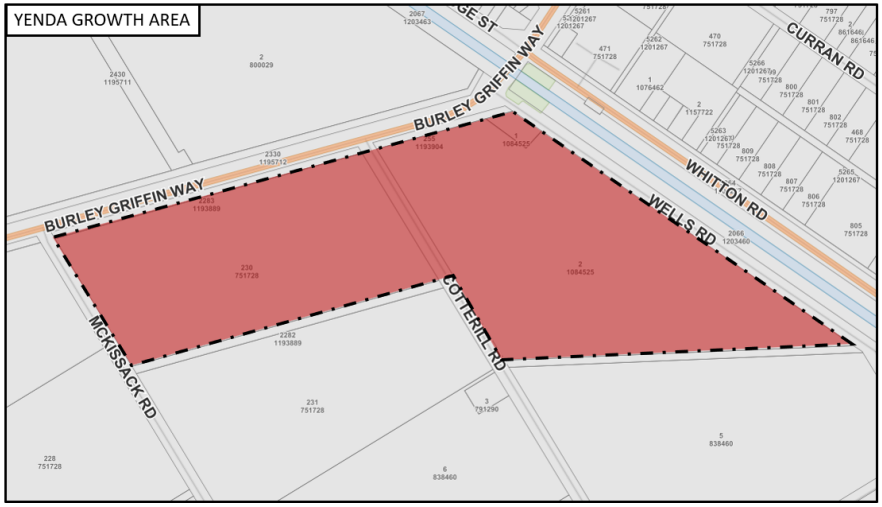


FIGURE 53: YENDA GROWTH AREA BOUNDARIES

The Yenda Growth Area (YGA) was master planned in 2025 by Council to expand the Yenda Village and provide land for an additional 700 dwellings to support the needs of Griffith's growing population. The controls in this section relate to the initial subdivision of each of the land holdings in the YGA. Any other development within the YGA is controlled under Section's **4-10** of this DCP and **Appendix 1** and **2**.

The development of the YGA should be generally in accordance with the following plans, unless otherwise agreed to by Council:

- Yenda Master Plan (YMP) – endorsed by Council on 12 August 2025

12.4.1 STAGING

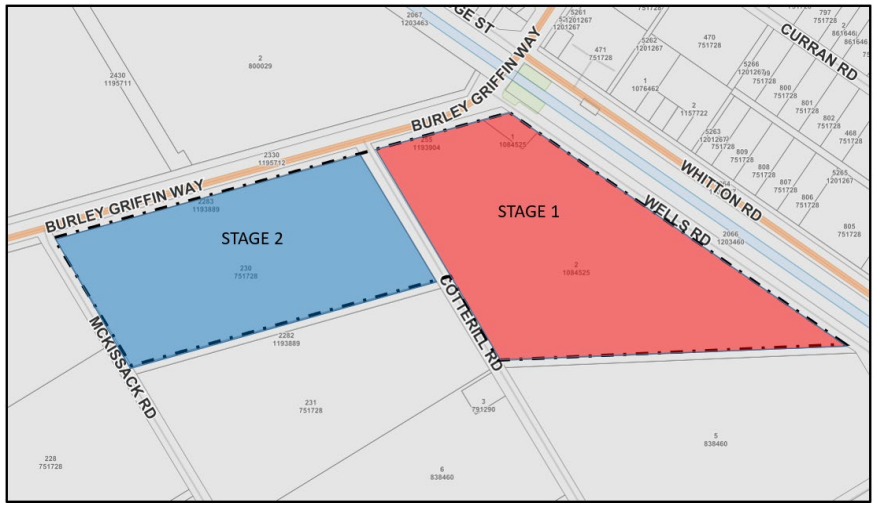


FIGURE 54: YENDA GROWTH AREA STAGING PLAN

a) Staging of the YGA must be in accordance with the YGA Staging Plan (refer to **Figure 54**).
b) The staging of the YGA should provide for the logical development of the area based on cost effective provision and availability of infrastructure and servicing arrangements.
c) Development Applications for the residential subdivision of the YGA must:
    I. consider infrastructure provision and sequencing;
    II. provide proposed arrangements for essential services, including water and sewerage servicing:
        i. the provision of sewerage servicing must be generally in accordance with the YGA

Sewer Plan and YGA Potable Water Plan or otherwise as agreed to by Council;

ii. the release of allotments will be dependent on the satisfactory provision of reticulated water and sewerage services; and

iii. incorporate road networks, stormwater conveyance systems, active and passive recreation areas consistent with the overall staging and intended development outcomes for the YGA in the YMP.

d) The release of Stage 2 of the YGA should only occur when 80% of the lots in Stage 1 have been granted a Subdivision Certificate from Council. However, Council at its discretion may release additional lands in Stage 2 by amending the Staging Plan and this Development Control Plan.

12.4.2 TRANSPORT MOVEMENT HIERARCHY

The development of land in the YGA must adhere to the following requirements:

a) The overall movement hierarchy for the YGA must be generally in accordance with the YMP.

b) The overall pedestrian and cycleway network must be consistent with the YMP and provided in accordance with Council's Pedestrian & Bicycle Strategy 2021 including a cycleway along Burley Griffin Way connecting to a shared path connecting to the village centre (Yenda Place).

c) Road network upgrades must be provided in accordance with the YMP and Council's *Engineering Standards: Subdivision and Development* (as amended) for the full frontage of the development site including intersection treatments.

d) All four-way intersections are to incorporate a roundabout.

e) Developers must consider alternative modes of transport in the planning for local road networks, including measures to encourage walking and cycling and access for public transport, community transport and taxis.

f) Development Applications for the residential subdivision of the YGA must:

I. include subdivision plans which are generally in accordance with the YMP and the requirements of this clause;

II. include an overall transport movement hierarchy showing major circulation routes and connections to achieve simple and safe movement systems for private vehicles, public transport, pedestrians and cyclists; and

III. include cross sections of each type of road proposed in the hierarchy.

12.4.3 LOT SIZE AND LAYOUT

Lot sizes and layout should generally be in accordance with the YMP. However, developers or landowners are permitted to propose alternative designs should the following key aspects of the YMP be achieved:

- Road connections to adjacent development and intersections with existing roads and retention of the road hierarchy.
- Restricting road connections to Burley Griffin Way.
- Connection to main drainage infrastructure.
- Central location of neighbourhood parks in each Stage.
- Provision of the footpath / cycleway network.
- Provision of roads adjacent to drainage channels for maintenance purposes.

The subdivision of land in the YGA must adhere to the following requirements:

a) The size of any lot subdivided must be in accordance with the relevant clauses in the GLEP. Variations to minimum lot sizes can be facilitated through clause 4.6 of the GLEP.
b) Proposed lots must be of a size and have a shape and dimensions to enable the siting of a dwelling and ancillary structures that:
    i. minimise impacts on adjoining properties including access to sunlight, privacy and views;
    ii. provide usable principal private open space;
    iii. provide vehicle access; and
    iv. protect or replace significant trees.
c) Larger lots should be provided in response to hazards such as flooding, bushfire or adjacent agricultural operations.
d) Medium density lots, where provided, should be located in areas closer to open space, parks, community facilities and public transport routes.
e) Lot layout should enable dwelling fronts to face other dwelling fronts across a public street and backyards to face backyards.
f) Lots should be oriented and configured to maximise opportunities for solar access.
g) Corner lots should be designed to enable the construction of a dwelling that can comply with the prevailing setback requirements along both street frontages (dual occupancy lot).
h) Building envelopes on lots adjacent to active agricultural operations outside the YGA must be located at least 30 m from plantings or crops and include a 20 m wide vegetated buffer within the lot. Alternatively, periphery roads with a landscaped verge designed to reduce the impacts of dust and spray drift may be used.

12.4.4 STREET TREES AND VEGETATION

c) Street Trees must be planted within the road reserves of the YGA in accordance with the following principles:
    I. street trees should provide shade and enhance the visual quality of the streetscape;
    II. existing street trees must be protected during construction;
    III. street trees should be spaced at 10 m intervals;
    IV. street trees should not interfere with underground and overhead utilities; and
    V. street trees planted around hard surfaces should be provided with appropriate grates to protect the roots and best facilitate water infiltration.

d) Development Applications for the residential subdivision of the YGA must include a landscape plan prepared in accordance with the principles set out in this clause and which includes street trees and shrub species selected in accordance with Council's Tree Policy (PG-CP-402); including:
   - Liquidambar styraciflua ' Palo Alto'
   - Pistachia chinensis (male clone)
   - Ulmus parvifolia 'Emer II Alee'
   - Pyrus calleryana 'Aristocrat'
   - Pyrus calleryana ' Red Spire'
   - Ulmus parvifolia 'Todd'
   - Platanus acerifolia
   - Platanus Orientalis 'Digitata'
   - Japanese Elm - Zelkova serrata
   - Manchurian Pear - Pyrus Ussuriensis

12.4.5 OPEN SPACE

The YMP provides for a centrally located neighbourhood Park in both Stage 1 and Stage 2. The Neighbourhood Parks must have the following minimum site areas located to ensure all lots are within 400 m walking distances as provided in the YMP:

Stage 1: 0.5 ha

Stage 2: 0.8 ha

Each Stage also includes an onsite detention basin which must be designed for dual use as open space with large turfed areas and shade trees to support open play and passive recreation.

Development applications for the residential subdivision of the LWGA are to include a preliminary design of open spaces in accordance with following principles and requirements:

a) Park furniture, shaded areas and resting places must be provided to promote pedestrian comfort;
b) A BBQ and shelter structure must be provided;
c) Safe pedestrian crossing points must be provided where routes intersect with the road network;
d) A connection to Essential Energy's electrical infrastructure must be provided;
e) A council water meter must be provided;
f) Landscaping must be provided which is low maintenance with species selected in consultation with Council;
g) All landscaped areas must include an irrigation system designed and installed in consultation with Council;
h) Easily identifiable access points must be provided;
i) Frontage to abutting roads should be provided to optimise pedestrian access and visibility;
j) Each neighbourhood park must include a playground system designed and selected in consultation with Council; and
k) Each onsite detention basin must include a large open turfed area and shade trees on the peripheries.

12.4.6 STORWMATER / DRAINAGE

a) Stormwater management for the YGA must be generally in accordance with the YMP.

b) Development applications for the subdivision of land in the YGA must include a preliminary Stormwater Management Plan which:
   I. is designed in accordance with Council's *Engineering Standards: Subdivision and Development* (as amended), the YMP and Council's Onsite Detention Policy (CS-CP-404);
   II. ensures only one drainage connection point to the main drainage network is provided where possible;
   III. provides the location and conceptual design of the sediment basins to control run-off during the construction stage;
      i. Sediment basins should also be sited and designed to cater for any proposed staging of the subdivision.
   IV. detail that the maximum impervious surfaces for the subdivision once developed is at or below 40% unless additional onsite detention is provided; and
   V. provides a minimum of a five-metre all-weather access track adjacent to channels. This can be achieved through the strategic location of roads and laneways adjacent to channels or alternatively a right of carriageway or other means to the satisfaction of Council. The channel access must ensure that a minimum turning radius of 12.5 m truck is provided.

12.4.7 WATER QUALITY

The following water quality reduction targets must be achieved by development in the YGA:

- Total Suspended Solids: 65%
- Total Phosphorous: 50%
- Total Nitrogen: 46%

Water quality reduction targets can be achieved through the following Water Sensitive Urban Design (WSUD) methods:

- *Grassed swales, which are stormwater conveyance and treatment measures that primarily treat runoff through filtering and deposition of sediments. These can be incorporated at the downstream end of edge roads and landscaped areas.*
- *Castellated kerbs: The edge roads that surround the site have been designed as one-way cross fall with castellated kerbs on the lower side. This allows the stormwater to permeate through the kerbs and self watering grass verges and planting. This also allows the grasses to strip pollutants and nutrients out of the stormwater prior to it entering drains. The breaks in the kerb distribute and fan the water out as it flows through. It is recommended that the grass verge be mown a little longer, say up to 100mm will aid the filtering of the water.*
- *Bioretention swales, which are swales with the addition of a bioretention trench with filter media and an underlying pervious (slotted) collector pipe that drains to the broader stormwater drainage network.*
- *Infiltration systems, which capture and detain flows to encourage infiltration in the form of streetscape tree pits as mentioned above.*
- *Buffer strips, which are zones of vegetation designed to intercept and treat surface stormwater flows before discharging to major drainage channels.*

- *Rain gardens which are a planting area around a street tree allowing stormwater to enter (usually via a kerb opening. The planting area has a structured soil bed allowing water to permeate to a subsoil drain allowing the clean water to exit the stormwater system.*

Proprietary/non-natural mechanical systems are not preferred methods of reaching the abovementioned treatment targets.

Development applications for development in the YGA must include a WSUD Strategy including:

a) Description of the proposed development/works and the existing site conditions, including the surrounding environment.
b) Summary of the relevant site objectives pertaining to water quality, quantity, and other relevant factors.
c) Explanation of the opportunities and limitations for applying WSUD solutions on the site.
d) Description of the chosen WSUD assets for the site and the design approach employed.
e) Site plans illustrating key features such as drainage pathways, as well as the location of the proposed WSUD assets (also known as a WSUD Concept Plan).
f) Application of the MUSIC modelling approach and presentation of the results, demonstrating compliance with the reduction targets.

12.2.8 INFRASTRUCTURE

a) The design and installation of sewerage, water and stormwater must be provided in accordance with Council's *Engineering Standards: Subdivision and Development* (as amended) and the YMP unless other arrangements satisfactory to Council are proposed.
b) The design of the subdivision must meet the requirements of Fire and Rescue NSW's *'Fire Safety Guideline – Fire Hydrants for Minor Residential Development'*.
c) The design and installation of electricity, street lighting, telecommunications (including NBN) and gas services must be in accordance with the requirements of the relevant servicing authorities.
d) Electricity and telecommunications infrastructure should be provided as underground services.
e) Compatible public utility services should be coordinated in common trenching to minimise construction costs for underground services and reduce restrictions on landscaping within road reserves.
f) Development Applications for subdivision in the YMP area must Include draft servicing plans showing the location of all required utilities and demonstrating compliance with this section.

12.4.9 CONTAMINATION

a) The Statement of Environmental Effects for subdivision to which this section relates should provide a history of the use of the site indicating whether there may have been any previous or current land uses that could have resulted in contamination of the site in accordance with Council's *Contaminated Land Management Policy (EH_CP_203)*.
b) If there is a possibility the site could be contaminated from past uses, the development application must

address the requirements of *State Environmental Planning Policy (Resilience and Hazards (2021)*, *Managing Land Contamination Planning Guidelines 1998* - Department of Urban Planning / Environment Protection Authority (as amended or replaced) and Council's *Contaminated Land Management Policy* (EH_CP_203).

12.4.10 SAFETY

a) Development applications should demonstrate how the lot, access, street and street lighting arrangements will promote the principles of Crime Prevention Through Environmental Design (CPTED), including but not limited to:
   I. orienting building envelopes and car parking areas to minimise inactive streets;
   II. casual surveillance of public spaces, including the street; and
   III. appropriate lighting of public spaces and walkways.

12.4.11 MEDIUM DENSITY LOTS

The YMP includes the location of medium density nodes which have been strategically located near open space, key intersections, and on multiple frontages. As part of the detailed design of both Stage 1 and Stage 2, medium density lots are to be provided in accordance with the following:

a) A total of **50%** of the developable lot area of the YGA can be utilised for medium density lots permitting the development of more than one dwelling.
b) 25% of medium density lots must be located in nodes which are strategically located on multiple frontages and in close proximity to arterial roads, public transportation network and public open spaces. Nodes must have an average lot size of at least 2000m^2.
c) 25% of medium density lots can be single lots strategically located throughout the development on corner lots, lots with multiple frontages and adjacent to open space areas.
d) A Restriction as to User pursuant to Section 88B of the *Conveyancing Act 1919* must be placed on all lots within the LWGA stating that only one primary dwelling must be constructed with the exception of lots designated as medium density lots. This does not limit the construction of a secondary dwelling in accordance with the GLEP.
   I. Any development of medium density allotments with impervious surfaces in excess of 40% of the lot area must provide onsite detention in accordance with Council's Onsite Detention Policy (CS-CP-404).

12.4.12 NEIGHBOURHOOD COMMERCIAL AND RETAIL USES

The Griffith Local Environmental Plan 2014 permits commercial and retail uses within the RU5 – Village zone. However, Council will discourage the location of commercial uses within the YGA and support the redevelopment and revitalization of the Yenda Village centre around Yenda Place.

12.4.13 FLOODING

a) Development in the LWGA must be designed and sited in accordance with Clause 5.21 of the GLEP 2014 and the Griffith Main Drain J and Mirrool Creek Flood Study and Risk Management Plan as amended.
b) No building or structure can be erected and no land filled by way of the deposition of any material within any area identified as a floodway except for minor alterations to ground levels which do not significantly alter the fundamental flow patterns for:
    I. Roads;
    II. Parking; and
    III. Landscaping and open space.
c) Development Applications for subdivision in the YMP area must Include a design which takes into consideration the flood affectation of the land and the requirements of this clause.
d) Development applications for land which is impacted by a floodway or flood storage area must be in accordance with Council's Flood Liable Land Policy (CS-CP-403).

12.4.14 BUSHFIRE PRONE LAND

This section contains development controls applying to Development Applications for subdivisions involving land that is classified as bushfire prone on Council's Bushfire Prone Land Map.

a) A Bushfire Risk Assessment Report must be lodged together with the Statement of Environmental Effects in support of the Development Application on bushfire prone lands. The Bushfire Risk Assessment Report must be prepared by a suitably qualified and experienced bushfire consultant and address the developments consistency with RFS's *Planning for Bushfire Protection Guidelines 2019* as amended or replaced.
b) Bushfire protection measures are to be placed wholly within the development site. All proposed Asset Protection Zones are to be within the property to be subdivided and incorporated into affected lots. Asset Protection Zones will not be accepted on existing Council reserves, other public lands or in reserves proposed to be dedicated through the subdivision.
c) Fire trails, if required, are not accepted on existing Council reserves proposed to be dedicated through the subdivision.

APPENDIX 1 - GRIFFITH PARKING CODE

1.0 INTRODUCTION

This Parking Code applies to the all Lands to which the DCP applies. Griffith City Council requires that off-street car parking be provided to meet the needs of the proposed use and that car parking is designed to meet the relevant code and standards set at the Local, State and Federal levels. This Chapter excludes any parking arrangement within a street reserve. The Parking Code sets out numerical standards and controls which will be addressed in relation to the provision of access, parking and servicing of a development. Applicants are required to demonstrate with their application that the proposed parking provisions are consistent with the objectives and principles of this Parking Code.

1.1 OBJECTIVES

a) To ensure that safe and sufficient parking for all modes of transport is provided to meet anticipated demands.
b) To improve the design and quality of the urban environment.
c) Ensure equitable access for people with disabilities.
d) To facilitate alternative modes of transportation.
e) To encourage re-development within the CBD precincts (Map 1).

1.2 GENERAL PROVISIONS AND DEVELOPMENT CONTROLS

a) The number of parking spaces to be provided on-site is to be determined in accordance with the requirement specified under each use category and are summarised in Table 1 below.
b) Compliance with the numerical and design requirement of this Plan is not necessarily sufficient basis for approval. Council must also ensure that the development proposal overall satisfies the zone objectives and any other applicable planning or legal instrument.

1.3 DEFINITIONS

Gross floor area (GFA) means the overall area of a building as measured from the outer face of external walls, but excludes:

a) columns, fin walls, sun control devices and any elements, projections or works outside the general lines of the outer face of the external wall.
b) lift towers, cooling towers, machinery and plant rooms and ancillary storage space and vertical air-conditioning ducts.
c) car parking needed to meet any requirements of Council and any internal access to such spaces.
d) space for the loading and unloading of goods.

Gross leasable floor area (GLFA) means the overall area of a building as measured from the internal face of the walls, but excludes:

a) stair cases and fire escapes.
b) staff and/or public amenities, toilets.
c) lift towers, machinery and plant rooms, ancillary storage space and vertical air conditioning ducts.
d) space for the loading/unloading of goods.
e) any other area, which in Council's opinion, does not contribute to parking.

TABLE 1 – PARKING RATIOS

Land Use Type	Minimum Car Parking Requirement
Agriculture	Calculated based on the estimated maximum number of employees and potential visitors to the site or a comparative analysis of other similar developments
Agricultural Industries • **Agricultural produce industry** • **Livestock produce industry** • **Rural industry**	Calculated based on the estimated maximum number of employees and potential visitors to the site or a comparative analysis of other similar developments
Rural Supplies	1 space per 100 m^2 GFA plus 1 space per 300 m^2 of outdoor display area.
Amusement Centre	1 space per 40 m^2 GFA
Animal boarding or training establishment	Calculated based on the estimated maximum number of employees and potential visitors to the site or a comparative analysis of other similar developments
Business Premises	
• **Bulky goods premises**	1 space per 50 m^2
• **Industrial retail premises**	1 space per 50 m^2
• **Neighbourhood shops**	1 space per 40 m^2 GFA
• **Office premises**	1 space per 50 m^2 GFA within CBD 1 space per 40 m^2 GFA outside CBD
• **Retail premises**	1 space per 50 m^2 GFA within CBD 1 space per 40 m^2 GFA outside CBD
• **Supermarkets**	1 space per 30 m^2 GFA within CBD
• **Wholesale Supplies**	1 space per 50 m^2 GFA
• **Business Premises (banks, post office, hairdressers, dry cleaners, travel agencies (see definition of a Business premises in the Griffith Local Environmental Plan 2014**	1 space per 40 m^2 GFA
Cellar door premises	1 space per 50 m^2 GFA

APPENDIX 1 - GRIFFITH PARKING CODE

Child care facility	1 space per employee and 1 space per 10 children
Residential Development	
• **Affordable rental housing**	As per State Environmental Planning Policy (SEPP) (Housing) 2021
• **Dwellings (including dual occupancies, attached dwellings, multi dwelling housing and residential flat buildings)**[1]	• 1 space per 1 bedroom/studio dwelling • 1.5 spaces per 2 bedroom dwelling • 2 spaces per 3 or more bedroom dwelling • 1 space per 10 bedrooms for visitors
• **Group homes**	1 space per 4 beds + 1 space per 2 employees
• **Boarding house**	0.4 spaces per boarding room
• **Moveable dwellings**	1 space per dwelling
• **Shop top housing**	• 0.5 spaces per 1 bedroom unit • 1 space per 2 + bedroom unit
• **Seniors Housing, residential care facility or hostel**	As per SEPP (Housing)2021
Educational Establishment	
• **Primary school**	2 spaces per classroom
• **Secondary school**	2.4 spaces per classroom
• **Tertiary**	2.4 spaces per classroom
Emergency services facility	1 space per emergency vehicle + 1 space per 50 m^2
Entertainment facilities	1 space per 10 m^2 or 1 space per 10 seats, whichever is greater
Exhibition home	2 parking spaces
Food and drink premises	
• **Kiosks**	1 space per 50 m^2 GFA within CBD 1 space per 40 m^2 GFA outside CBD
• **Pubs**	1 space per 5m^2 GFA
• **Restaurants**	1 space per 4 seats including any outdoor seats

[1] Refer to Precinct Statement in DCP for a

Take away food & drink premises	1 space per 10m^2 GFA or 1 space per 4 seats where onsite dining is provided whichever the greater
Function centre	1 space per 5m^2
Health Services Facility	
• **Medical centre**	3 spaces per surgery, consultation room or treatment room + 1 space per staff doctor + 1 space per staff member on duty at any one time
• **Health consulting rooms**	3 spaces per surgery, consultation room or treatment room + 1 space per staff doctor + 1 space per staff member on duty at any one time
• **Hospital**	1 space per 10 beds + 1 space per resident or staff doctor + 1 space per staff member on duty at any one time + ambulance parking
Home-based development	
• **Home based child care**	1 space plus dwelling requirements (can be a tandem space)
• **Home business or industry**	1 space plus dwelling requirements
• **Home occupation**	As per dwelling requirements
• **Home occupation (sex services)**	1 space plus dwelling house requirements
Industry	
• **Freight transport facilities**	Calculated based on the estimated maximum number of employees and potential visitors to the site or a comparative analysis of other similar developments
• **Industry**	1 space per 200 m^2 with a minimum of 2 spaces per industrial unit
• **Industrial retail outlet**	1 space per 50 m^2 GFA
Market	2 spaces per stall
Passenger transport facility	Traffic Impact Assessment including parking analysis required
Place of public worship	1 space per 5 seats or 1 space per 10m^2 GFA whichever is greater
Public administration building	1 space per 40m^2 GFA plus 1.5 spaces per 100m^2 GFA public area
Recreation facility	
• **Indoor** **a) Bowling alley** **b) Dance studio** **c) Gymnasium**	a) 1 space per bowling lane b) 1 space per 25m^2 GFA c) 1 space per 25m^2 GFA

d) Squash courts **e) Swimming pools**	d) 3 spaces per court e) 1 space per 10 m^2 of pool area
• **Outdoor** **a) Bowling green** **b) Golf course** **c) Showground** **d) Tennis courts**	a) 30 spaces per green plus 15 per additional green b) 3 spaces per hole c) Traffic Impact Assessment including parking analysis required
• **Major**	Traffic Impact Assessment including parking analysis required
Registered Club	1 space per 5 seats or 1 space per 10m^2 GFA whichever is the greater
Accommodation	
• **Bed and breakfast**	1 space per room plus dwelling requirements
• **Caravan parks**	1 space per caravan/cabin site plus 1 space per operator plus 1 space per employee
• **Farm stay accommodation**	1 space per room plus dwelling requirements
• **Backpacker accommodation**	1 space per four beds plus 1 for the manager
• **Hotel or motel accommodation**	1.25 spaces per two hotel suites + any function room or food and drink premises requirements if included
• **Service Apartment**	1.25 spaces per serviced apartment
Sex service premises	
• **Brothels**	2 spaces per client room
• **Restricted premises**	1 space per 40 m^2 GFA
Storage Premises	
• **Depot**	Calculated based on the estimated maximum number of employees and potential visitors to the site or a comparative analysis of other similar developments
• **Transport (incl. truck) depot**	Calculated based on the estimated maximum number of employees and potential visitors to the site or a comparative analysis of other similar developments
• **Self-storage units**	1 space per 10 storage units or 1 space per 300m^2 whichever is the greater
Trade Supplies	
• **Landscape and garden supplies**	1 space per 100m^2 GFA plus 1 space per 300m^2 of outdoor display area
• **Trade and building supplies**	1 space per 100m^2 GFA plus 1 space per 300m^2 of outdoor display area

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Vehicle related development	
• ***Boat repair facility***	2 spaces per work bay
• ***Car wash facilities***	4 spaces per wash bay
• ***Service stations***	6 spaces per service bay and 3 spaces per 100m^2 GFA of convenience store and if restaurant present, 15 spaces per 100m^2 GFA, or 1 space per 3 seats whichever is greater)
• ***Vehicle body repair workshop***	2 spaces per work bay
• ***Vehicle repair station***	3 spaces per 100 m^2 GFA or 3 spaces per work bay whichever is greater
• ***Vehicle sales or hire premises***	1 space per 100m^2 GFA plus 1 space per 300m^2 of outdoor display area
Veterinary hospital	3 spaces per surgery, consultation room or treatment room
Warehouse or distribution centre	1 space per 300 m^2 GFA
Waste management facility	Calculated based on the estimated maximum number of employees and potential visitors to the site or a comparative analysis of other similar developments

2.0 PARKING PROVISIONS

2.1 REDUCTION OF REQUIRED PARKING

a) A reduction of the required number of parking spaces may be permitted in order to comply with the desired design standards suggested in this DCP, to improve accessibility to parking spaces, and to enhance manoeuvrability of vehicles.

b) *A further* reduction of the required parking may only be permitted under the following circumstances:

I. Development within a precinct of the CBD; or

II. Departure from parking requirements because of Shared Parking Calculation

2.1.1 REDUCTION OF REQUIRED PARKING DEVELOPMENT WITHIN THE CBD

a) Applications involving a departure from parking requirements in a precinct of the CBD (Figure 1) may be permitted with the maximum reduction allowed in the respective precincts of the CBD subject to the criteria listed below will be:

Precinct 1: 100%
Precinct 2: 50%
Precinct 3: 75%
Precinct 4: 75%

b) Council will consider the following criteria when considering a reduction of the required parking:

I. Size and nature of the development;

II. Amount of additional floor area relative to the existing floor area;

III. Parking demand generated;

IV. Availability and access of other public parking;

V. Proximity to bicycle paths;

VI. Existing and likely future traffic volumes on the surrounding road network;

VII. Nature of the surrounding road network;

VIII. Environmental implications of providing parking with particular regard to vegetation and landscape impacts;

IX. The likely impact of not providing the parking; and

X. Additional information stipulated or needed for the calculation of a reduction.

c) Reduction of the required number of parking spaces may be calculated according to the guidelines in Table 2 to a maximum reduction as per section 2.1.1(a).

TABLE 2 – Parking Reductions in CBD

Development Circumstance (Criteria)	**Maximum reduction permitted**
Development fronting Banna Avenue, Kooyoo Street, Olympic Street, Ulong Street and Yambil Street.	**30%**
Use or renovation of a building listed in Schedule 6 of the Griffith LEP	**50%**
Development entailing a restaurant or night club	**20%**
Development entailing an outdoor eating area equivalent to or exceeding indoor eating areas	**50%**
Development entailing an outdoor eating area less than indoor eating areas	**20%**
Development of a second storey for the expansion of an existing ground floor business.	**50%**
Development entailing an addition of a mezzanine floor	**20%**

within an existing structure, but with no further additions to the existing outer structure.	
Development entailing provision of new multi-destination parking	**20%**
Development entailing provision of new multi-level, roof-top or basement parking	**30%**
Development and new additions less than 50m² GFA	**20%**

2.1.2 REDUCTION OF REQUIRED PARKING: SHARED PARKING CALCULATION

a) Shared Parking Calculation *applies to development outside the CBD* and in the following circumstances:
   I. If a development exceeds 500m² in floor area and involves a combination of two or more of the respective primary and secondary land uses listed in Table 1 on the same property, the applicant may apply for calculation of the required car parking based on Shared Parking Calculation; and
   II. If up to two directly adjacent allotments involves a combination of two or more of the respective primary and secondary land uses listed in Table 3 on adjoining properties with a combined floor area exceeding 1000m², the applicant may apply for calculation of the required car parking based on Shared Parking.

b) The extent of the reduction in the parking requirement because of Shared Parking calculation outside the CBD may not exceed 50% of the number of parking spaces required for the total development, including existing parking approved prior to the development.

c) Shared parking may only be calculated for the primary uses in Table 3, using either the floor area (m²) for non-residential uses or the number of units in the case of residential uses.

Table 3 – Land-use Mixes Qualifying for a Shared Parking Calculation

Primary uses	**Secondary uses**
Dwelling, dwelling units, residential development or boarding house	Child care centre, commercial purposes, educational establishment, general store, medical centre, light industry, neighbourhood centre (excluding a club, hotel, place of assembly, place of public worship, recreation facility and service station), public building, retail plant nursery, roadside stall, shop and shopping centre.
Commercial purposes, child care centre, educational establishment, general store, medical centre, light industry, neighbourhood centre (excluding a club, hotel, place of assembly, place of public worship, recreation facility and service station), public building, retail plant nursery, roadside stall, shop and shopping centre.	Dwelling, dwelling units, residential development or boarding house
Industries	Commercial purposes, dwelling, dwelling units, educational establishment, general store, medical centre, neighbourhood centre (excluding a club, hotel, place of assembly, place of public worship, recreation facility and service station), public building,

	residential development or boarding house, retail plant nursery, roadside stall, shop and shopping centre.
Medical centre, hospital	Educational establishment, commercial premises

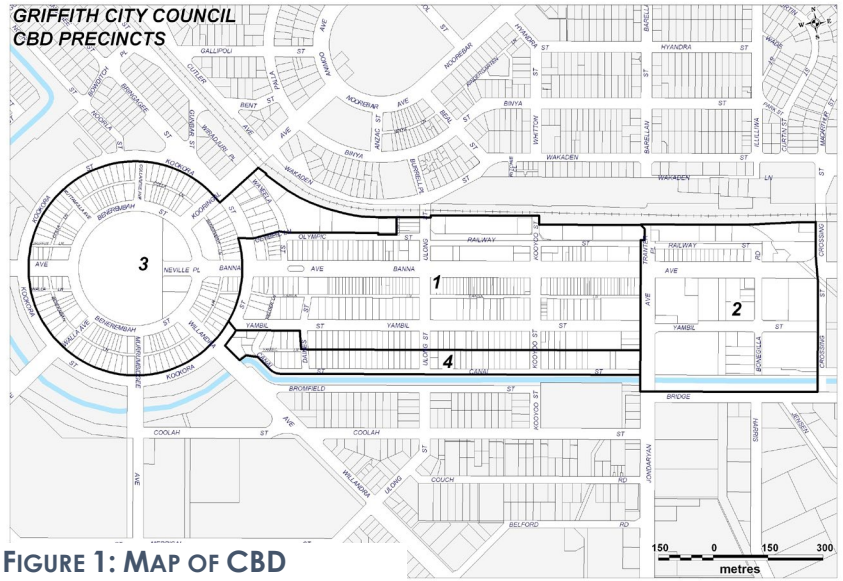


FIGURE 1: MAP OF CBD

c) Where an application involves Shared Parking Calculation the following will apply:
   I. It must be demonstrated that the land uses have differing peak hours (not overlapping), or that the combination of land uses will imply multi-destination parking.
   II. Shared Parking Calculation must form part of the initial development application, and must include a detailed breakdown of the likely peak hours of traffic generated in the proposed development.
   III. Where more than one parking rate can be used to calculate the parking requirement for the primary use, the highest parking rate applicable must be used in the calculation of the required parking spaces.
   IV. Where Shared Parking Calculation involves two adjoining properties, a written agreement between the involved landowners must form part of the initial application for reduction.
   V. Shared Parking Calculation involving two adjoining properties may only be approved subject to the registration of an easement to this effect on the relevant properties, even when both properties are in the same ownership.

2.1.3 PARKING CREDITS

Credits for parking will be given to existing development on the following basis:

a) The requirements of any previous development consent; and
b) The payment of any previous Section 94 Contributions.

2.2 CALCULATION OF REQUIRED PARKING

When calculating the required parking the following principles will apply:

a) When determining the required number of parking spaces results in a fraction, the number of spaces required will be rounded to the nearest whole number, and each fraction one-half (0.5) or more must constitute another space.

b) Should a development contain two or more types of uses, rounding of the number of spaces required will not be permitted for each of the different uses, but will only be allowed as a final rounding of the total number (sum) of spaces required.
c) Where the end use of a proposed development, or part of a development, is not known during the assessment stage, Council may calculate the parking requirement according to the maximum required rate for the most likely end use reasonably foreseen.
d) For stadiums, sports arenas, churches, places of public assembly or other uses in which patrons or spectators occupy benches, pews or other similar seating facilities, each 60 cm of such seating facilities must be counted as one seat for the purpose of determining the required number of parking.
e) Except as provided for specifically under a Shared Parking Calculation, should a development contain two or more types of uses, each use must be calculated separately for determining the total required number of parking spaces.
f) Where development comprises an extension of an existing development, additional parking must be calculated for the additional floor area.
g) Where development entails a change of a lawfully approved use, additional parking must be calculated for the difference in the required parking ratio.
h) Where it can be demonstrated that the existing buildings and/or development on the site has been subject of contributions in the past, a credit must be calculated on the basis of the existing and approved floor area and any parking space paid for under Section 94 of the Environmental Planning and Assessment Act, 1979.

2.3 EXCLUSIVE PARKING

a) All required parking spaces must be available for use by patrons/clients of a development at all times during operating hours. If parking spaces are required for the exclusive use of an owner or employees of a development, then such spaces must be provided over and above those required in this Plan.

2.4 PROVISION OF ON-SITE PARKING ON ANOTHER SITE

a) Where it is not possible or desirable to provide on-site parking, partially or in total, for a proposed development, Council may permit parking to be provided on another site if:
    I. The site on which the parking will be provided will be readily accessible and within reasonable walking distance, not exceeding 300 metres, from the development site
    II. The site forms part of the lands to which the development application related.
    III. The parking is maintained on that site for the life of the development

3.0 PARKING DESIGN

3.1 MINIMUM DESIGN STANDARDS SINGLE DWELLINGS AND DUAL OCCUPANCIES

a) Off-street parking may be located in enclosed garages or under a protective roof or covering.
b) For each residential lot, not more than two driveways must be permitted, each of which must be a maximum of 3.5m wide.
c) The width of a garage or gate is to be at least 3.0m with 2.75m unobstructed width at the doorway measured between the door jambs.
d) Access to or from a site must be located no closer than 1.0m from any property boundary and not closer than 6m from a corner boundary.
e) Driveways will generally not be permitted in the following locations: (Figure 2)
    I. In close proximity to traffic signals, intersections or roundabouts where queuing and sight distances are issues of consideration and distances from this infrastructure do not meet AUSTROAD's Guidelines; and
    II. In the sections of kerb shown in heavy lines (see Figure 2).

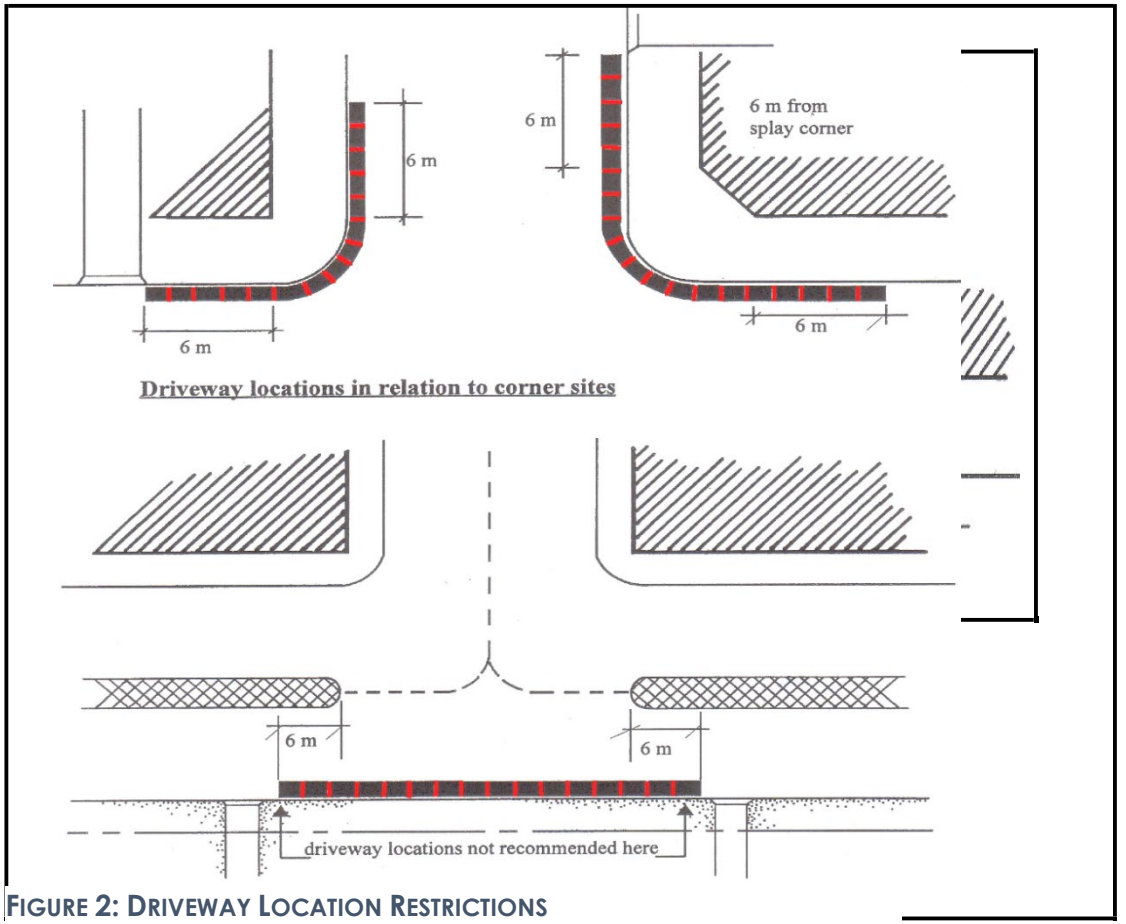


FIGURE 2: DRIVEWAY LOCATION RESTRICTIONS

3.2 MINIMUM STANDARDS FOR ALL OTHER DEVELOPMENTS

3.2.1 ACCESS

a) The design of access points and internal circulation should be such that all vehicles can enter and leave the site in a forward direction.
b) Access to or from a site must be located where it causes the least interference to vehicular and pedestrian traffic on a public road, to the discretion of the Council. Access to parking areas will generally not be permitted in the following locations:
    I. In close proximity to traffic signals, intersections or roundabouts where queuing and sight distances are issues of consideration and distances from this infrastructure do meet AUSTROAD Guidelines;
    II. Opposite other developments generating a large amount of traffic unless separated by a median island, or unless the road is a dual carriageway; and
    III. In the sections of kerb shown in heavy lines (see Figure 3)

c) Access to loading facilities must be provided directly from a public road or lane that will not interfere with public convenience and that will permit orderly and safe movements of trucks.
d) The number of access points from a site to any one street frontage must be limited to 1 entrance and 1 exit (or 1 combined entrance/access), except where large car parks are controlled by vehicle movements in peak hour situations.
e) Where access to a parking area is available from a road other than a major road, such alternative access is to be utilised in preference to direct access to the major road.

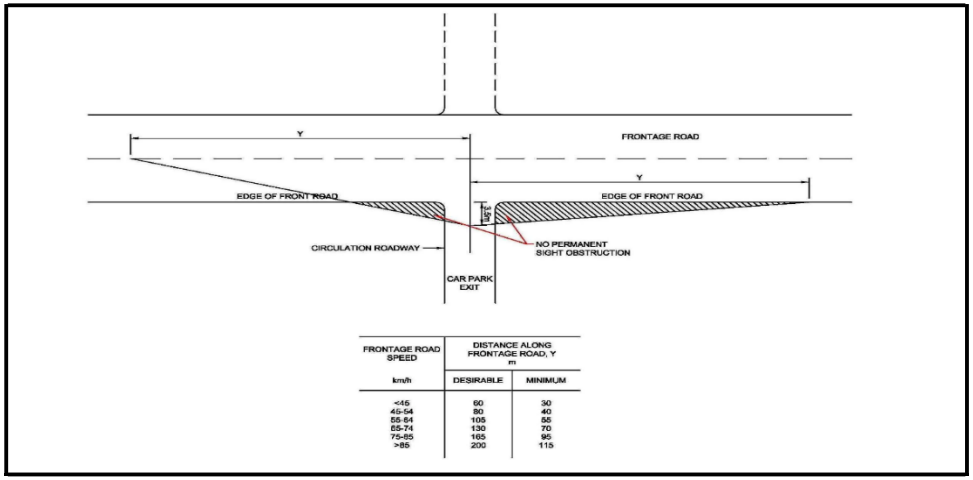


FIGURE 3: LOCATION OF ACCESSES

f) The potential for on-street queuing should be eliminated by the provision of sufficient standing area for vehicles entering the carpark and loading areas.
g) Intersection sight distance – signalised access driveway exits must be located so that the intersection sight distance along the frontage road available to drivers leaving the car park is as indicated in Figure 3.

h) Driveway exits need to be located and constructed so that there is adequate intersection sight distance to traffic on the frontage road and sight distance to pedestrians on the frontage road footpath (see Figure 4).

i) Sight distance to pedestrians – clear sight lines (see Figure 5) must be provided at the property line to ensure adequate visibility between vehicles on the driveway and pedestrians on the frontage road footpath. The loss of on-street parking incurred as a result of a driveway and sight distance requirements must be provided on-site in addition to the required number of parking bays.

j) Access for vehicles in Precinct 1 of the CBD indicated on Map 1 must be further limited to the following:
   - Residential vehicle access to properties fronting Banna Avenue must be via Olympic Street, Railway Street, or Banna Lane.
   - Residential vehicle access to properties fronting Yambil Street (northern side) must be via Banna Lane.
   - Where possible residential vehicle access to properties fronting Yambil Street (southern side) must be via Canal Street, or side streets.

k) Accessways must be designed and constructed in accordance with Council's *Engineering Standards: Subdivision and Development Standards* (as amended).

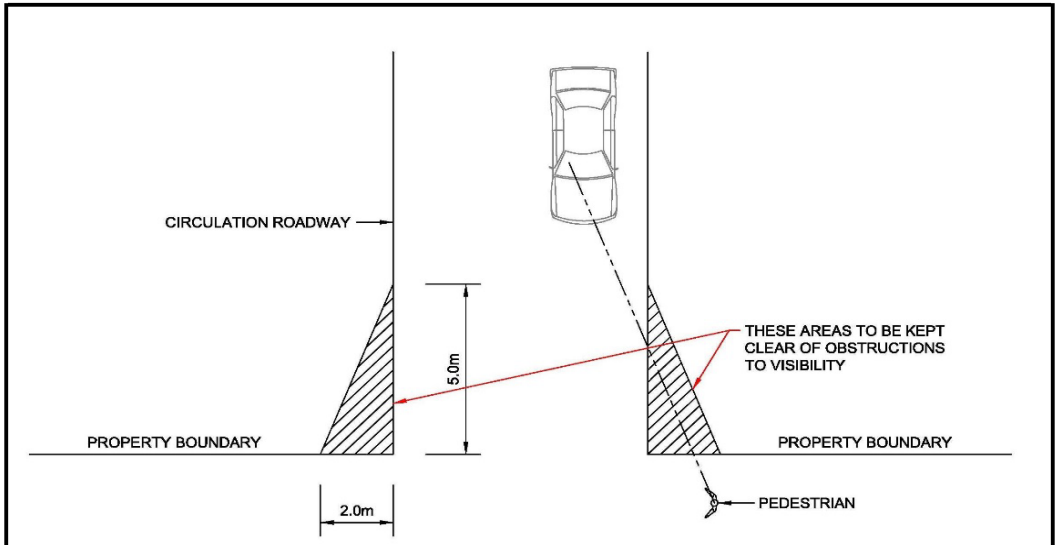


FIGURE 4: SIGHT DISTANCE FOR PEDESTRIANS

3.2.2 PARKING AREA DESIGN, DIMENSIONS AND DRIVEWAY/AISLE WIDTHS

a) The parking areas of all developments must adhere to the requirements of Australian Standard 2890 (as amended) (AS 2890).
   i. Notwithstanding, the provisions of AS 2890 to the contrary, all parking spaces must have minimum dimensions of **2.6 m x 5.5 m**; and
   ii. Notwithstanding, the provisions of AS 2890 to the contrary, all parking areas with 90 degree parking must have minimum aisle width of **6.2 m**.

3.2.3 VEHICLE STACKING (TANDEM PARKING)

a) The provision of tandem parking, that is parking of a vehicle directly behind another vehicle, where access

to the parking space is via the end of the space, is generally not included for the purpose of tallying car space numbers, except for:

i. Single dwellings and residential units where one space may be provided in front of a garage or carport for every residence or unit; and
ii. Commercial/retail establishments with drive-in or drive-through services that create lines of customers waiting to be served within vehicles.

b) In the case of the afore-mentioned commercial/retail establishments with drive-in or drive-through services, stack parking must be allowed according to the following minimum requirements:
   i. Drive-through restaurants, banks and beverage docks that can normally serve customers within three minutes or less must provide no less than four stacking spaces per service point;
   ii. Self-service carwash facilities must provide no less than three stacking spaces per wash bay. Automated carwash facilities must provide no less than five stacking spaces per wash bay; and
   iii. Service stations must provide no less than two stacking spaces for each accessible side of the pump island, in addition to the actual spaces in front of each pump used for fueling.

3.2.4 MANOEUVRABILITY

a) The minimum turning path for vehicles must be in accordance with AS2890, however with the following minimum application:
   i. For all residential developments a design car turning path will be applied with a minimum design turning circle of 11.5m diameter;
   ii. For all commercial, retail and industrial developments less than 500m² a turning circle will be required to accommodate a Small Rigid Truck for access to the loading bay/service area or largest vehicle expected to access the site;
   iii. For all commercial, retail and industrial developments 500m² or greater, a turning circle will be required to accommodate a Large Rigid Truck for access to the loading bay/service area or the largest vehicle expected to access the site; and
   iv. Reversing of a vehicle to exit a carparking space and/or parking area must not exceed 15 metres in length. In this instance a manoeuvring area/turning bay must be provided at the end of the carpark for vehicles to enter and exit area in a forward direction. The manoeuvring area/turning bay must be appropriately line-marked and signposted to the satisfaction of Council.

3.2.5 PARKING FOR PEOPLE WITH DISABILITIES

a) All parking for people with disabilities must be provided according to the classification and requirements of the National Construction Code (NCC) and AS2890.
b) Parking for people with disabilities must be clearly signposted and located closest to the main entrance

of the primary facility of any development.

c) Parking for people with disabilities must have a clear height of 2.5m that must be maintained from the access point to the parking spaces to provide for roof mounted devices and "high-roof" vehicles.

3.2.6 LOADING BAYS AND SERVICE AREAS

a) All loading docks must be used solely for loading and unloading purposes. Loading and unloading must not be permitted from a public road unless designated loading and unloading bay's in Council's road reserve are utilised. Storage of waste products or merchandise must not be permitted in a loading dock. A loading dock may be used for waste collection by a garbage collection vehicle.

b) Loading bays must conform to the following minimum dimensions:

- Single dock width: 3.5m
- Multi-unit dock width (per bay): 4.0m
- Dock depth (non-semi-trailer): 12.5m
- Dock depth (semi-trailer): 19.0m
- Dock handling area depth (for goods movement): 3.0m
- Free clearance over dock and vehicle movement area: 3.6m

c) All service vehicles should be able to enter and leave the site in a forward direction and therefore, adequate manoeuvring space is required on-site.

d) Internal circulation roadways must be adequate for the largest vehicle anticipated to use the site.

3.2.7 BUS AND COACH PARKING

a) Bus and coach parking may be required by the Council, in addition to the required parking rate, for any development likely to generate or attract such traffic.

b) Unless otherwise required, bus and coach parking must be provided in a parallel parking configuration, in parking spaces with a minimum width of 3.3m and the following minimum lengths:

- Urban medium single deck: 19 m
- Large coach: 21 m
- Articulated: 27m

3.2.8 BICYCLE AND MOTORCYCLE PARKING

a) Parking must be provided for bicycles and motorcycles for all new developments of a non-residential nature with in excess of 10 parking spaces on the site to be developed or at another locality, accessible to the public, as agreed to by Council or the Authorised Officer.

b) In addition to the required parking rates, parking must be provided for motorcycles at a rate of 1 marked parking space for every 20 car parking spaces, and for bicycles at a rate of 1 bicycle rail with at least 3-wheel slots for every 50 car parking spaces.

c) Parking for bicycles must be clearly signposted and located closest to the main entrance of the primary facility of any development, second only to parking spaces for disabled people.

4.0 PARKING CONSTRUCTION

4.1 GRADIENTS

a) Unless explicitly otherwise permitted for parking garages; no access way, driveway, or turning area must have a longitudinal gradient exceeding 10%.
b) The maximum driveway grades for single dwellings or residential units must be 3% (1:33) from the top of the kerb to the property boundary.
c) All car parking spaces must have a maximum longitudinal gradient of 10% and a maximum cross-fall of 5%.
d) All access ways for pedestrians and driveways also being used as pedestrian access must have a maximum longitudinal gradient of 8%.

4.2 MATERIALS AND STANDARDS FOR CONSTRUCTION

a) All areas used for standing and manoeuvring of vehicles must be designed in accordance with Council's *Engineering Standards: Subdivision and Development* (as amended).
b) All non-residential development parking, access and manoeuvring are must be constructed in accordance with following minimum requirements (unless an alternative construction standard is permitted under Council's Sealing of Parking and Manoeuvring Areas Policy (CS-CP-405)):

Base Course

i. Minimum 200mm of compacted road building gravel must be placed over the total carpark area. This thickness must be increased depending on traffic usage and natural soil type. All soft or unsuitable materials must be removed to give a sound base.

Drainage

ii. All parking areas must be designed to avoid concentrations of water run-off on the surface. The carpark must be graded to retain water on-site and diverted to collection pits (or an on-site detention basin) for discharge to Council's underground drainage system (where available) by suitably sized pipes. The minimum pipe size in the table drain, where required, is 375mm diameter. Where no underground drainage system is available, discharge to the street gutter will be required with provision for onsite dispersal where soil type allows.

Surface Finish

iii. The surface must be properly sealed by using either reinforced concrete, asphaltic concrete, paving bricks or a two-coat bitumen seal.

Kerb Requirement

iv. Barrier kerbs must be employed for parking area perimeters and around islands within parking lots, as well as for all service driveways, loading areas and the like. Exceptions may be granted by Council for rear yard parking facilities and for design purposes, such as where barrier kerbs will interfere with drainage on the merits of each case.
v. Kerb and guttering crossing are to be designed to Council's *Engineering Standards: Subdivision & Development* (as amended), and should conform to the levels of the road drainage system. Under no circumstances must a crossing

obstruct the flow of water along a gutter.

Speed Humps and Wheel Stops

vi. Speed humps must comply with AS 2890.

vii. Wheel stops, including bumper guards, must be provided for all parking areas, to contain vehicles on sloping surfaces, prevent overhang, or to protect trees and vegetation from damage. Wheel stops must comply with AS 2890.

4.3 LANDSCAPING AND VEGETATION

a) With the exception of dwellings and dual occupancies, at least 10% of parking lots are required to be landscaped, and where possible be screened from roads and public areas by landscaping, to Council's satisfaction. A landscape plan may be required for this purpose.

b) The location of existing trees on site and methods of retention are to be considered in the preliminary design phase of the development.

c) Except, where explicitly allowed otherwise by Council, trees must be planted and maintained for shade at a ratio of at least one tree for every four parking bays in the case of single rows of parking and one tree for every eight parking bays in the case of double rows of parking.

d) Plants and trees must be protected from damage due to vehicular movement by appropriate obstructions such as wheel stops, railings or custom-made frames.

e) Where plants and trees are used to screen parking lots from roads, planting height must be graded across the width of the bed with larger species in the centre and smaller species at the edge, in order to limit loss of visibility.

4.4 LIGHTING AND SIGNAGE

a) All parking areas for developments comprising night time operation or occupation must be illuminated in accordance with Australian Standards 4282 Control of the obtrusive effects of outdoor lighting (as amended).

b) No open lights, such as strips of light bulbs must be permitted.

d) To ensure the efficient operation of parking areas:

- Signage must indicate the location of parking and loading areas not clearly visible to drivers.
- Vehicle entry and exit lanes must be clearly marked with either pavement arrows and/or signage.
- Desired traffic movements must be indicated through the use of pavement arrows.
- Long stay spaces for employees and disabled people must be indicated with appropriate signage.
- Physical impediments and constraints (such as severe gradients and occasional flooding) that may affect parking or the safety of passengers and pedestrians must be clearly indicated.
- Non-standard signs and signage which may be offensive or confusing must not be permitted.
- All signage advising of the availability of on-site car parking must be in accordance with AS2890.

e) Painted parking bay delineation, arrows or other information for the driver, painted on the pavement are to be marked in accordance with AS2890.

5.0 INFORMATION REQUIRED TO BE SUBMITTED

a) In the case of residential developments comprising up to two residences or units, the following information must be indicated on the site plan submitted as part of the development application:
   - Locality and dimensions of garages, car-ports and other parking areas;
   - Width and clear height of garage door or gate in the case of enclosed parking;
   - Locality, length and width of driveway;
   - Driveway surface type;
   - Distance of driveway from adjacent driveways, services, trees, etc; and
   - Distance from nearest splay – in the case of a corner allotment.

b) For any other development a site plan indicating the parking configuration, at a scale of 1:100 or 1:200, must accompany the development application, indicating the following information:
   - Locality and dimensions of all parking spaces (including parking for disabled persons, bicycles and motorcycles);
   - All parking spaces must be numbered on the site plan for reference purposes;
   - Gross leasable areas in the case of retail, commercial (including offices) and industrial buildings;
   - Number of units, rooms or offices;
   - Any other criteria used for the calculation of the required parking;
   - A schedule indicating the calculation of the required parking;
   - Locality, length and width of access driveways and driveways used for internal circulation;
   - Direction of traffic flow for internal traffic and traffic accessing the site;
   - Distances from adjacent driveways, intersections and splays;
   - Locality, dimensions and details of dividing medians, areas used for landscaping and screening, pedestrian paths, loading facilities, refuse storage areas, service areas, and the like;
   - Details regarding the type of surfaces and kerbing for driveways, and parking areas, and other materials associated with parking such as wheel stops and trolley bays;
   - All proposed signposting and surface marking for parking areas, including details of the type and colour of markings suggested, the content of signposts and the indication of internal traffic flow;
   - Clear height and nature of cover in the case of covered parking;
   - Gradients and details regarding stormwater management on, and surrounding the site of application;
   - Maximum size of vehicle to access the site; and
   - Proposed lighting

c) Additional Information - In determining parking and access requirements for a development application, the Assessing Officer, Authorised Officer or Council may in addition to the information provided on the site plan, request any, or all of the following information:
   - Likely demand for off-street parking because of

the development;
- Availability of public transport and other transport facilities, if any, provided for employees and visitors, customers or patrons;
- Likely modes of transport to be used by employees and patrons;
- Likely peak hours of the proposed development;
- Existing traffic volumes on the surrounding street network;
- Expected traffic generation and the nature of traffic impacts resulting from the development;
- Information relating to the justification for departures from parking requirements - if any;
- Information relating to on-site manoeuvrability of vehicles;
- Stormwater plans and calculations from a suitably qualified Civil Engineer; and
- Any other information reasonably necessary to determine the level of expected traffic impact of any proposed development with extraordinary or special characteristics.

d) All development applications for major developments are to be accompanied by a parking and traffic impact study assessing the impact of the proposed development on the surrounding arterial and local road network, including transport infrastructure requirements and cost implications. If required, a traffic impact study may be requested at the development assessment stage.

e) A major development will be a traffic generating development as outlined in Clause 104 and Schedule 3 of State Environmental Planning Policy (Transport and Infrastructure) 2021. However, a major development may also be a smaller development that is deemed by the Council to constitute a potentially significant traffic impact, or which may influence traffic and pedestrian safety.

APPENDIX 2 - GRIFFITH SUBDIVISION CODE

1.0 INTRODUCTION

This Subdivision Code applies to the all Lands to which the DCP applies. Under the *Environmental Planning and Assessment Act 1979* (EP&A Act), subdivision is defined as 'development that seeks the division of land into two or more parts that, after the division, would be adapted for separate occupation, use or disposition'. There are three main forms of subdivision and land title in NSW:

Torrens title subdivision

This is the most common type of subdivision and is often referred to as 'freehold' subdivision. This title has one registered owner of the land.

Strata title subdivision

This type of subdivision allows for a horizontal subdivision of land into separate titles for separate "strata" lots and is commonly associated with units. Each lot or unit represents a separate allotment, in which the owner of a strata title unit has title to that cube of air bounded by the inner skin of the boundary walls of the unit vertically and by the ceiling height above and the floor level below horizontally. The owner also shares the common property which may consist of driveways, gardens, etc., which is used by all owners and managed by a Body Corporate.

Community title subdivision

Community title is a mix of both Torrens title and Strata title which allows you to own your own allotment however you also have a responsibility in the common 'community' property (usually a shared swimming pool, BBQ area or the like). A Neighborhood Association is established to manage the common 'community' feature of the subdivision.

1.1 OBJECTIVES

a) To ensure the subdivision of land and associated development is consistent with the Precinct Statement of the area through consistent lot size, shape, orientation and housing density.
b) To improve the design and quality of the urban environment.
c) To promote the energy efficient usage of land.
d) To prevent the fragmentation of land.
e) To ensure new lots sizes comply with the Griffith Local Environmental Plan 2014 (GLEP) and any development can meet the development controls of the DCP.

1.2 DEFINITIONS

Gross floor area (GFA) means the overall area of a building as measured from the outer face of external walls, but excludes:

a) Columns, fin walls, sun control devices and any elements, projections or works outside the general lines of the outer face of the external wall.
b) Lift towers, cooling towers, machinery and plant rooms and ancillary storage space and vertical air-conditioning ducts.
c) Car parking needed to meet any requirements of Council and any internal access to such spaces.
d) Space for the loading and unloading of goods.

Gross leasable floor area (GLFA) means the overall area of a building as measured from the internal face of the walls, but excludes:

a) stair cases and fire escapes.
b) staff and/or public amenities, toilets.
c) lift towers, machinery and plant rooms, ancillary storage space and vertical air conditioning ducts.
d) space for the loading/unloading of goods.
e) any other area, which in Council's opinion, does not contribute to parking.

2.0 INFILL SUBDIVISION

Infill subdivision relates to the subdivision of land which is located within the existing built up areas of Griffith and the villages to create 10 or less lots on land with an area of 0.5 ha or less. Common types of infill subdivision development include the subdivision of corner lots, undeveloped or amalgamated lots or the subdivision of dual occupancies.

2.1 OBJECTIVES

a) To allow for a range of housing choices.
b) To efficiently utilise existing essential services with capacity.
c) To improve or maintain the amenity of the locality.
d) To encourage subdivision and increase in housing in accessible locations.
e) To ensure solar access and energy efficiency is considered in the subdivision of land.

2.2 GENERAL CONTROLS

a) The size of any lot subdivided must be in accordance with the relevant clauses in the *GLEP*.
b) Subdivision must be consistent with the localities Precinct Statement in Section 3 of the DCP.
c) The density of lots should maintain and promote the residential character of the area.
d) Subdivision must not compromise any significant features of the locality, including streetscape character, landscape features or trees.
e) Development applications for subdivision must demonstrate that future development of vacant lots can comply with all sections of the DCP (ie. setbacks, parking and private open space).
f) Development applications must demonstrate the following has been considered:
    i. topography and other natural and physical site features;
    ii. existing services;
    iii. existing vegetation;
    iv. existing easements and the need for new easements;
    v. vehicle access;
    vi. flood affectation and stormwater management requirements ;
    vii. contamination (refer to Council's Contaminated Land Management Policy (EH-CP-2013);
    viii. existing buildings and structures; and
    ix. fencing.

g) Subdivision must not result in the creation a new lot which contains significant site features that would render the land unable to be developed because of:
   i. easements;
   ii. flooding;
   iii. contamination;
   iv. significant trees;
   v. lot size or shape not conducive to development; and
   vi. lack of frontage or access to a road

h) Development applications must demonstrate the subdivision meets the requirements of Council's *Engineering Standards: Subdivision and Development* (as amended)

2.3 LOT SIZE AND LAYOUT

a) Proposed lots must be of a size and have a shape and dimensions to enable the siting of a dwelling and ancillary structures that:
   i. minimise impacts on adjoining lots including access to sunlight, privacy and views;
   ii. provide usable principal private open space;
   iii. provide vehicle access; and
   iv. protect or replace significant trees.

b) If an existing dwelling is to be retained, the proposed lot should be of sufficient size and design so that the dwelling complies with section 4 of the DCP.

c) Lot design should maintain a minimum lot width that is compatible with the subdivision pattern, measured at the building line adjacent to the primary frontage as detailed in the following table:

GLEP Area	Minimum Lot Size	Minimum Lot Width
D	300	10
G	450	12
I	500	15
M	600	16
Q	700	18
U	1000	20

d) Lots with a north-south axis should be prioritised.

e) Rectangular shaped lots should be prioritised.

f) Provision must be made for the collection of garbage and recycling.

2.3 ACCESS AND PEDESTRIAN MOVEMENT

a) The subdivision design must ensure an accessway can be constructed to access each lot which meets the requirements of Council's *Engineering Standards: Subdivision and Development* (as amended).

b) Vehicle access on a classified or arterial road should be avoided if another means of access is available (side street or rear lane).

c) In accordance with *Griffith's Pedestrian & Bicycle Strategy*, the subdivision design should provide for footpath and cycleways where required.

2.4 ESSENTIAL SERVICES

a) The design and installation of sewerage and water must be in accordance with Council's *Engineering Standards: Subdivision and Development* (as amended).

b) The subdivision must be designed to ensure that a suitable location for a water meter can be provided at least 1 m from a driveway.

c) Electricity should be provided via underground trenching in accordance with Essential Energy's requirements at the front of the lot.
d) Common trenching, or the location of compatible utility services in the same trench should be prioritised.
e) Easements over essential services must be provided to the satisfaction of the service provider.
f) The design of the subdivision must meet the requirements of Fire and Rescue NSW – Fire Safety Guideline – Fire Hydrants for Minor Residential Development.

2.5 STORMWATER

a) The subdivision must be designed in accordance with Council's *Engineering Standards: Subdivision and Development* (as amended) and Council's *On-Site Detention Policy* (CS-CP-404)
b) Easements to drain stormwater must be provided over all pipeline, inter-allotment drainage and any overland flow paths.

2.6 BATTLE-AXE LOTS

a) Battle-axe lots may only be permitted where it can be demonstrated that full street frontage for all lots is not achievable due to site constraints.
b) Only two battle-axe lots can share the same access handle.
c) Battle-axe lots must meet the following requirements:
    i. Any battle-axe lot without a frontage to the street must have a minimum site area of 400 m^2.
    i. In calculating the area of a battle-axe lot, the area of the access handle is to be excluded.
    ii. Single access handles must have a minimum width of 6 m and a maximum length of 40 m.
    iii. Dual access handles must have a combined width of 8 m and a maximum length of 40 m.
    iv. The access handle must be a sufficient width / area to accommodate the location of all services including a water meter located 1 m from any driveway and the placement of garbage and recycling bins.
d) Battle-axe lots to facilitate a handle for the location of only a water meter should be avoided where possible.

3.0 GREENFIELD SUBDIVISION

Greenfield subdivisions relate to the subdivision of land where the lot yield is in excess of 10 lots and where the urban pattern (street and open space network, neighbourhood structure) is not determined by existing development and street pattern on lands zoned R1 or RU5.

3.1 OBJECTIVES

a) To ensure all essential services are provided to new lots.
b) To ensure lot sizes allow for diversity in housing types.
c) To ensure subdivision design prioritise energy efficiency and solar access.
d) To maximise residential amenity by ensuring that roads, public transport, community facilities, open space and pedestrian and cycle networks are integrated.

e) To ensure that the subdivision is consistent with orderly and proper planning and the character of the area.
f) To prioritise pedestrian safety and walkability in the design subdivisions.

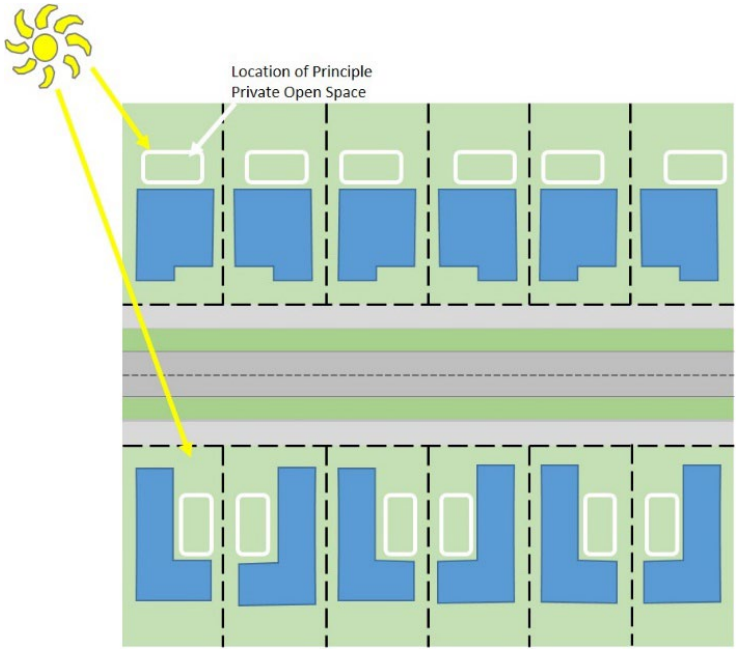
3.2 LOT SIZE AND LAYOUT

a) The size of any lot subdivided must be in accordance with the relevant clauses in the *GLEP*.
b) Proposed lots must be of a size and have a shape and dimensions to enable the siting of a dwelling and ancillary structures that:
   i. minimise impacts on adjoining properties including access to sunlight, privacy and views;
   ii. provide usable principal private open space;
   iii. provide vehicle access; and
   iv. protect or replace significant trees.
c) Lot design should maintain a minimum lot width that is compatible with the subdivision pattern, measured at the building line adjacent to the primary frontage as detailed in the following table:

GLEP Area	Minimum Lot Size	Minimum Lot Width
D	300	10
G	450	12
I	500	15
M	600	16
Q	700	18
U	1000	20

d) Larger lots should be provided in response to hazards such as flooding.
e) Higher densities, where provided, should be located in areas closer to commercial uses, open space, parks, community facilities and public transport routes.
f) Lot layout should enable dwelling fronts to face other dwelling fronts across a public street and backyards to face backyards.
g) Lots should be oriented and configured to maximise opportunities for solar access.
h) Corner lots should be designed to enable the construction of a dwelling that can comply with the

FIGURE 1: ORIENTING LOTS TO ENSURE NORTH FACING PRINCIPLE PRIVATE OPEN SPACE



prevailing setback requirements along both street frontages (dual occupancy lot).

i) The subdivision design should avoid the creation of battle-axe or highly irregular shaped lots.

j) Consideration must be given to how garbage and recycling will be removed from the frontage of all lots by providing maneuvering space to enable trucks to access bin collection areas.

3.3 CONNECTIVITY AND MOVEMENT NETWORKS

Neighbourhoods that have clearly defined street hierarchy and link people to destinations have the potential to reduce travel times and reduce vehicle reliance.

Subdivision design must take into consideration the following controls:

a) Where staging is to occur, each individual stage should be integrated with one another over the course of the development to ensure multi-modal connectivity.

b) Good pedestrian, cycling and vehicular connections to existing and proposed open space, community facilities and commercial areas should be prioritised.

c) Road networks (street length, intersection type, stagger and spacing) should be designed to control traffic speeds to appropriate limits.

d) Design of roads should provide appropriate carriageway widths, street trees, lighting and adequate footpaths and cycleways.

   i. Footpaths and cycleways must be provided in accordance with the *Griffith Pedestrian and Bicycle Strategy – 2018.*

   ii. Roads must be designed in accordance with Council's *Engineering Standards: Subdivision and Development* (as amended).

e) Development Applications for greenfield residential subdivisions must:

   i. Include an overall transport movement hierarchy showing major circulation routes and connections to achieve simple and safe movement systems for private vehicles, public transport, pedestrians and cyclists; and

   ii. Include cross sections of each type of road proposed in the hierarchy including required footpaths and cycleways.

3.4 ESSENTIAL SERVICES

Greenfield subdivisions must comply with the following controls (where applicable):

a) The design and installation of sewerage, water and stormwater must be provided in accordance with Council's *Engineering Standards: Subdivision and Development* (as amended).

b) Where there is no reticulated sewerage system in reasonable proximity to the site the development application must demonstrate that:

   i. All lots are capable of supporting an approved on-site sewerage management system supported

by a Land Capability Assessment prepared by a suitably qualified Geotechnical Engineer.

ii. Compliance with Council's On-site Sewage Management Plan is possible.

iii. Sewerage collection and disposal areas address the following:

- They are above the Flood Planning Level;
- Effluent disposal areas are a minimum of 200 m^2;
- They adequately treat sewerage to appropriate standards; and
- The groundwater table is at least 1.2 metres below the disposal area.

c) Council's reticulated water supply system must be connected to the subdivision and provided to each lot through Council mains or privately owned connections.

d) The design of the subdivision must meet the requirements of Fire and Rescue NSW's *'Fire Safety Guideline – Fire Hydrants for Minor Residential Development'*.

e) The design and installation of electricity, street lighting, telecommunications (including NBN) and gas services must be in accordance with the requirements of the relevant servicing authorities.

f) Electricity and telecommunications infrastructure should be provided as underground services.

g) Compatible public utility services should be coordinated in common trenching to minimise construction costs for underground services and reduce restrictions on landscaping within road reserves.

h) Where the connection of reticulated water and sewer infrastructure is not immediately available to the subdivision, or requires upgrading, the developer should make all necessary arrangements for the extension of these services to service each lot in the subdivision, with all costs associated with the extension of services borne by the developer.

i) Development Applications for greenfield residential subdivisions must Include draft servicing plans showing the location of all required utilities and demonstrating compliance with this section.

3.5 STORMWATER

a) Post-development runoff rates should be equal to or less than pre-development runoff rates for the full range of design storm events. Drainage from the proposed lots should not significantly alter pre-development stormwater patterns and flow regime.

b) Water Sensitive Urban Design (WSUD) elements should be provided in the design of the subdivision.

i. Long term maintenance requirements must be identified for WSUD elements; and

ii. WSUD must be designed to suit the climate of Griffith.

c) Stormwater must discharge to the street gutter or inter-allotment drainage system.

d) Easements to drain stormwater must be provided over all pipeline, inter-allotment drainage and any overland flow paths.

e) Where the stormwater drainage system in the locality requires upgrading, the developer should make all necessary arrangements for the extension of the

drainage system to service each allotment in the subdivision, with all costs associated with the extension of the drainage system borne by the developer.

f) Development applications for greenfield subdivisions must include:
    i. a preliminary Stormwater Management Plan prepared in accordance with *Engineering Standards: Subdivision and Development* (as amended) and Council's *On-Site Detention Policy* (CS-CP-404) demonstrating how the development can comply with this section.

3.6 SAFETY

a) Development applications for greenfield subdivisions should demonstrate how the lot, access, street and street lighting arrangements will promote the principles of Crime Prevention Through Environmental Design (CPTED), including but not limited to:
    I. Orienting building envelopes and car parking areas to minimise inactive streets;
    II. Casual surveillance of public spaces, including the street; and
    III. Appropriate lighting of public spaces and walkways.

3.7 OPEN SPACE

Greenfield subdivisions should comply with the following controls:

a) Public open space should be planned in close consultation with Council and in consideration of Council's *Section 94A Contributions Plan 2010* and Council's *Playground Strategy 2014*.
b) The required amount of open space dedicated to Council is calculated on the basis of 1000 m^2 / 20 lots.
c) At least 90% of dwellings should be located within 400 m straight line distance from an existing or proposed public open space.
d) Public open space should be integrated with major drainage networks and water quality facilities where they are compatible.
e) Public open space should be provided in a manner that can be economically maintained.
f) Development applications for greenfield subdivisions which require open space must include a draft design of the open space addressing how the open space will:
    i. Be buffered from main roads and identified hazards for improved safety;
    ii. Be safely accessible by pedestrian and/or cycleway links;
    iii. Located to maximise walkable access to the highest number of the population; and
    iv. Have passive / casual surveillance opportunities for security and safety.

3.8 LANDSCAPING

a) Development applications for greenfield subdivisions must include a concept landscape plan providing the following details:

I. Location of existing trees to be retained or removed.
II. Location and schedule of proposed plantings (quantity, species, expected mature height and spread and time expected to mature).
III. A fencing and retaining wall schedule.
IV. Proposed maintenance program and watering system.

3.9 CONTAMINATION

a) The Statement of Environmental Effects for subdivision to which this section relates should provide a history of the use of the site indicating whether there may have been any previous or current land uses that could have resulted in contamination of the site in accordance with Council's *Contaminated Land Management Policy* (EH_CP_203).
b) If there is a possibility the site could be contaminated from past uses, the development application must address the requirements of *State Environmental Planning Policy 55- Remediation of Land*, *Managing Land Contamination Planning Guidelines 1998* - Department of Urban Planning / Environment Protection Authority (as amended or replaced) and Council's *Contaminated Land Management Policy* (EH_CP_203).

3.10 MEDIUM DENSITY LOTS

a) Medium density lots permitting the development of more than one dwelling must be strategically located in close proximity to arterial roads, public transportation network and public open spaces.
b) Should an Applicant elect to provide **25% or less** lots to be utilised for medium density development within a subdivision, the following controls apply to the proposal:
    I. Development applications for greenfield residential subdivision must identify proposed locations of medium density allotments. Medium density lots must be designed to be of an appropriate size and shape to cater for the siting of multiple dwelling development.
    II. A Restriction as to User pursuant to Section 88B of the *Conveyancing Act 1919* must be placed on all lots within the subdivision stating that only one primary dwelling must be constructed with the exception of lots designated as medium density lots. This does not limit the construction of a secondary dwelling in accordance with the GLEP.
    III. Any development of medium density allotments with impervious surfaces in excess of 40% of the lot area must provide onsite detention in accordance with Council's Onsite Detention Policy (CS-CP-404).
c) Should an Applicant elect to provide between **26% and 50%** of lots or total area of land for residential development (not including road reserves and open spaces areas) to be utilised for medium density development within the subdivision, the following controls or requirements apply to the proposal:
    I. A Concept Development Application must be submitted for the proposed subdivision including a

concept proposal providing for the development of the site with the Stage 1 development application being for the subdivision of land.

II. The Concept Development Application must provide an overall Master Plan for how the site would be developed including meeting the requirements of section 12.1 of this DCP and the following additional matters:

i. A servicing strategy which considers the impact of the increased demands for water, sewer and stormwater services and proposed upgrades if required;

ii. Location of medium density precincts in close proximity to open space, commercial areas, public transport connections and community facilities (maximum 25% of total lot yield);

***Note**: Medium density precincts are strategically located nodes of medium density development within the subdivision and inlcude a group of a minimum of four adjoining or adjacent (separated by a road) lots (or a single lot with an area four times the size of the minimum lot size for the land to be developed for medium density development).*

iii. Location of strategically located medium density lots throughout the subdivision (maximum 25% of total lot yield);

iv. Include a staging plan;

v. Include a Traffic Impact Assessment;

vi. Provide concept-built form designs for medium density precincts including:

- Concept layout plans for lots including driveways, private and communal open space areas and landscaping;
- Concept locations of stormwater detention areas;
- Basic floor plans for dual occupancies, townhouses, multi-dwelling housing and manor houses to achieve compliance with Section 5 of this DCP; and
- Building envelopes for single detached dwellings.

vii. Should the Master Plan propose to subdivide a lot utilising clause *4.1A Exceptions to minimum subdivision lot sizes for certain residential development* of the Griffith Local Environmental Plan 2014(with 300-400m^2 lot area), the Applicant must provide an assessment of how the medium density development would achieve compliance with Sections 1-6 and Appendix 2 of this DCP within the boundaries of the reduced lot size.

III. The Concept Proposal provides a vision and overall guide for how the site would be developed. All future development applications submitted for medium density development would need to be in accordance with the Concept Approval.

4.0 LARGE LOT RESIDENTIAL SUBDIVISION

This section applies to lands zoned R5 or development in the R1 and RU5 zones for lots larger than 3000 m^2.

4.1 LOT SIZE AND LAYOUT

a) The size of any lot subdivided must be in accordance with the relevant clauses in the *GLEP*.
b) Proposed lots must be of a size and have a shape and dimensions to enable the siting of a dwelling and ancillary structures that:
    i. minimise impacts on adjoining properties including access to sunlight, privacy and views;
    ii. provide usable principal private open space;
    iii. provide vehicle access; and
    iv. protect or replace significant trees.
c) Larger lots should be provided
    i. In the vicinity of intensive agriculture;
    ii. Fronting arterial roads;
    iii. Fronting railway lines; and
    iv. Where site conditions require larger areas for onsite detention or on-site waste disposal.
d) Subdivision design should avoid using access to a public road via a right of carriageway or battle-axe lot. However, should a right of carriageway or battle-axe lot be deemed acceptable, the minimum width of the carriageway or access handle should be 8 m with a constructed driveway not less than 5 m wide.
e) Subdivision design should ensure that all the requirements in Section 7.0 of the Residential DCP can be catered for on each lot.

4.2 ROADS

a) Road networks (street length, intersection type, stagger and spacing) should be designed to control traffic speeds to appropriate limits.
b) Design of roads should provide appropriate carriageway widths, street trees, lighting and adequate footpaths and cycleways:
    i. Footpaths and cycleways must be provided in accordance with the *Griffith Pedestrian and Bicycle Strategy – 2018;* and
    ii. Roads must be designed in accordance with Council's *Engineering Standards: Subdivision and Development* (as amended).
c) Development Applications for large lot residential subdivisions should:
    i. Include cross sections of each type of road proposed in the hierarchy including required footpaths and cycleways.

4.3 UTILITIES AND STORMWATER

a) Large lot residential subdivisions must meet the requirements of Section 3.4 for the provision of essential services and 3.5 for the control of stormwater.
b) Individual onsite detention basins for lots with areas of 3000 m^2 to 5000 m^2 should be avoided.

c) Any communal raw water systems are to be designed and constructed to meet any requirements of Murrumbidgee Irrigation.

4.4 MANAGEMENT OF COMMUNAL FACILITIES

a) The proposed management structure for communal facilities or infrastructure, such as raw water dams, sewerage treatment systems, roads and common land associated with the subdivision must be described as part of the development application which could include a Community Title Association or a Neighborhood Association
b) A Management Plan for the ongoing management of the communal lands to the satisfaction of Council must be provided prior to the issue of a Subdivision Certificate.

4.5 BATTLE-AXE LOTS

a) Battle-axe shaped lots may only be permitted where it can be demonstrated that full street frontage for all lots is not achievable due to site constraints.
b) Only two battle-axe lots can share the same access handle.
c) Battle-axe lots must meet the following requirements:
    i. Single access handles must have a minimum width of 8 m and a maximum length of 100 m;
    ii. In calculating the area of a battle-axe lot, the area of the access handle is to be excluded;
    iii. Dual access handles must have a combined width of 10 m and a maximum length of 60 m; and
    iv. The access handle must be of a size to accommodate the location of all services including a water meter located 1 m from any driveway and the placement of garbage and recycling bins.

4.6 BUSHFIRE PRONE LAND

This section contains development controls applying to Development Applications for subdivisions involving land that is classified as bushfire prone on the Bushfire Prone land Map.

a) A Bushfire Risk Assessment Report must be lodged together with the Statement of Environmental Effects in support of the Development Application on bushfire prone lands. The Bushfire Risk Assessment Report must be prepared by a suitably qualified and experienced bushfire consultant and address the developments consistency with RFS's *Planning for Bushfire Protection Guidelines*.
b) Bushfire protection measures are to be placed wholly within the development site. All proposed Asset Protection Zones are to be within the property to be subdivided and incorporated into affected lots. Asset Protection Zones will not be accepted on existing Council reserves, other public lands or in reserves proposed to be dedicated through the subdivision.
c) Fire trails, if required, are not accepted on existing Council reserves proposed to be dedicated through the subdivision.

4.7 CONTAMINATION

d) The Statement of Environmental Effects for subdivision to which this section relates should provide a history of the use of the site indicating whether there may have been any previous or current land uses that could have resulted in contamination of the site in accordance with Council's *Contaminated Land Management Policy* (EH_CP_203).

e) If there is a possibility the site could be contaminated from past uses, the development application must address the requirements of *State Environmental Planning Policy 55 - Remediation of Land*, *Managing Land Contamination Planning Guidelines* - Department of Urban Planning / Environment Protection Authority (as amended or replaced) and Council's *Contaminated Land Management Policy* (EH_CP_203).

4.8 SALINITY

Where salinity is present on the site, is known to occur in the locality, or has been mapped in the GLEP as prone to salinity the following controls apply:

a) A Management Plan must be provided with the development application which:
   i. Provides mechanisms to maintain groundwater levels that will not adversely influence future building structures and shall provide guidelines for future landowners for on-site water and vegetation management (reference should be made to Council's Waterwise Guidelines);
   ii. Identifies how Infrastructure materials and construction methods will suit the soils on the site;
   iii. Addresses issues consistent with the NSW Salinity Strategy; and
   iv. Provides a plan of areas of on the site known to have excessive salinity and ensures building envelopes are located outside these areas.

APPENDIX 3

REQUEST FOR VARIATION TO A DEVELOPMENT CONTROL AND SUPPORTING INFORMATION

Under clause 1.5 of the Griffith Residential Development Control Plan (GRDCP 2020)

THIS REQUEST MUST ACCOMPANY A DEVELOPMENT APPLICATION LODGED WITH COUNCIL WHERE THE DEVELOPMENT DOES NOT MEET THE DEVELOPMENT CONTROL(S) WITHIN THE GRIFFITH RESIDENTIAL DEVELOPMENT CONTROL PLAN (2020).

CLAUSE 1.5 OF THE GRDCP 2020

There will be instances in which strict adherence to the controls in this Plan cannot be achieved. Should an aspect of a development not comply with a standard, the non-compliance must be justified in the Statement of Environmental Effects in a variation statement addressing:

a) The control being varied.

b) The extent of the proposed variation and the unique circumstances as to why the variation is requested.

c) Why compliance with the control/standard is unreasonable or unnecessary in this particular case.

d) How the objectives of the control are met and an acceptable solution achieved with the proposed variations.

e) That the development will not have additional adverse impacts as a result of the variation.

The fact that an existing development may not comply with one or more of the development controls, does not necessarily mean that the development control is unreasonable or unnecessary, when applied to future development.

The following section is required to be completed as part of any development application where a variation is sought to development control(s) contained within the GRDCP 2020. Alternatively, the required information below can be provided in an appendix attached to the Statement of Environmental Effects.

APPLICANT DETAILS

Name	
Property Details	
Description of Development	
Signature and Date	

1 What is the development control(s) to be varied? (specify)

2	Provide details of the extent of variation (ie. what is the non-compliance? Is it minor or extensive? (% of variation between your proposal and the development control)

3	Provide details of the specific circumstances of the variation and why it is being requested?

4	Are the controls considered unnecessary or unreasonable in the circumstances of the proposal, why?

5	If there are objectives of the control how does the variation achieve them?

6	Provide a justification as to why the development will not have additional adverse impacts as a result of the variation.